The Corporation of the Town of Ajax

GENERAL GOVERNMENT COMMITTEE

Monday, December 12, 2022
Open Meeting at 1:00 p.m.
Electronic Meeting
65 Harwood Avenue South

AGENDA

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Electronic Meeting: In-person attendance is not permitted at this meeting of the General Government Committee. This meeting will be livestreamed for viewing at ajax.ca/live. Electronic participation is permitted pursuant to the Municipal Act and Council's Procedure By-law.

Online Agenda: Anything in **blue** denotes an attachment/link. By clicking the links on the agenda page, you can jump directly to that section of the agenda.

L. Bower, Chair
R. Tyler Morin, Vice Chair

Open Meeting

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2. Disclosure of Pecuniary Interest

3. Adoption of Minutes

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6. Presentations

None

7. Closed Session

None

8. Adjournment

DRAFT MINUTES - Subject to Approval

Minutes of the General Government Committee Meeting Held Electronically At 1:00 p.m. on September 12, 2022

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Present:	Chair - Councillor	A. Khan
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillor	R. Tyler Morin
		L. Bower
	Mayor	S. Collier

Mayor Collier called for a moment of silence to honor the memory of Her Majesty Queen Elizabeth II, prior to the start of the General Government Committee meeting. Mayor Collier noted that Ajax residents are invited to share their memories, tributes, and messages of condolence in a Book of Condolence located at Town Hall (65 Harwood Avenue South, Ajax).

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Chair Khan called the meeting to order at 1:02 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interests.

3. Adoption of Minutes

3.1 Regular Meeting

Moved by: R. Tyler Morin

That the Minutes of the regular meeting of the General Government Committee held on June 13, 2022 be adopted.

CARRIED

3.2 Closed Session

Moved by: S. Lee

That the Minutes of the Closed Session of the General Government Committee held on June 13, 2022 be adopted.

CARRIED

4. Consent Agenda

Members separated items 4.1, 4.2, 4.4, 4.5, 4.6, 4.7 and 4.10 for discussion.

Moved by: L. Bower

That items 4.3, 4.8 and 4.9 of the consent agenda be adopted.

CARRIED

4.1 CAO-2022-11: Corporate Giving and Partnerships Reserve Policy

Committee Members asked questions regarding future allocations to the Ajax-Pickering Hospital Foundation, application process and timelines, communication and marketing strategies, eligibility criteria, surplus allocation, methods to track contributions, rationale for the implementation of community benefit contributions, program restrictions and limitations, approval processes, delegated authority, opportunities for allocation reconsideration by Council, funding tiers, and future funding for the Road Watch program. Kassandra Cruciano, Grants, Partnerships and Strategic Initiatives Coordinator, responded to questions from Committee Members.

Moved by: S. Collier

That Council approve the establishment of the Corporate Giving and Partnerships Reserve based on the criteria outlined in this report.

CARRIED

4.2 FIN-2022-12: Insurance Renewal – July 1, 2022 to June 30, 2023

Committee Members asked questions regarding fleet size, and costs and requirements related to dash cams in fleet vehicles. Dave Meredith, Director of Operations & Environmental Services, responded to questions from Committee Members.

Moved by: S. Collier

1. That the report on the Insurance Renewal – July 1, 2022 to June 30, 2023 be received for information; and

2. That the 2022 dividend of $111,016 be transferred to the insurance reserve.

CARRIED

4.3 FIN-2022-11: Tax Section Status Report

Moved by: L. Bower

That the Tax Section Status Report be received for information.

CARRIED

4.4 LIS-2022-17: 2023 User Fees & Charges

Committee Members asked questions regarding change rationale, explanations for non-Municipal Price Index (MPI) fee changes, and budget impacts. Nicole Cooper, Director of Legislative & Information Services/Clerk and Dianne Valentim, Director of Finance/Treasurer, responded to questions from Committee Members.

Moved by: M. Crawford

1. That the recommended fees schedule (ATT-1) be approved, effective January 1, 2023; and

2. That the appropriate General Fees By-law be presented to Council for approval.

CARRIED

4.5 LIS-2022-19: MOU for the Transfer of Town of Ajax Archives to Ajax Public Library

Committee Members asked questions regarding opportunities for digitization and customer access. Sarah Vaisler, Chief Executive Officer & Librarian, responded to questions from Committee Members.

Moved by: L. Bower

That the Town Clerk be authorized to execute a Memorandum of Understanding with the Ajax Public Library, substantially in the form attached hereto (ATT-1), to provide for the transfer of ownership of the Ajax Archives to the Library, and for provision of service related thereto by the Library.

CARRIED

4.6 LIS-2022-18: Committee & Board Honoraria

Committee Members asked questions regarding rationale for the proposed honoraria rates. N. Cooper responded to questions from Committee Members.

Main Motion

Moved by: S. Collier

1. That the recommended Committee & Board Honoraria Schedule (ATT-1) be approved for implementation in the 2022-2026 Committee & Board term.

Amendment

Moved by: S. Collier

That the recommendation be amended by adding the following language at the end of clause 1:

Subject to the following change:

That category B in ATT-1 to the report be amended and paid at the rate of $65/meeting.

CARRIED

Main Motion as Amended

Moved by: S. Collier

1. That the recommended Committee & Board Honoraria Schedule (ATT-1) be approved for implementation in the 2022-2026 Committee & Board term, subject to the following change:

   That category B in ATT-1 to the report be amended and paid at the rate of $65/meeting.

   CARRIED

4.7 OES-2022-13: RFT No. T22-17 – Municipal Vehicles - Trucks

Committee Members asked questions regarding the procurement process, legislative requirements, electric vehicle procurement, opportunities to stimulate economic growth through local purchasing, outreach and engagement initiatives, leasing alternatives, vehicle specifications and selection, and the Town's current hybrid/electric fleet size. D. Meredith and D. Valentim, responded to questions from Committee Members.

Moved by: S. Collier

1. That the report on the contract for Municipal Vehicles ~ Trucks, to Blue Mountain Chrysler Ltd. in the amount of $597,668.30 (inclusive of all taxes), be received for information;

2. That the following funding, to be allocated to Capital Account No. 1030911, 1031011, 1031211, 1031311, 1031411, 1035011, 1035111, 1032811:

Development Reserve	$57,007.89
Vehicle/Equipment Reserve	$41,210.93
Total	$98,218.82

CARRIED

4.8 PDS-2022-23: Conveyance of Parts 1-5 40R-31625 to Regional Municipality of Durham for Bus Rapid Transit Project

Moved by: L. Bower

1. That a by-law to authorize the conveyance of Parts 1 to 5 of 40R-31625 to the Regional Municipality of Durham to facilitate the construction of Bus Rapid Transit median bus-only lanes on Kingston Road between Salem Road and Galea Drive be presented to Council at its meeting on September 19, 2022.

   CARRIED

4.9 PDS-2022-24: Acquisition of Part 1-2 40R-31755 from 2558091 Ontario Ltd. (1010 Westney Road)

Moved by: L. Bower

1. That Council direct staff to acquire Parts 1-2 of 40R-31755 from 2558091 Ontario Ltd. for a purchase price of $4,760 plus HST, plus compensation for legal fees to a maximum of $1,000 (inclusive of HST), plus closing costs in the amount of $1,950; to facilitate the construction of a 3.0m wide off-road multi-use trail on north side of Rossland Road West;

2. That funding for the acquisition be drawn from Capital Account No. 1018611 (Rossland Road Widening – Church Street to Westney Road Construction); and

3. That a by-law to authorize the execution of an Agreement of Purchase and Sale with 2558091 Ontario Ltd. be presented to Council at its meeting on September 19, 2022.

CARRIED

4.10 PDS-2022-25: Ajax Sustainable Neighbourhood Action Program (Ajax SNAP) – Program Update

Committee Members asked questions regarding project scope, next steps and timelines, public engagement initiatives, and communication strategies. Cameron Richardson, Supervisor of Environmental Sustainability & Climate Change, responded to questions from Committee Members.

Moved by: J. Dies

1. That the report on Ajax Sustainable Neighbourhood Action Program (Ajax SNAP) – Program Update be received for information.

CARRIED

5. Discussion

Councillor Tyler Morin announced the birth of his first grandson. Committee Members extended their congratulations.

6. Presentations

6.1 2021 Financial Statements and Audit Report

Lilian Cheung, Associate Partner, Deloitte, presented the results of the 2021 audit and the audited annual consolidated financial statements, noting that the audit of the financial statements was completed in accordance with Canadian generally accepted auditing standards. L. Cheung reviewed significant audit risks, being revenue recognition and management override of internal controls.

There was no discussion amongst members or motions regarding this item.

7. Closed Session

None

8. Adjournment (2:07 p.m.)

Moved by: R. Tyler Morin

That the September 12, 2022 meeting of the General Government Committee be adjourned.

CARRIED

DRAFT

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Kassandra Cruciano Senior Advisor, Grants, Partnerships & Strategic Initiatives
Report #:	CAO-2022-14
Subject:	**2022 Corporate Giving Update**
Ward(s):	ALL
Date of Meeting:	December 12, 2022

Recommendation:

That Council receive this report for information.

Background:

In June 2022, Council approved a budget-neutral transfer of funds allocated in the 2022 Operating Budget for community granting initiatives to the Office of the CAO for partnerships in 2022. Council further set the total amount of funds to be disbursed in 2022 at no more than $100,000.

The Office of the CAO has allocated approximately $80,000 in grant funding to partnership initiatives in Ajax in 2022.

The Discussion section of this report includes a summary of all grants made with this direction at the time of report submission. These partnerships represent opportunities for innovative or unique interventions that have supported the Ajax community at-large, and aligned with the Corporation's objectives through the Strategic Plan.

This report also contains a high-level review of in-kind donations of facility rental or other permit costs that have been provided to organizations throughout 2022. These have been cases where a significant strategic or community interest has been fulfilled as part of the organizations' initiative.

Discussion:

<u>Partnership Grants</u>

Organization	Project	Grant Provided
2023 Parasport Games	Championship Sponsorship of 2023 Parasport Games, which is being hosted in Durham Region.	**$15,000**

Ajax-Pickering Hospital Foundation	Donation to the Ajax-Pickering Hospital Foundation for the purchase of bassinets and automatic external defibrillators as approved by Council at the March 21, 2022 GGC meeting.	**$25,500**
Community Living – Ajax Pickering and Whitby	Providing a holiday dinner to Ajax residents enrolled in CL-APW's Supported Independent Living Program, as purchased from Ajax grocers.	**$2,500**
Cultural Expressions Art Gallery Inc.	Partnership for the 2022 Durham Black History Celebration, which was hosted at the St. Francis Centre.	**$2,500**
Durham Region Police Services	Provision of the use of the Town's light pole and utilities, as well as the installation of, a Surveillance Camera on Westney Rd for community safety purposes.	**$3,147.54**
Elexicon Group	Installation of a motorized pool cover at the Ajax Community Centre, realizing savings through reduced utility and pool chemical costs.	**$10,000**
Mind Your Plastic	Single Use Plastic event planning toolkit and webinars on plastic waste reduction for permit holders at Town facilities and residents.	**$7,500**
Night Market TO	Partnership with Metrolinx to host a halal food truck festival – Halalfest – at the Ajax GO Station in June 2022.	**$8,475**
Toronto and Region Conservation Authority (TRCA) and Sankat Mochan Hanuman Mandir and Cultural Center	Purchase of the trees and shrubs for a planting event partnership on Frisco Road.	**$5,325.13**
		$79,948

In-Kind Donations – Facility Rentals

Staff regularly respond to requests for in-kind donations of facility bookings for various groups and organizations. For 2022, staff have maintained existing relationships for long-term discounted permit holders, as well as have supported new initiatives where partnership with the Town was strategic and beneficial to the community.

Groups that have received in-kind donations in 2022 for community events or regular meetings include:

- Ajax Photography Club

- Durham West PROBUS Club
- PROBUS Club of Ajax
- Girls Inc.
- Girl Guides of Canada
- Ajax Lion's Club
- Terry Fox Run
- Community Living Ajax Pickering & Whitby
- Kujenga Wellness Project
- Christ Embassy Ajax Superabundance Church
- Sankat Mochan Hanuman & Cultural Centre Inc.
- Carea Community Health Centre

The sum of in-kind donations given, which would be the full price cost charged for the use of the space, amounted to $7,769.30.

A formalized process for requesting discounted facility bookings will be launched in January 2023, and the future reporting of the annual value will be included in reports to Council on the Ajax Partnership Fund.

In-Kind Donations for Waived Permit Fees

In addition to facility bookings, the Office of the CAO may approve waivers for fees for projects that are deemed to be strategically important and where a partnership opportunity has been identified.

In 2022, the Town waived the Site Plan Application Fee and the Sign By-Law Variance Fee for the Barrett Centre of Innovation in Sustainable Urban Agriculture, valued at $3,786.

Financial Implications:

The total value of grant funding and in-kind offerings from the Town to community organizations in 2022 has totaled approximately $91,500. The grant amounts outlined in the Discussion section of this report have been funded through slot revenues as transferred to the Office of the CAO in June 2022.

Communication Issues:

N/A

Relationship to the Strategic Plan:

Area Leading in Our Community

Goals Fostering and strengthening external relationships and partnerships to help achieve strategic goals

Action Leverage partnership opportunities that align with Town goals

Conclusion:

The information contained in this report provides a summary view of the partnerships the Office of the CAO entered in 2022 through the corporate giving program prior to the official launch of the Ajax Partnership Fund (APF).

Staff in the Public and Strategic Affairs section look forward to building on the work done in 2022 to forge mutually beneficial partnerships which will advance the Town's strategic goals through the APF for the next four years.

Attachments:

ATT-1: N/A

Prepared by:

Kassandra Cruciano – Senior Advisor, Grants, Partnerships & Strategic Initiatives

Submitted by:

Christie McLardie – Manager of Public & Strategic Affairs

Approved by:

Shane K. Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Julie Mepham, CPA, CA – Manager of Budgets & Accounting
Report #:	FIN-2022-14
Subject:	**2022 Operating Budget Forecast and COVID related Financial Impact**
Ward(s):	All
Date of Meeting:	December 12, 2022
Reference:	Financial Sustainability Plan (FSP) GGC Report February 14, 2022 - 2022 Operating Budget GGC Report September 12, 2022 – Insurance Renewal – July 1, 2022 to June 30, 2023

Recommendation:

That the Report on the 2022 Operating Budget Forecast and COVID-related Financial Impact be received for information

Background:

The annual operating budget forecast is prepared by all Town departments and focuses on significant variances occurring after Council approval of the operating budget. It is based on actual revenues and expenditures as of August 31st and four months of projections for the remainder of the year (September 1st to December 31st). A surplus occurs when the Town either spends less than planned or raises more revenue than predicted. Circumstances which drive this difference typically include one-time unexpected revenues, staff vacancies, legislative changes, changes to work plan etc. A deficit would occur if expenses were greater than its revenues, or if the Town collected less revenue than it anticipated.

The Financial Sustainability Plan (FSP) directs the allocation of the annual operating surplus. It requires that any surplus is first allocated to the Stabilization Reserve to increase the reserve to its target balance. The remainder of the operating budget surplus, if any, should then be allocated to other discretionary reserves based on the recommendation of the Director of Finance/Treasurer. If a net shortfall were to occur, funds would be drawn from the Stabilization Reserve to fund the operating budget deficit.

This report:

1. Presents the operating budget forecast for 2022 and provides an analysis of the difference between budget and forecast.

2. Presents the 2022 projected financial impact of ongoing COVID-19 impacts and the use of the Public Health Reserve.

3. Discusses proposed use of surplus that will be recommended with the year-end report.

Discussion:

The forecasted operating budget surplus of $3.1 million is net of COVID related impacts that were funded by a draw from the Town's Public Health Reserve and additional revenues that were allocated to reserves as directed by policy or Council resolution.

The general operating surplus is resulting primarily from wages and benefits savings and unplanned revenues. The surplus for wages and benefits is driven by: vacancies resulting from recruitment challenges, resignations, and short/long term maternity/medical leaves.

The COVID-19 pandemic facility closures resulted in a net $1 million loss. Recreation facility closures in the first quarter of the year and a slow recreation program uptake has created a $2.5 million pressure on the on the Town's recreation revenues. This revenue loss was offset by net expenditures savings of $1.5 million primarily from part-time staff layoffs and program expenditures in the first quarter of the year, resulting in a $1 million draw on the COVID-19 Recovery grant (Public Health Reserve) set aside to fund such impacts in 2022.

Table 1 below summarizes the variance between the operating budget and the forecasted year end results:

Table 1

2022 Operating Budget Forecast Summary			
	Budget	**Forecast**	**Forecast (Surplus) / Deficit**
Wages & Benefits	62,523,400	59,915,100	(2,608,300)
Other Expenditures	48,140,100	51,733,900	3,593,800
Total Expenditures	**110,663,500**	**111,649,000**	**985,500**
Revenues	20,628,800	19,745,000	883,800
Investment Income/Slots/Elexicon	8,044,300	10,421,600	(2,377,300)
Grants & Donations	615,300	3,161,400	(2,546,100)
Reserve Allocations	1,911,300	1,935,200	(23,900)
Total Revenues	**31,199,700**	**35,263,200**	**(4,063,500)**
Net Operating Surplus			**$ (3,078,000)**

At the end of each fiscal year, the total surplus from under budget expenditures and over budget revenues in all departments, become part of the corporate operating surplus, which is allocated in accordance with Corporate Policy 121 Discretionary Reserve Administration.

The following sections of the report refer to Attachment 1 which provides further details on the forecasted Operating Budget surplus.

COVID (Surplus) / Deficit (see Attachment 1)

Expenditures

- Wages and benefits savings are due to the Q1 recreation facility closures ($1,295,500);
- Hydro savings from closure/reduced use of recreation facilities ($80,000);
- An increase in education and training related to a De-escalating Violent Situation corporate training program $25,700;
- Additional contracted security required at the waterfront, parks and facilities - $195,300;
- Savings in Equipment rentals due to limited summer day trips and trip camps not running, no winter service for seniors programs and swim to survive program was not offered – ($71,100); reduced printing costs due to reduced recreation programming and staff working from home ($16,700);
- Savings in consulting and professional services due to staff resource issues to proceed with projects ($64,200) – projects have been deferred to 2023;
- Fewer materials and supplies required due to facility closures and reduced events ($38,400);
- Savings in Administrative expenses due to facility closures, staff working from home, reduced community schools shared expense as there was no access to schools until June 2022 and savings in printing and advertising costs due to limited program offerings as a result of COVID restrictions ($108,200);
- Savings in financing fees and charges due to lower program registrations ($33,900).

Revenues

- Lower facility and fitness revenues mainly due to closure of recreation facilities in Q1 $621,500 + $173,600;
- Loss of Program registration revenue due to COVID restrictions and staffing shortages to run programs $1,647,900;
- Grant revenue offset transferred from Public Health Reserve ($984,500);
- Loss of recoveries due to not offering swim to survive program $11,300;
- Loss of revenue from permanent rental groups (Rock climbing, Navy League) due to facility closure and loss of advertising revenue due to limited print of programming guide - $112,800.

Expenditure / Revenue Offset (see Attachment 1)

- Vehicle & Equipment maintenance expenditure amount is offset with Recoveries as this is an internal reallocation of expenditures $307,400;

- Reserve allocation of $3,012,300 is made up of additional revenues that were collected as a result of forecasted increased investment income, additional Casino Ajax revenues, 2021 Insurance dividend and the allocation of the 2021 Library surplus to fund the Makerspace;

Surplus Revenue Allocation to Capital Reserves			
	Budget	**Forecast**	**Surplus**
Slots Revenue	4,000,000	5,177,000	1,177,000
Investment Revenue	981,100	2,181,400	1,200,300
Insurance Pool Distribution	-	111,000	111,000
2021 Library Surplus distribution (to Library Reserve)	-	524,000	524,000
Total	**4,981,100**	**7,993,400**	**3,012,300**

  - Gross slots revenues at Casino Ajax experienced to date are anticipated to remain steady over the course of Q4 resulting in additional anticipated revenues of $1.2 million. Policy 123 Discretionary Capital Reserve states that Slots and Elexicon revenues shall not reduce the general tax levy but shall be allocated to specified Capital Reserves. This contribution to capital reserves will assist with funding capital projects brought forward in the 2023 capital budget.

  - Investment revenue increases consist of interest income from increasing interest rates and more active investments in High Interest Savings Accounts (HISAs) and Guaranteed Investment Certificates (GICs). This does not include income distributions, dividend or unrealized gains/losses from investments in ONE Fund Equity and Bond Funds. Policy 121 Discretionary Reserve Administration states that “general levy interest income above $981,000 (2015 budget amount) may be allocated to Discretionary Capital Reserves”. This contribution to capital reserves will assist with funding capital projects brought forward in the 2023 capital budget.

  - The insurance pool distribution is an annual allocation of surplus funding that is released to pool members on an annual basis. The 2022 surplus was approved for allocation to the Insurance Reserve in the September GGC report. The annually allocated distribution has been committed in the capital budget until 2028 to fund risk mitigation initiatives. This amount is included in the Miscellaneous Revenue line item under Revenues.

  - Through the 2022 Operating budget, the library had identified a surplus in its 2021 operating budget and recommended through the business case that $524,000 of the 2021 Library surplus be allocated to the Library reserve to help fund the Library Makerspace project. The Library surplus was received by the Town in May of 2022 and this portion has been allocated as approved. This amount is included in the Miscellaneous Revenue line item under Revenues.

- Municipal Grant & Subsidies line item includes the transfer to Computek – this funding has been received and is identified in the Grants & Donations ($1,176,400) and offset by a change in the Town budgeted grants $93,900 – this is a change from the IMPACT Ajax and DCF grants to the new Ajax Partnership Program.

- The CIP Grant ($806,100) is less than budgeted for 2022 due to a pause on the program.

General (Surplus) / Deficit (see Attachment 1)

Expenditures

- Wages and benefits savings are due to vacancies across the organization, primarily in the Operations department ($1,312,800);

- Projected utility savings is based on reduced consumption, closures at ARC and MCC for pool maintenance, and reduced watering of soccer fields due to usage reductions ($229,100);

- Increase in Vehicle and Equipment Maintenance is primarily due to
    - a higher number of snow events, including the January storm, requiring additional rotations and snow haulage, and contract price increases $336,000
    - increase in fuel costs $243,700
    - rental of two additional vehicles to support in-house boulevard maintenance and vehicle retirement due to high maintenance costs $46,000;

- Higher forecasted reserve allocation due to DAAP (Development Application Approvals Plan) calculation which is mainly based on building revenue collections $160,100;

- Consulting and professional services costs incurred remains higher than budget. These costs include legal fees to defend the Town against various appeals which were not anticipated and can be difficult to predict each year $255,200;

- Materials and Supplies savings primarily result from less salt usage due to the increased number of plowing events ($94,800), delays in anticipated delivery of bunker gear and fire uniforms ($74,700), savings in tree planting materials ($36,700), and other minor savings due to reduced road maintenance related repairs and workwear costs;

- Administrative expenses savings include office supplies and fewer meeting honorariums and events ($88,600).

Revenues

- Other user fees reductions are primarily due to a shortfall in the non-resident user fee that was introduced in 2020 to recover the cost of responding to motor vehicle accidents $180,400;

- Tax penalties and interest surplus of ($690,000) is being forecasted due to trending higher tax billing volumes. Forecasting penalties and interest is based on a four-year average given that the actual revenues are dependent on the timely payment of property taxes;

- Grants & Donations of ($385,200) is related to the Streamline Development approval Fund used to offset wages for staff funded under this grant program;

- Recoveries received relates to WSIB payments received for staff on leave ($537,700);

- Miscellaneous revenues include a WSIB surplus rebate received by businesses in 2022 due to greater than necessary insurance reserves ($401,200) and from 2021 Library Surplus payment to the Town in excess of the Makerspace allocation ($172,700). These amounts are slightly offset by rental income deferral;

- Reserve allocations includes an unbudgeted contribution from the Development Charges reserves to fund the first set of bunker gear for new recruits ($117,800).

Allocation Operating budget surplus

As part of the ongoing budget and forecasting exercises, staff have identified a number of pressures on capital reserves for the upcoming 2023 budget cycle. Based on the final surplus, staff will look to recommend a portion of the forecasted operating budget surplus be contributed to certain reserves as follows:

- $504,000 to the Capital contingency reserve to fund the May 21 Storm Clean-up Costs (GGC Report – December 12, 2022) and top up the reserve to its $2.5 million target
- $401,200 from the WSIB surplus to the Strategic Initiatives reserve to assist with the funding of the proposed HRMS system
- $100,000 from the $172,700 Library 2021 surplus to the Building Maintenance reserve to fund the 2023 renovations to the MCC room

Financial Implications:

The Operating Budget Forecast process also identifies any trends or impacts in 2022 and beyond that will be incorporated in the 2023 and future operating budgets. Once the actual surplus is determined, final recommendations will be brought to Council for approval based on the recommendations of the Financial Sustainability Plan and the Director of Finance/Treasurer.

Communication Issues:

Actual expenditure and revenues will be reported through the Town's Financial Statements which will be presented to Council in June and once approved will be posted on the Town's website. The Town will continue to report on COVID related expenditures through the annual Financial Information Return.

Relationship to the Strategic Plan:

N/A

Conclusion:

The actual operating budget variances determined at the end of the year, and any subsequent decisions required, will be recommended to Council by the Director of Finance/Treasurer in 2023.

Attachments:

ATT-1: 2022 Operating Budget Forecast

Prepared by:

Julie Mepham, CPA, CA – Manager of Budgets & Accounting

Submitted by:

Dianne Valentim, CPA, CGA - Director of Finance / Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

Attachment 1

2022 Operating Budget Forecast

	Budget	Forecast	(Surplus) / Deficit	(Surplus)/Deficit Breakdown		
				COVID (Surplus)/Deficit	Expenditure/ Revenue Offsets	General (Surplus)/Deficit
Operating Expenditures						
Full Time Salaries & Benefits	51,276,300	49,354,300	(1,922,000)			(1,922,000)
Part Time Wages & Benefits	11,247,100	10,560,800	(686,300)	(1,295,500)		609,200
One-time Purchases under $10,000	623,100	552,500	(70,600)	(95,600)		25,000
Utilities (Electricity, Natural Gas & Water)	3,998,600	3,689,500	(309,100)	(80,000)		(229,100)
Insurance	1,484,100	1,473,200	(10,900)			(10,900)
Education & Training	509,000	446,000	(63,000)	25,700		(88,700)
Vehicle & Equipment Maintenance	2,673,900	3,653,000	979,100		307,400	671,700
Debenture	2,197,800	2,197,600	(200)			(200)
Reserve Allocations	13,283,300	16,455,700	3,172,400		3,012,300	160,100
Municipal Grants & Subsidies	6,814,800	7,859,500	1,044,700		1,082,500	(37,800)
CIP Grant	1,450,800	644,700	(806,100)		(806,100)	-
Contracted Services	6,973,800	7,115,300	141,500	195,300		(53,800)
Equipment Rentals, Service, Lease	449,300	356,600	(92,700)	(87,800)		(4,900)
Consulting & Professional Services	791,700	982,700	191,000	(64,200)		255,200
Communications & Technology	2,196,800	2,174,900	(21,900)			(21,900)
Materials & Supplies	2,662,600	2,372,400	(290,200)	(38,400)		(251,800)
Administrative Expenses	1,197,700	1,000,900	(196,800)	(108,200)		(88,600)
Financial Charges & Fees	671,300	632,700	(38,600)	(33,900)		(4,700)
Miscellaneous Expenses	161,500	126,700	(34,800)			(34,800)
Total Operating Expenditures	**110,663,500**	**111,649,000**	**985,500**	**(1,582,600)**	**3,596,100**	**(1,028,000)**
Revenues / Recoveries						
Facility Revenue	2,647,400	2,025,900	621,500	621,500		-
Fitness Revenue	657,000	483,400	173,600	173,600		-
Licencing & Fines	1,772,200	1,689,400	82,800			82,800
Program Registration	2,907,700	1,259,800	1,647,900	1,647,900		-
Planning Fees	6,140,900	5,377,600	763,300		806,100	(42,800)
Other User Fees	727,800	547,400	180,400			180,400
Penalties & Interest	1,800,000	2,490,300	(690,300)			(690,300)
Investment Income / Slots / Elexicon	8,044,300	10,421,600	(2,377,300)		(2,377,300)	
Grants & Donations	615,300	3,161,400	(2,546,100)	(984,500)	(1,176,400)	(385,200)
Recoveries	3,376,100	4,209,900	(833,800)	11,300	(307,400)	(537,700)
Miscellaneous Revenues	599,700	1,661,300	(1,061,600)	112,800	(635,000)	(539,400)
Reserve Allocations	1,911,300	1,935,200	(23,900)		93,900	(117,800)
Total Revenues / Recoveries	**31,199,700**	**35,263,200**	**(4,063,500)**	**1,582,600**	**(3,596,100)**	**(2,050,000)**
Total Town of Ajax	**79,463,800**	**76,385,800**	**(3,078,000)**	**-**	**-**	**(3,078,000)**

Town of Ajax Report

Report To:	General Government Committee
Prepared by:	Nadira Tiwari, Financial Data Specialist
Report #	FIN-2022-13
Subject:	**Capital Account Closing Report, September 30, 2022**
Ward(s):	All
Date of Meeting:	December 12, 2022
Reference:	Capital Expenditure Control Policy Financial Sustainability Plan

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Recommendation:

1. **That Council receive the attached listing of Capital Account closings as of September 30, 2022 for information.**

2. **That funding transfers to/from the Reserves/Reserve Funds from the September 30, 2022 Capital Account Closings, in accordance with the Financial Sustainability Plan, and changes in project funding sources as described in this report, be approved as follows:**

Reserve / Reserve Fund	Transfers to	Transfers from	Net Transfers
Capital Contingency Reserve	-	$10,623.35	$10,623.35
Building Maintenance Reserve	($1,682.81)	$177,375.45	$175,692.64
General Infrastructure Reserve	($23,142.21)	$14,409.15	($8,733.06)
Canada Community-Building Fund	-	$37,157.39	$37,157.39
Strategic Initiatives Reserve	-	$35,693.12	$35,693.12
Roads Maintenance Reserve	($20,658.40)	-	($20,658.40)
Vehicle/Equipment Replacement Reserve	($76,812.18)	$36,456.93	($40,355.25)
Total Transfers	**($122,295.60)**	**$311,715.39**	**$189,419.79**

Background:

The Financial Sustainability Plan identifies a requirement to report to Council on the results of capital account closings. The closing report indicates, on a project-by-project basis, the final balances of capital project accounts which have been completed or cancelled. This is the first capital account closing report for 2022.

Discussion:

An explanation of the net funding transfers to/from reserves is provided below. A summary showing the closed capital projects by funding source is included in Attachment 1.

Capital projects closing as of September 30, 2022 resulted in a net transfer from Reserve/Reserve Funds of $189,420.

The main driving factors are:

- **Contingency Not Required: $25,643 Savings**

Based on best practices to include and fund contingencies on contract awards, there can be excess funding at the end of a project if there are minimal or no unexpected costs or changes. Fleet Replacement P44 Pumper Rescue $6,904, LED Traffic Signal $6,240 and Trail Reconstruction $11,548 mainly accounted for these savings.

- **Other transfers to reserves: $45,334 Savings**

This capital closing report has a few projects that have allowed funding to be returned to reserves. The largest driver for this amount is $34,198 for Hardware Replacement costs charged as Covid expenses eligible for grant recoveries lowering the funding requirement from Vehicle and Equipment Reserve.

- **Unbudgeted Projects: $168,156 Expenditure**

All unbudgeted/emergency projects were reviewed and approved by the Director of Finance and CAO, and were funded through either the Capital Contingency Reserve, Building Maintenance Reserve, or the General Infrastructure Reserve. This report contains the closing of 5 unbudgeted projects. The two largest unbudgeted projects are the Ajax Memorial Pool Repair $53,627 and the ACC Pool Filtration Room $51,580.

- **Net Unfavourable Pricing: $92,241 Expenditure**

Capital budgets are based on estimates. Subsequent contract awards resulted in net unfavourable pricing. Unexpected higher costs were incurred in the MCC Pool Filtration System and Pump Replacement $37,157, Geographic Information Systems (GIS) Strategy $35,693, and MCC Replacement Slide and Stairs Design $33,346. Many new vehicles purchased also had differences in pricing resulting in $36,457. Some price savings were achieved in the purchase of equipment and tools for the

P44 Pumper Rescue replacement $22,661 and for the 2021 Trail Reconstruction project $11,594.

Reserve Funds – Funding not transferred:

Projects funded by obligatory reserve funds reflect the approved funding as fully committed from these reserve funds even though the funding transfer only occurs after expenditures have been incurred. As such, when these capital projects are completed, there is no transfer back to the reserve fund, but any remaining funding will be uncommitted. Through this report the Town will un-commit a total of $416,800, which was primarily committed from the DC (2018) Reserve Funds and Development Reserve.

The reasons for the uncommitted funding are:

- The design and construction of the Kingston Street Light Wicks/Lakeridge project will be done by the Region at a later date resulting in uncommitted funds of $116,800. This project will be rebudgeted as part of the 2023 capital budget and 2024-2032 long range capital forecast.
- The tender for the 5 Tonne Truck W/Brine Plow was over budget and will be re-budgeted for 2023. This resulted in an uncommitment of $300,000.

Financial Implications:

The net budget/funding from completed capital projects being transferred from reserves and uncommitted from Reserve/Reserve funds is as follows:

Reserve / Reserve Fund	**Net Transfers (to) / from Reserves**	**Total Uncommitted**
Capital Contingency Reserve	$10,623.35	-
Building Maintenance Reserve	$175,692.64	-
General Infrastructure Reserve	($8,733.06)	-
Canada Community-Building Fund	$37,157.39	-
2018 DC Reserve Fund	-	($396,000.00)
Strategic Initiatives Reserve	$35,693.12	-
Roads Maintenance Reserve	($20,658.40)	-
Vehicle/Equip. Replacement Reserve	($40,355.25)	-
Development Reserve	-	($20,800.00)
Total Transfers / Uncommitted	**$189,419.79**	**($416,800.00)**

The surplus amounts (shown in brackets) from the chart above will be available in the reserves/reserve funds to assist with funding future capital projects and help mitigate the inflationary pressures the Town is currently experiencing.

Communication Issues:
N/A

Relationship to the Strategic Plan:
N/A

Conclusion:
There were 26 capital projects closed with a net total of $189,420 transferred to fund capital projects and $416,800 uncommitted from Reserves/Reserve Funds.

The amounts being returned to Reserves/Reserve Funds will:

- Assist with funding of over budget projects
- Protect against reserve revenue uncertainties
- Ensure funding is available to take care of our assets

The presentation of this report to Council complies with the requirements of Corporate Policies 120 and 127, the Financial Sustainability Plan and the Capital Expenditure Control Policy.

Attachments:

ATT-1: Closed Capital Projects as of September 30, 2022

Prepared by:

Nadira Tiwari – Financial Data Specialist

Submitted by:

Dianne Valentim, CPA, CGA – Director of Finance/Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

ATTACHMENT #1 - CAPITAL ACCOUNTS CLOSED AS OF Sept 30, 2022

ACCT	PROJECT NAME	* Council Award	Year Approved	Council Approved Budget	Additional / Unbudgeted Funding Approved	Approved Budget and Additional Funding	Funding not transferred	Expenditures	Project Balance	Comments
Capital Contingency Reserve										
1018111	Fire Tower Training Repair		2020			-		$ 10,623.35	10,623.35	Unbudgeted/Emergency
				-	-	-	-	10,623.35	10,623.35	
Building Maintenance Reserve										
1009811	Council Chambers Modernization Design		2019	(40,000.00)		(40,000.00)		38,317.19	(1,682.81)	Pricing
1012211	MCC Repl Slide & Stairs Design		2020	(15,000.00)		(15,000.00)		48,346.17	33,346.17	Additional work required to meet building code
1026611	Ajax Memorial Pool-Emerg. Repair		2021	-		-		53,627.49	53,627.49	Unbudgeted/Emergency
1026811	ACC Pool Filtrn Room Concrete		2021	-		-		51,579.63	51,579.63	Unbudgeted/Emergency
1027411	TH Park Lot Water Main Break		2021	-		-		38,822.16	38,822.16	Unbudgeted/Emergency
				(55,000.00)		(55,000.00)		230,692.64	175,692.64	
Roads Maintenance Reserve										
1020611	LED Traffic Signal Replacement		2021	(75,000.00)	-	(75,000.00)		54,341.60	(20,658.40)	Contingency not required/Pricing
				(75,000.00)		(75,000.00)		54,341.60	(20,658.40)	
General Infrastructure Reserve										
1013711	Pedestrian Bridge #1003 Repair	*	2021	(100,000.00)	(58,178.35)	(158,178.35)		158,178.29	(0.06)	
1021611	Trail Reconstruction 2021		2021	(163,000.00)	-	(163,000.00)		139,857.85	(23,142.15)	Contingency not required/ Pricing
1036511	ARC Ball Diamond 5&6 Tarps		2022	(15,000.00)	-	(15,000.00)		15,905.80	905.80	Pricing
1039211	Emg Repair-Rotary Park Boat Launch		2022	-	-	-		13,503.35	13,503.35	Unbudgeted/Emergency
				(278,000.00)	(58,178.35)	(336,178.35)		327,445.29	(8,733.06)	
Strategic Initiatives Reserve										
1025111	Geographic Information Systems Strategy		2021	(57,000.00)		(57,000.00)		92,693.12	35,693.12	Pricing
				(57,000.00)	-	(57,000.00)		92,693.12	35,693.12	

ATTACHMENT #1 - CAPITAL ACCOUNTS CLOSED AS OF Sept 30, 2022

ACCT	PROJECT NAME	* Council Award	Year Approved	Council Approved Budget	Additional / Unbudgeted Funding Approved	Approved Budget and Additional Funding	Funding not transferred	Expenditures	Project Balance	Comments
Vehicle and Equipment Replacement Reserve										
1008011	Fleet - Repl P44 Pumper Rescue	*	2018	(1,100,000.00)	(71,957.31)	(1,171,957.31)		1,142,392.85	(29,564.46)	Contingency not required/ Pricing
1016211	Fleet - Repl. Snow Plows 2020	*	2020	(591,000.00)	(7,329.55)	(598,329.55)		600,680.70	2,351.15	Pricing
1018411	Hardware Replacement 2021	*	2021	(360,000.00)	-	(360,000.00)		319,802.16	(40,197.84)	Pricing. Charged as Covid expenses recoverable from grant.
1022611	MCC Floor Machine Replacement 2021		2021	(15,000.00)	-	(15,000.00)		9,517.32	(5,482.68)	Contingency not required/ Pricing
1023111	Repl 13002 Stake Truck 2021		2021	(85,000.00)	-	(85,000.00)		103,506.37	18,506.37	Pricing
1023911	Repl 34008 SW Tractor 2021		2021	(55,500.00)	-	(55,500.00)		60,699.80	5,199.80	Pricing
1024011	Repl 34009 SW Tractor 2021		2021	(55,500.00)	-	(55,500.00)		60,699.80	5,199.80	Pricing
1024111	Repl 34010 SW Tractor 2021		2021	(55,500.00)	-	(55,500.00)		60,699.81	5,199.81	Pricing
1032311	Repl. SCBA Cylinders 2022		2022	(40,700.00)	-	(40,700.00)		39,132.80	(1,567.20)	Pricing
				(2,358,200.00)	(79,286.86)	(2,437,486.86)	-	2,397,131.61	(40,355.25)	
Recoveries - External										
1025811	Dominion Colour Fire		2021	(111,993.38)		(111,993.38)		111,993.38	-	
				(111,993.38)	-	(111,993.38)		111,993.38	-	
Canada Community - Building Fund (FGT)										
1012011	MCC Pool Filn Sys&Pump Repl Design		2020	(50,000.00)	0	(50,000.00)		87,157.39	37,157.39	Pricing and unanticipated expenses
				(50,000.00)	-	(50,000.00)		87,157.39	37,157.39	
Provincial Grants										
1026911	Core Servic Review Operations		2021		(74,793.56)	(74,793.56)		74,793.56	-	Unbudgeted/Cost covered by Provincial Grant
				-	(74,793.56)	(74,793.56)	-	74,793.56	-	
Mixed Funding										
DC Reserve/Development Reserve										
1029211	Kingston Stlight Wicks/Lakeridge		2022	(116,800.00)	-	(116,800.00)	116,800.00	-		Cancelled/rebudgeted
1029511	5 Ton Truck w/Brine Plow		2022	(300,000.00)	-	(300,000.00)	300,000.00	-		Cancelled/rebudgeted
				(416,800.00)	-	(416,800.00)	416,800.00	-		
	Total			**(2,985,193.38)**	**(212,258.77)**	**(3,614,252.15)**	**416,800.00**	**3,386,871.94**	**189,419.79**	

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Anthony Hamilton Senior Financial Analyst
Report #:	FIN-2022-15
Subject:	**Asset Retirement Obligation**
Ward(s):	All
Date of Meeting:	December 12, 2022
Reference:	N/A

Recommendation:

1. That the Asset Retirement Obligation report be received for information

2. That the policy on Asset Retirement Obligation (ARO) be approved

Background:

The Public Sector Accounting Board (PSAB) introduced a new financial reporting standard, PS3280 Asset Retirement Obligation (ARO) in August 2018 to be adopted by all public sector entities. As of January 1, 2023, the Town of Ajax is required to be compliant with this ARO standard.

ARO is a legal obligation associated with the retirement of a tangible capital asset (in productive use assets as well as out of productive use assets) that must be recognized as a future liability and a cost in the financial statements of an organization. Retirement activities include, but are not limited to:

- Decommissioning or dismantling an asset,
- Removal and remediation of contaminants such as asbestos and lead within building or construction materials, or
- Restoration of leased property to its former condition at end of lease.

Before the introduction of PS3280, there was no guidance for the recognition of future liabilities related to retirement of a tangible fixed asset.

Discussion:

Since end-of-life costs for assets and their associated liability were not previously recorded or reported, **PS3280** seeks to make amends to such omissions by recognizing an asset and its liability when all the following occurs:

a) There is a legal obligation to incur retirement costs in relation to a tangible capital asset.
b) The past transaction or event which gave rise to the liability has already occurred.
c) It is expected that future economic benefits will be given up; and
d) A reasonable estimate of the amount can be made.

Under this standard, a legal obligation may arise through having anticipated costs in any of the following examples:

- **Agreement or contract.** The conditions of a lease agreement may require a lessee at end of lease to return leased property in its former condition and therefore requiring removal of trade fixtures or leasehold improvements. These end of lease costs are treated as retirement obligations.

- **Legislation of Another Government**. This arises where a local entity is required to adhere to the legislation of another government. For example, a landfill organization in Ontario seeking to operate a landfill in another province must comply with that other province's Ministry of Environment requirements. Such requirements could include responsibility for closure and post-closure costs within the province which the landfill operates and must be accounted as retirement obligation. The Town of Ajax would likely not be subject to this situation as it does not hold or derive benefits from tangible capital assets outside its municipal boundaries.

- **A Government's own Legislation**. In Ontario, the Occupational Health and Safety Act (OHSA) has requirements concerning clean up and removal of asbestos in buildings. These future costs at future demolition of buildings are accounted as ARO.

- **Promissory Estoppel**. This occurs where a promise is made to a third party and there is reasonable expectation that it will be performed. For example, a builder purchases land next to a gravel pit after relying on the Town's commitment to close and decommission the pit. This promise could constitute a legal obligation under the principle of promissory estoppel and could impose a legal obligation for the town.

Below is a graphical presentation of the key milestone of the ARO project.

In preparation for the adoption of ARO on January 1, 2023, the Finance Team undertook the following:

A. Gathered information concerning the standard to be introduced. This started in July 2021 and has continued through to the current date. The information gathering process included:
   - Collaborating with peer groups across other Ontario municipalities
   - Attending Municipal Finance Officers Association (MFOA) workshops and conferences for presentations and discussions by industry thought leaders on the subject matter, and
   - Having continuous dialogues with the Town's auditors, concerning interpretation, methodology, requirements of the standard and the expected impact on the Town of Ajax.

B. Determined how the departments would be impacted by the standard. As there is no inhouse Legal department, PMH Law was retained by the Town and was the correspondent on legal matters and provided legal opinions on issues as necessary. Contacts were in place for other internal departments at the Town and each were individually sensitized on the objective and purpose of the ARO project.

C. Prepared draft project plan. The project was divided into phases with each consisting of deliverables, timing, and milestones all aimed at meeting the implementation date of January 1, 2023.

D. Held Project Kickoff meeting with all key stakeholders in August 2021. Along with sharing an overview of ARO, the work plan was also presented with the overall expectations to meet implementation date of January 1, 2023.

E. Conducted Scoping of assets for ARO. All assets (buildings, leasehold, storage tanks, landfill, roads, walkways and paths, stormwater ponds, bridges and culverts, oil grit separators, pipes within the town, septic tanks, motor vehicles and rolling assets, water wells and other miscellaneous assets including fluorescent lights, building signage, furniture, and fixtures) were assessed to determine those with ARO implications. This was done through:

- Obtaining listings of all assets owned by the Town which was reconciled to the Fixed Assets Register in helping to ensure completeness of listing.
- Reviewing the terms and conditions of agreements and/or contracts affecting each asset class. For example, a review of the Pat Bayly Square lease agreement was conducted, and legal advice obtained.
- Identifying regulations, legislations or by- laws that could impact the asset and therefore give rise to ARO liability. For example, the Technical Standards and Safety Act (TSSA) requires that underground oil storage tanks must be removed at end of life. In conducting due diligence, Finance observed that the TOA does not have any underground storage tank. It was also confirmed that TSSA has no regulation for above ground storage tanks.

F. Drafted ARO Policy. The drafted policy was submitted to senior management for review as well as feedback obtained from the auditors.

G. Conducted measurement procedures. As the Town did not have the required skill set to determine end of life cost for all assets, consultants were contracted for buildings and roads. The selection process for consultants was consistent with the Town's procurement policies.

   The role of the independent consultants was to determine the level of asbestos and other contaminating substances and to provide estimated remediation cost at end of asset life.

H. Summarized the results of the consultants' reports. Results from the consultant's report on asbestos and other substances contained in buildings were collated. The review for roads is currently underway. Once finalized, Finance will integrate the results in calculating the Town's ARO for inclusion in its 2023 financial statement.

The Town is choosing to apply this standard prospectively, meaning that we will not restate prior year's financial statements, but will mean a larger annual expenditure impact will be recognized in the financial statements between the adoption date of the standard and remaining useful life of the assets.

Financial Implications:

By recognizing the retirement cost associated with an asset at acquisition there is also an equal amount accounted for as its liability. This ARO liability will be increased annually after assessing market and other conditions in addition to obtaining the debenture interest rate from the Regional Municipality of Durham. The ARO asset will be depreciated in accordance with existing Capital Asset Policy.

Upon acquiring a new asset, the eventual retirement costs need to be recognized and tracked over time. This future liability must be factored into all long-term asset plans to ensure adequate funding is available at time of asset disposal.

The first financial statements using PS3280 Asset Retirement Obligation will be December 31, 2023.

Communication Issues:

The Finance Department has been leading the ARO project since July 2021 and has been communicating internally with various Town departments, external peer groups and the Town's auditors as necessary.

Communication with departments will continue after implementation of the ARO standard. Finance will communicate with all departments annually by distributing a questionnaire to determine any ARO implications that might have occurred within the year. Responses provided will help to determine if further assessments are required.

Relationship to the Strategic Plan:

N/A

Conclusion:

The approved policy formalizes the Town's approach to managing this obligation and allows Finance to move forward with the implementation process to accurately reflect the Town's future obligations in the 2023 Financial Statements and future years.

Attachments:

ATT-1: Policy for Asset Retirement Obligation

ATT-2: Annual Checklist for ARO

Prepared by:

Anthony Hamilton, Senior Financial Analyst

Submitted by:

Dianne Valentim, CPA, CGA, Director of Finance

Approved by:

Shane Baker – Chief Administrative Officer

TOWN OF AJAX POLICIES AND PROCEDURES

SUBJECT: **Asset Retirement Obligation**

COUNCIL ISSUED:	REVISED:	AUTHORED BY:	REVISION #:	Page 1 of 9	POLICY #:
Click here to enter a date.	Click here to enter a date.	Anthony Hamilton			

1. POLICY OBJECTIVE

1.1. The Corporation of the Town of Ajax (Town) shall account for Asset Retirement Obligations (ARO) in accordance with the Public Sector Accounting Standards (PSAS) Handbook, Section 3280, beginning January 1, 2023, with its first annual financial statement using the standard being December 31, 2023.

1.2. This standard must be applied by public sector entities which prepare financial statements under PSAS, including all Canadian municipalities.

1.3. The purpose of this policy is to provide guidance and a framework to preparers and users of financial reports concerning treatment for end-of-life obligations for assets.

2. SCOPE

2.1. ARO is a “legal obligation associated with the retirement of a tangible capital asset”.

2.2. In-Scope

ARO includes, but is not limited to:

- The removal and remediation of contaminants, such as asbestos and lead, within building or construction materials (e.g., roads, flooring, roofs).
- Restoration of leased property to its former condition at the end of the lease
- Removal of underground storage tanks used to store gas or oil
- Costs to retire landfills (previously PSAS 3270, now included in PSAS 3280)

2.3. Prior to the introduction of PS 3280 there was no guidance on the retirement of long-life assets. The Town is now required to recognize obligations previously out of scope

2.4. Exclusions

Costs associated with the following are excluded from ARO:

- Remediation of contaminated sites (Refer to PSAS 3260 Liability for Contaminated Sites).
- Improper use of a tangible capital asset.
- Preparing a tangible capital asset for an alternative use.
- The occurrence of an unexpected event such as an unexpected contamination.

2.5. Only assets controlled by the Town can give rise to ARO **(Appendix 1)**.

2.6. Legal obligation can arise through:

- Agreement or contract.
- A government's own legislation.
- Legislation of another government.
- The Doctrine of Promissory Estoppel where a promise, without consideration, to a third party is reasonable expectation of performance by the promisor.

2.7. Productive and Out-of-Productive Use Assets

This policy applies to all departments within the Town that manages Tangible Capital Assets (TCA) and includes both in-productive-use assets and assets no longer in productive use.

2.8. ARO vs. Contaminated Sites (PSAS 3260)

Asset retirement obligations must be distinguished from contaminated site liabilities.

Contaminated site liability results from unexpected contamination exceeding environmental standards.
ARO arise through acquisition, construction, development, or normal use of the asset.
ARO obligations are predictable, likely to occur and unavoidable **(See Appendix 2).**

Retirement obligation costs are capitalized as part of the TCA meanwhile contamination costs under PSAS 3260 are expensed.

2.9. Capitalization Thresholds, Recognition of TCA and Componentization Approach

The policy for thresholds, recognition and componentization of assets as detailed in the Town of Ajax TCA Policy are observed and applied in this ARO Policy.

Updates and/or changes to the TCA policy are incorporated in this ARO Policy.

3. DEFINITIONS

Accretion Expense: The increase in the carrying amount of a liability for an asset due to the passage of time.

Amortization: The allocation of the cost of a TCA to operating periods as an expense over its useful life. Also referred to as depreciation.

Asset Retirement Activities: Activities related to an asset's retirement obligation including decommissioning/ dismantling of an asset and post retirement monitoring costs.

Asset Retirement Cost: The amount estimated to retire a tangible capital asset

Asset Retirement Obligation: A legal obligation associated with the retirement of a tangible capital asset.

Capitalization Thresholds: The value above which tangible capital assets are capitalized and reported in the financial statements.

Carrying Amount: The net book value of a tangible capital asset i.e., cost less accumulated depreciation.

Discount Rate: The cost of borrowing money or the return investors expect.

External Auditor: A firm of Accountants that provide an independent opinion on the financial statements of the Town.

In-Scope Assets: Those assets that meet the definition for asset retirement obligation.

Out-of-Productive Use Assets: An asset not currently in use to produce or perform regular activities for the Town.

Productive Assets: An asset currently in use to produce or perform regular activities for the Town.

Standards/PSAS: This refers to the Public Sector Accounting Standards

4. ROLES AND RESPONSIBILITIES

The implementation and maintenance of this standard involve multiple stakeholders across the Town along with a range of duties and responsibilities.

4.1. Finance

4.1.1 Lead the initial implementation and annual maintenance of the ARO project.

4.1.2 Monitor compliance requirements and communicate the effects on the Town.

4.1.3 Investigate and provide resolutions for issues requiring clarifications to other stakeholders.

4.1.4 Act as the liaison between the External Auditors and the operational departments impacted by the Standard.

4.1.5 Apprise Council of requirements of the Standard and impact on the Town.

4.1.6 Obtain clarity and/or opinion from legal counsel for matters such as contractual obligations, terms, and conditions, ARO regulations and legislations.

4.2. Operational Departments

4.2.1 Monitor current and pending legislation for ARO implication to determine impact on the Town's program and asset classifications.

4.2.2 Provide Finance annually with accurate and relevant information related to asset retirement obligations.

4.2.3 Inform Finance of any potential obligation(s) that might be associated with an asset owned by the Town.

4.2.4 Communicate changes in asset conditions and retirement timelines to Finance.

4.2.5 Assist in the compilation of cost estimates for retirement obligations.

4.2.6 Coordinate and communicate with consultants.

4.3. Corporate Management

4.3.1 Ensure implementation and annual compliance with PSAS requirements.

4.3.2 Ensure the preparation and presentation of the annual financial statements of the Town is consistent with the requirements of PSAS.

4.3.3 Funding Responsibility – Perform long term financial planning to ensure the Town can meet its financial obligations under ARO.

5. MEASUREMENT

5.1. Recognition of Liability

As per PSAS 3280.09, "*a liability should be recognized when, as at the financial reporting date:*

(a) there is a legal obligation to incur retirement costs in relation to a tangible capital asset.
(b) the past transaction or event giving rise to the liability has occurred.
(c) it is expected that future economic benefits will be given up; and
(d) a reasonable estimate can be made.

A liability for an asset retirement obligation cannot be recognized unless all the criteria above are satisfied"

5.2. Initial Measurement

Professional judgement and the use of estimates are integral in determining ARO in year of adoption as well as in subsequent years. Estimates are based on the best information available at that point in time. PSAS indicates that:

a) Cost should only include those related to the asset retirement obligation in accordance with the legally enforceable obligation.

b) Third party judgement and subject matter experts may be required to determine the best estimate for ARO.

5.3 Accounting Treatment

The following table summarizes the required treatment for ARO in various circumstances.

Circumstance	Treatment under PSAS 3280
1. TCA is still in productive use but is fully amortized (e.g., a fully amortized building containing asbestos)	1. ARO is added to existing cost base and is amortized over the asset's remaining useful life.
2. TCA is no longer in productive use	2. ARO is expensed immediately
3. ARO relates to an asset not previously capitalized.	3. ARO is expensed immediately.

5.4 Use of Consultants/ Third Parties

The Town must assess the level of expertise required for ARO evaluation and determine if resources are available internally before sourcing external consultants.

If a decision is made to contract a consultant for an ARO project, the process will be conducted in accordance with the Procurement Policy.

5.5 Annual Assessment

5.5.1 Assets acquired during the year must be assessed to ascertain any ARO implication including an estimate of the future date at which ARO liability for each class is expected to be payable.

5.5.2 A questionnaire (See **Attachment 1**) is completed annually by **all** departments.

5.5.3 The Town's ARO liability must be assessed annually to determine the impact of any new information on the ARO including but not limited to changes in ARO cost and timing of liability.

5.5.4 The annual accretion of liability (**See 5.7**) must be expensed. Assumptions surrounding accretion must also be assessed to ensure appropriateness.

PSAS 3280.49 states "*The carrying amount of a liability for an asset retirement Obligation should be reconsidered at each financial reporting date*."

5.6 Amortization of TCA

5.6.1 The amortization rates applied to capitalized retirement obligation costs is consistent with the useful lives set out in Appendix A of the Tangible Capital Asset policy.

5.7 Accretion of Liability

5.7.1 Retirement Obligation for each class will be accreted using an appropriate debenture interest rate as obtained annually from the Regional Municipality of Durham.

5.7.2 The annual accretion rate is rounded to the nearest 0.25%

6 TRANSITIONAL PROVISION

6.1 Transitional Options

PSAS 3280 provides users the option to use one (1) of the following transition methods:

a) **Prospective Application.** The following are noted under this method:
- Valuation and accounting for ARO are at adoption date.
- An assumption of no prior ARO asset or liability prior to adoption of standard.
- No requirement to restate prior years or to adjust Accumulated Surplus.

b) **Retroactive Application with Restatement.** The standard is applied as it would have been on the original date of the obligation and based on assumptions at that time. Historical discount rates are used in calculations.

The entity has the option to either restate the prior years or adjust the Opening Accumulated Surplus on implementation for the impact of prior year changes.

c) **Modified Retroactive with Restatement.** This option allows an entity to use the assumptions and discount rate for ARO at adoption date. ARO is also recognized at the beginning of the comparative year.

6.2 The Town will use the **Prospective Application Method** as of January 1, 2023.

6.3 ARO Liability. An estimate is made of the future date at which ARO liability will be payable for each asset class.

7 PRESENTATION AND DISCLOSURE

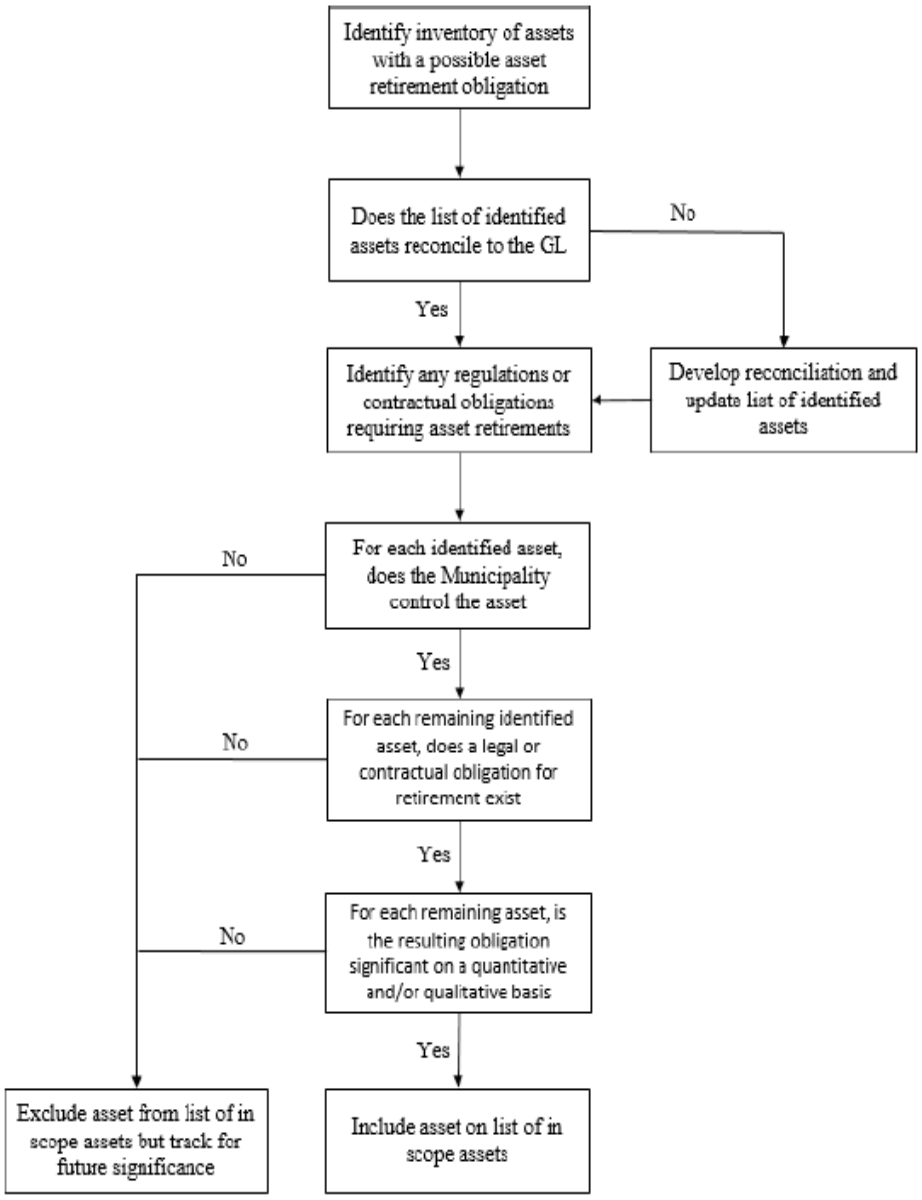
Consistent with PSAS 3280.63 the Town's disclosure in its annual financial statement will include, but not be limited to:

a) general description of the liability for an asset retirement obligation and the associated tangible capital asset (or a component thereof).

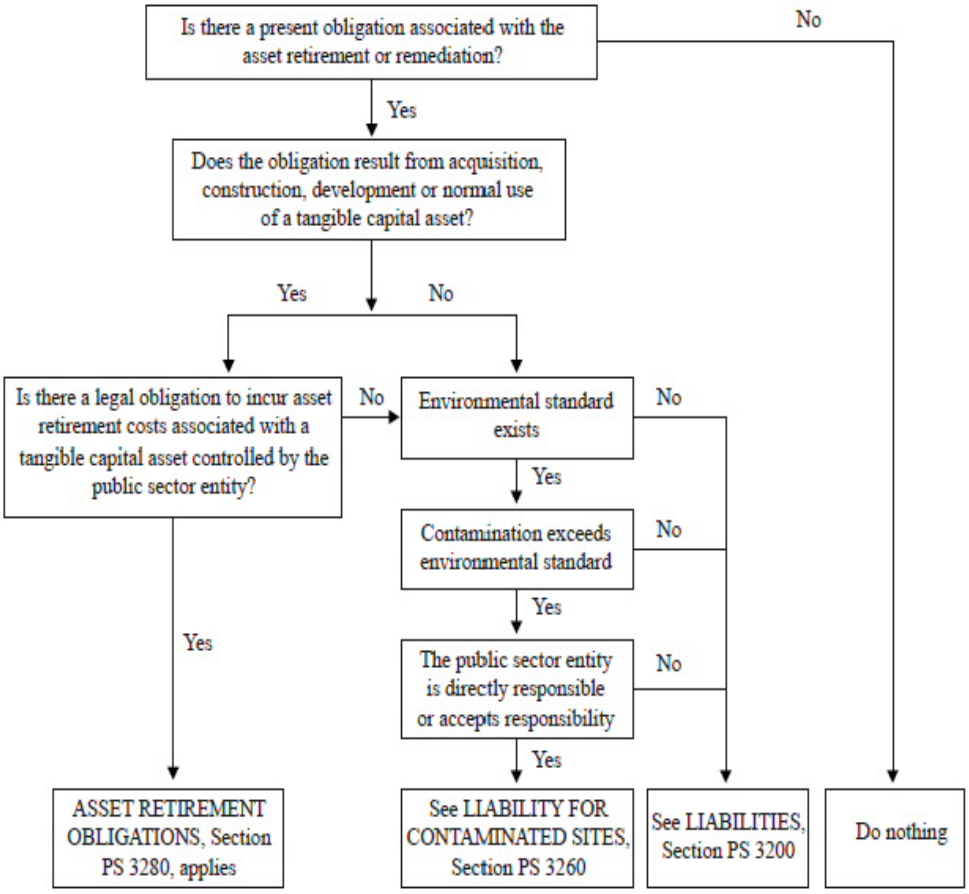
b) *the amortization method used for the asset retirement costs.*

c) *the basis for the estimate of the liability, including the estimated total undiscounted expenditures, the time period over which the undiscounted expenditures are to be incurred, the estimated timing of settlement of these expenditures and the discount rate used*.

APPENDIX 1 Decision Tree – Scoping Procedures



APPENDIX 2 – Decision Tree – Standard to be used



ATTACHMENT 1 - ASSET RETIREMENT OBLIGATION
ANNUAL CHECKLIST

Management Issued:	**Authored By:** Anthony Hamilton
Revised:	**Revision #:**
Department:	**Completed By (Name/Title):**
Year:	**Date Completed:**

	Questions	Y	N	N/A	Comments
1	Did the Town purchase/ acquire any assets during the year?				
1a	If so, was an assessment conducted to determine if there is any retirement obligation (e.g. through decommissioning, dismantling, remediating or post retirement monitoring) to be accounted for? Please provide evidence.				
2	Did the Government of Ontario or another government introduce legislation during the year for which the Town could incur retirement costs on an asset class, component or category?				
2a	If so, was an assessment conducted to determine if there is any retirement obligation (e.g. through decommissioning, dismantling, remediating or post retirement monitoring) to be accounted for? Please provide evidence.				
3	For existing AROs, were there any changes in available information relating to ARO costs that might impact previously reported asset retirement costs? For example: changes in designated sustance thresholds, timing of disposals or changes in regulatory requirements.				
3a	If so, please provide i) Documents supporting changes and ii) Rationale for impact of changes on previously reported ARO costs.				
4	Are you aware of any agreement, contract or legal obligation for which the Town could incur retirement costs on any of its asset class, component or category?				
4a	If so, was an assessment conducted to determine if there is any retirement obligation (e.g. through decommissioning, dismantling, remediating or post retirement monitoring) to be accounted for? Please provide evidence.				
5	Did the Town construct any assets for which there could potentially be retirement obligations?				
5a	Was due diligence performed to satisfy the existence or non-existence of retirement obligation for this constructed asset? Please provide evidence				
6	Did the Town enter in any agreement by which it could have retirement obligation through "Promissory Estoppel" (i.e. a promise conveyed to third party who acted on it in reasonable expectation that the promise would be executed)?				
6a	Was due diligence performed to satisfy the existence or non-existence of retirement obligation through Promissory Estoppel? Please provide evidence.				
7	Did the Town enter into any new lease agreements during the year?				
7a	If so, were there any end of term conditions (e.g. alteration, removal, replacement or return to original state) that could cause the Town to have a retirement obligation? Please provide evidence.				
8	Has contact been made with the Treasury Department at Durham Regional Municipality for updates in debenture interest rates?				
8a	Has the rate provided by Durham Regional Municipality (rounded up to nearest 0.25%), been included in calculations?				
9	If there are asset retirement obligation for the year being reviewed, did you confirm with Finance Department that appropriate entries are made in JDE and Fixed Asset Register?.				
9a	Did you obtain evidence from Finance Department on recording the year's asset retirement obligation?				
10	Were there any retirement obligation settlement made during the year?				
10a	If there were settlement(s) during the year, please provide evidence and rationale supporting: i) The accounting entries ii) Any residual ARO write off or adjustment required at settlement date.				

Town of Ajax Report

Report To:	General Government Council (GGC)
Prepared By:	Aaron Burridge, Deputy Fire Chief
Report #:	AFES-2022-03
Subject:	**Contract Award – Supply & Delivery ~ Pumper/Rescue Fire Truck**
Ward(s):	ALL
Date of Meeting:	December 12, 2022
Reference:	RFP #22007
	1023211.5840

Recommendation:

1. **That the report on the contract award to City View Specialty Vehicles in the amount of $1,463,276.55 (inclusive of all taxes) for the supply and delivery of a Pumper/Rescue Fire Truck be received for information.**

2. **That Council approve funding of $270,725.86 to be allocated to Capital No. 1023211 from Vehicle/Equipment Replacement Reserve.**

Background:

As provided for under the Purchasing By-Law, this contract was awarded by the CAO and Director of Finance/Treasurer and Mayor, during Council's Recess Period.

Pumper/Rescue P49 has been in service since 2005. Due to the age of this fire apparatus, it is lacking many updated safety devices, sensors, and anti-roll features. Currently the apparatus has been moved into a spare truck role to respond, as required, and is a temporary replacement for first line apparatus when these are out of service. It is in the Town's best interests to move forward with this planned replacement to continue to provide the essential emergency services to its residents.

Discussion:

Request for Proposal (RFP) documents were posted to the Town's eBidding platform and 9 prospective Proponents registered for the opportunity with Proposals being received from 3 of these, prior to the closing on September 13, 2022.

NAME OF PROPONENTS
City View Specialty Vehicles
Commercial Emergency Equipment
Dependable Emergency Vehicles

The following is the Proposal Evaluation Criteria used for this RFP:

MANDATORY SUBMISSION REQUIRMENTS (firms not meeting the mandatory requirements may be deemed non-responsive & subject to rejection)		
Insurance	Pass/Fail	
WSIB	Pass/Fail	
EVALUATION CRITERIA	**WEIGHTED POINTS**	**TOTAL AVAILABLE POINTS**
QUALIFICATIONS & EXPERIENCE		
Proof of FAMA Membership	5	10
Proof of Required Certifications/Licenses	5	
QUALITY OF PROPOSAL SUBMISSION		
Responsiveness/Completeness of Submission	5	35
Demonstrated Willingness to Comply with Terms of the Bid Document	5	
Evaluation of Warranty Documents	10	
Appropriate Completion & Justification of Any Items Listed in the Table of Exceptions	15	
APPROACH & METHODOLOGY		
Demonstrated Understanding of the Requirements	7	25
Detailed Schedule for Construction of Apparatus	8	
Ability to Meet Time Estimates/Deadlines for Apparatus Delivery	10	
PRICING		
Cost Effectiveness of the Proposal		30
TOTAL POINTS		100
INTERVIEW (if applicable)		50
GRAND TOTAL		150

An Evaluation Committee, made up of Fire & Emergency Services staff, reviewed all of the Proposals received. Based on the evaluation criteria, specified in the RFP document, City View Specialty Vehicles was the highest scoring Proponent and met all of the needs of the Town. Commercial Equipment Group scored the second highest, and Dependable Emergency Vehicles scored the lowest.

Listed below is the Bids received:

NAME OF BIDDER	TOTAL BID AMOUNT
Dependable Emergency Vehicles	$1,328,501.45
City View Specialty Vehicles	$1,463,276.55
Commercial Equipment Group	$1,464,797.89

Financial Implications:

1023211.5840 – Fleet – Repl. P49 Pumper Rescue

Approved Capital Budget	2021 & 2022		$ 1,187,000.00
Contract (net of HST rebate)		$1,317,725.86	
Replacement Equipment and Tools		$ 110,000.00	
Contingency and Travel		$ 30,000.00	
			$1,457,725.86
Over Budget			($ 270,725.86)

Following the approval of the initial Capital Budget Sheet, costs related to the replacement of this fire apparatus have risen largely related to inflationary pressures partially attributed to COVID-19, supply chain issues, world events and the recent decrease in the value of the Canadian Dollar versus the American Dollar. The decrease of the Canadian Dollar has a direct impact upon the cost of fire apparatus as the chassis and many components for the apparatus are built in the United States.

The contingency will be used to fund any necessary design changes that may be required to improve the functionality of the Apparatus.

Additional funding, not to exceed $270,725.86, will be allocated from Vehicle/Equipment Replacement Reserve.

The Capital Detail sheet is attached for information

Communication Issues:

N/A

Relationship to the Strategic Plan:

Investing in our community – modernizing existing municipal infrastructure and other assets.

Conclusion:

Staff awarded the contact for the supply and delivery of a Pumper/Rescue Fire Truck to City View Specialty Vehicles during Council's recess period, all in accordance with the Town's Purchasing By-Law.

Attachments:

ATT-1: ATT-1: Capital Account No. 1023211 – Fleet – Repl. P49 – Pumper Rescue

Prepared by:

Aaron Burridge – Deputy Fire Chief, Fire & Emergency Services

Submitted by:

Dave Lang – Fire Chief, Fire & Emergency Services

Approved by:

Shane Baker – Chief Administrative Officer

Approved by:

Dianne Valentim – Director of Finance / Treasurer

Approved by:

Shaun Collier – Mayor – Town of Ajax

TOWN OF AJAX

2022 CAPITAL BUDGET / 2023-2031 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Project Name **Fleet & Equipment Replacement Program - Fire**
Project Number LC020100

Program Description

The Fire Fleet & Equipment Replacement program identifies vehicles and equipment at the end of their expected life cycle due for replacement in the Fire & Emergency Services department. Currently the Town maintains 10 Fire Trucks (Pumper Rescues, Pumper Tanker, Aerial Ladders and Heavy Rescue), 12 vehicles and 1 trailer used for education on fire prevention and public safety.

Vehicles and equipment at the end of their expected life cycle require replacement in order to maintain the current service levels each asset supports. Extending the life cycle of vehicles may increase maintenance and repair budgets and could result in significant service delivery interruptions caused by unplanned mechanical failures.

EXPENDITURES / FUNDING

	2022	2023	2024	2025-2031	Total
Expenditures					
1023211 Repl FES Pumper P49 2021	**842,900**	**-**	**-**	**-**	**842,900**
1032211 Repl. Defibrillators	**35,000**	**-**	**-**	**35,000**	**70,000**
1032311 Repl. SCBA Cylinders 2022	**40,700**	**-**	**-**	**-**	**40,700**
1032411 Pumper Apparatus Unit #P45	**374,100**	**842,900**	**-**	**-**	**1,217,000**
1032511 Dep Chief SUV #10042 Repl 2022	**60,000**	**-**	**-**	**-**	**60,000**
1032611 Dep Chief SUV #10043 Repl 2022	**60,000**	**-**	**-**	**-**	**60,000**
FES001 Radio System Hardware Upgrade	**-**	**800,000**	**-**	**800,000**	**1,600,000**
FES003 Repl. Air Monitors	**-**	**50,000**	**-**	**50,000**	**100,000**
FES006 Repl. Hazmat Equipment	**-**	**-**	**-**	**90,000**	**90,000**
FES007 SCBA Air Pack Update	**-**	**250,000**	**-**	**-**	**250,000**
FES010 Repl Fire Fighter Survival Maze Training Prop	**-**	**-**	**-**	**80,000**	**80,000**
FES012 Repl. Tech Rope Rescue Equipment	**-**	**-**	**20,000**	**52,000**	**72,000**
FES013 Repl. Fire Hazard Trailer #395-1 (2002)	**-**	**-**	**-**	**160,000**	**160,000**
FES015 Repl. Thermal Imaging Cameras	**-**	**-**	**90,000**	**90,000**	**180,000**
FES017 Repl. SCBA Air pack	**-**	**-**	**-**	**1,000,000**	**1,000,000**
FES018 Repl. Communications Ergo Desk	**-**	**-**	**-**	**35,000**	**35,000**
FES019 Repl. SCBA Air Compressor- HQ	**-**	**-**	**-**	**40,000**	**40,000**
FES026 Repl. Breathing air compressor - HQ	**-**	**-**	**-**	**40,000**	**40,000**
FES027 Repl. SCBA test equipment (posi check)	**-**	**-**	**-**	**20,000**	**20,000**

TOWN OF AJAX

2022 CAPITAL BUDGET / 2023-2031 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Project Name **Fleet & Equipment Replacement Program - Fire**

Project Number LC020100

EXPENDITURES / FUNDING

	2022	2023	2024	2025-2031	Total
Expenditures					
FES033 Repl. SCBA Cylinders 2023-2031	-	29,600	22,200	196,300	248,100
FES034 Computer Aided Dispatch (CAD) System Repl	-	-	1,200,000	-	1,200,000
FLT089 Aerial Fire Apparatus Unit #A42 (2006)	-	630,000	1,470,000	-	2,100,000
FLT093 Pumper Apparatus Unit #P410 (2007)	-	-	374,100	842,900	1,217,000
FLT094 Crew Cab Pickup Unit #15948 (C48) (2015)	-	-	77,000	-	77,000
FLT096 Pumper Apparatus Unit P47 (2010)	-	-	-	1,248,200	1,248,200
FLT097 Hybrid Sedan Unit #18301 (C413)(2018)	-	-	-	35,000	35,000
FLT156 Hybrid Sedan 15303 (2015)	-	38,000	-	-	38,000
FLT157 Hybrid Sedan 17304 (2017)	-	38,000	-	-	38,000
FLT158 Hybrid Sedan R10012 (2010)	-	38,000	-	-	38,000
FLT166 Hall Mower 680-6 (2001)	-	-	-	40,000	40,000
FLT167 SUV 21341 (2021)	-	-	-	60,000	60,000
FLT168 Tanker T48 (2013)	-	-	-	1,300,000	1,300,000
FLT169 Passenger Van 21601 (2021)	-	-	-	55,000	55,000
FLT170 Passenger Van 21602 (2021)	-	-	-	55,000	55,000
FLT171 SUV Response 21345 (2021)	-	-	-	100,000	100,000
FLT172 SUV 22342 (2022)	-	-	-	60,000	60,000
FLT173 SUV 22343 (2022)	-	-	-	60,000	60,000
FLT174 Hybrid Sedan 22306 (2022)	-	-	-	50,000	50,000
FLT175 Pickup Truck 201203 (2020)	-	-	-	55,000	55,000
FLT176 Hybrid Sedan 23301 (2023)	-	-	-	50,000	50,000
FLT177 Hybrid Sedan 23302 (2023)	-	-	-	50,000	50,000
FLT178 Hybrid Sedan 23303 (2023)	-	-	-	50,000	50,000
FLT179 Hybrid Sedan 22306 (2022)	-	-	-	50,000	50,000
FLT180 Aerial Ladder 17A41 (2016)	-	-	-	1,500,000	1,500,000
Total Expenditures	1,412,700	2,716,500	3,253,300	8,349,400	15,731,900
Financing					
Vehicle/Equipment Replacement Reserve	1,412,700	2,716,500	2,653,300	8,331,900	15,114,400
Recoveries - Municipalities	-	-	600,000	17,500	617,500
Total Financing	1,412,700	2,716,500	3,253,300	8,349,400	15,731,900
Annual Operating Costs	-	-	*190,000*	-	*190,000*

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Sarah Moore, Legislative Specialist
Report #:	LIS-2022-20
Subject:	**2022-2026 Committees & Boards**
Ward(s):	All
Date of Meeting:	December 12, 2022
Reference:	N/A

Recommendations:

1. **That the following Advisory Committees, be re-established for the 2022-2026 term:**

   - **Accessibility Advisory Committee**
   - **Heritage Advisory Committee**

2. **That the following quasi-judicial bodies, be re-established for the 2022-2026 term:**

   - **Committee of Adjustment**
   - **Property Standards Appeals Committee / Animal Services Appeals Committee**

3. **That the updated Committee & Board Policy 047 (ATT-2) be approved;**

4. **That the Terms of Reference for the committees and boards (ATT-3-6) named above be approved;**

5. **That the 2023 Committee Meeting Schedule (ATT-7) be approved; and**

6. **That staff undertake the recruitment actions necessary to give effect to these recommendations.**

Background:

The Town of Ajax seeks to actively engage the advice and recommendations of Ajax residents through the establishment of advisory committees and boards. The establishment of such committees is supported by various provincial statutes, and Town of Ajax Policy 047 Committee & Boards policy and procedure. Staff are required to review the existing structure and offer recommendations on the Committee & Board structure to Council at the commencement of a new Council term.

The Committee and Board structure was last presented by staff at the beginning of the 2018-2022 term of Council.

Discussion:

Staff conducted a comprehensive review of the Town's Committees and Boards in consultation with existing Members and staff liaisons. The review and proposed updates address administrative changes to Policy 047 relating to the new honoraria schedule, land acknowledgement at meetings, and electronic/hybrid meeting participation.

Committee Member Experience and Satisfaction Survey

Staff prepared an end-of-term Committee & Board Evaluation Survey to collect feedback from Members relating to their experience, as well as suggestions for improvement in the new term with an approximate 80% response rate (20 responses from the 25 current members). A summary of responses is attached as ATT-1 to this report.

Of those participants, 95% express interest in re-applying, which based on the compliment of thirty available appointments, represents an estimated 63% return rate. This is a positive number being that many Members stepped down from their roles due to personal challenges and relocation because of the pandemic. This approximate return rate allows for continued legacy leadership, which is vital to the effectiveness of the Committee or Board, while providing the opportunity to introduce new membership perspectives and participation.

Respondents expressed a strong desire for the opportunity for hybrid meeting participation, and continued support for the annual rotation of Committee and Board Chairs. While respondents strongly agree that the Town Committee and Board composition is reflective of the Ajax community, it is suggested to engage a wider age group of members.

For the 2018-2022 Term, staff introduced rotation of the advisory committee Council representative mid-way through the term. Respondents indicated the rotation was generally positive, as it allowed for a greater Council awareness of the Committees' work as each Councillor brought forth different perspectives and interests.

Overall, Committee and Board Members unanimously expressed that through their experience they have made meaningful contributions and maintained positive relationships with staff.

General Structure and Administration

Legislative Services is responsible for the overall management and administration of the committee and board structure. All advisory committees are provided with a fixed mandate and draft work plan, to be developed by the committee staff liaison(s) in accordance with Council priorities, staff projects and initiatives. One to two staff liaisons whose work portfolio aligns with the mandate of the committee are appointed to each of the advisory committees for the purpose of attending monthly meetings, providing content, information, direction, and feedback on Committee recommendations. A workshop will be provided for all staff liaisons to committees and boards in advance of inaugural committee meetings, to review roles and responsibilities.

The following Committees and Boards are proposed to be re-established for the 2022-2026 term:

- Accessibility Advisory Committee
- Heritage Advisory Committee

- Committee of Adjustment
- Property Standards Appeals Committee/Animal Services Appeals Committee

Terms of reference for each body will be included as part of each establishment bylaw (ATT-4-7).

Updates to Policy & Governance Documents

Several sections of the Committees & Boards Policy 047 (ATT-2) have been amended or added:

12. **Term of Appointment:** to eliminate barriers to recruitment and allow for an opportunity of continued leadership legacy on Committees and Boards, it is recommended that the existing term limit for the Committee of Adjustment and Property Standards/Animal Services Appeals Committees be removed. Staff will continue to strive for a balance of new and returning membership throughout the recruitment process, that represents a variety of skills and experiences.

24. **Financial Matters**: S. 24.3 Member Remuneration has been updated to include reference to the 2022-2026 Committees and Boards Honoraria Schedule *(approved by Council in September 2022).*

25. **Remote Meeting Participation**: this section has been added to identify provisions for electronic and hybrid meeting participation.

26. **Recording and Broadcasting of Meetings**: this section has been added to provide for recording and broadcasting of Committee and Board meetings. As an accommodation to public access and transparency during the pandemic, Committee and Board meetings have been livestreamed, with recordings posted to the Town's website.

27. **Acknowledgement of Traditional Treaty Lands**: this section has been added to align with the Council direction to have the Town's land acknowledgement read at the commencement of public meetings.

The 2023 Committee and Board Meeting Schedule (ATT-7) identifies that following the completion of renovations, meetings will be held in Council Chambers to allow for hybrid participation and livestreaming. Fully-electronic meetings will be utilized until renovations are complete.

Recruitment & Orientation

Recruitment for committee and board membership is scheduled to take place from December 19, 2022 – January 16, 2023. The process will engage a wide cross-section of Ajax residents with the purpose of populating committees with individuals representative of the Ajax community. A virtual public information session is tentatively scheduled for Wednesday, January 11, 2023.

Approximately 30 board/committee members will be sought during the recruitment initiative. Staff liaisons will continue to participate in the application screening and interview process, coordinated by Legislative Services. Member appointment recommendations will be presented in a staff report scheduled for the February 21, 2023 General Government Committee meeting.

General and committee/board-specific orientation and training sessions will be held in March 2023.

Financial Implications:

Costs pertaining to committees and boards (meeting supplies, orientation, education and training opportunities, honoraria etc.) are included in the 2023 operating budget.

Communication Issues:

To assist with encouraging applications for the 2022-2026 Term and promoting a broader understanding of the Town's Committees and Boards, staff will be coordinating a virtual public information session on the evening of January 11, 2023. This session will provide prospective applicants with the opportunity to speak with outgoing committee members and staff liaisons and learn more about roles, responsibilities, and mandates. The Legislative Specialist will continue to work with Corporate Communications to assist with publicizing recruitment and creating a public profile for the Town's Committees and Boards throughout the forthcoming term.

Relationship to the Strategic Plan:

1. Connecting our community: Creating a more engaged community, and
2. Leading in our community: Strengthening corporate governance and innovation.

Conclusion:

Pending Council approval for the establishment of the 2022-2026 Committee and Board structure, staff will begin to undertake the recruitment and appointment process immediately.

Attachments

ATT-1: 2018-2022 Committee & Board Member Evaluation – Summary Report
ATT-2: Committee & Board Policy 047
ATT-3: By-law XX to Establish a Committee of Adjustment & Terms of Reference
ATT-4: By-law XX to Establish a Property Standards/Animal Services Appeals Committee & Terms of Reference
ATT-5: By-law XX to Establish an Accessibility Advisory Committee & Terms of Reference
ATT-6: By-law XX to Establish a Heritage Advisory Committee & Terms of Reference
ATT-7: 2023 Committee & Board Meeting Schedule

Prepared by:

Sarah Moore – Legislative Specialist

Submitted by:

Nicole Cooper – Director of Legislative & Information Services/Clerk

Approved by:

Shane Baker – Chief Administrative Officer

ATT-1

2018-2022 Committee & Board Evaluation

Thank you for contributing your time and experience to Ajax Council's Advisory Committees and Quasi-Judicial Boards during the 2028-2022 term. Staff currently are undertaking a review of the Town's Committees & Boards and would appreciate your feedback through completion of the following voluntary survey. This feedback will assist staff to ensure that the Town provides Committees & Boards that are structured and run in an efficient and consultative manner.

This survey requires approx. 10 minutes to complete. All responses will remain anonymous and reported in aggregate with other responses received from survey participants.

Alternate formats of this survey are available on request by contacting sarah.moore@ajax.ca or calling 905-619-2529 ext. 3347.

Thank you in advance for your participation and comments.

ATT-1

1. **Which Committee/Board are you currently a Member of?**
    - Accessibility Advisory Committee
    - Committee of Adjustment
    - Heritage Advisory Committee
    - Property Standards/Animal Services Appeals Committee

2. **For how many years have you been a Member?**
    - 1-4 years
    - 5-9 years
    - 10+ years

3. **Do you plan to return for another term?**
    - Yes
    - No
    - **If no, please share the reason, if comfortable.**

4. **Is the mandate of the Committee/Board clear, appropriate, and relevant?**
    - Yes
    - No

5. **Do Committee/Board Members receive adequate orientation on their role and responsibilities?**
    - Yes
    - No
    - **If no, please share any suggestions for improvement.**

6. **How do you prefer to participate in Committee/Board meetings?**
    - In-person
    - Virtually (online/by phone)
    - Hybrid (option for in-person or virtual participation)

7. **Do you feel Committee/Board meetings run effectively, with adequate time to cover all agenda items, including discussion and questions?**
    - Yes
    - No
    - **If no, please share any suggestions for improvement.**

8. **Do the Committee/Board meetings support respectful, open, and engaging opportunities to participate?**
    - Yes
    - No
    - **If no, please share any suggestions for improvement.**

9. **Should the Role of Committee/Board Chair rotate annually?**
    - Yes
    - No

- **Comments:**

10. **Reflecting on the Membership of your Committee/Board:**
    a. **do you feel that it is reflective of the Ajax Community?**
        - Yes
        - No
        - **If no, please share any suggestions for improvement.**

    b. **do you feel that Members bring with them the collective skill and experience to fulfill the Committee/Board's mandate?**
        - Yes
        - No

    c. **do you feel that there are enough Members appointed to the Committee/Board?**
        - Yes
        - No
        - **If no, should the number be increased or decreased?**

11. **Is the quality of presentations made to the Committee/Board appropriate?**
        - Yes
        - No
        - **If no, please share any suggestions for improvement.**

12. **Does the Committee/Board maintain good working relationship with staff and Council?**
        - Yes
        - No
        - **If no, please share any suggestions for improvement.**

13. **Does the Committee/Board bring forward appropriate recommendations and fulfill its mandate?**
        - Yes
        - No

14. **Do you feel that you are able to meaningfully contribute to the Committee/Board?**
        - Yes
        - No
        - **If no, please share any suggestions for improvement.**

15. **For Advisory Committee Members, please share any feedback on the rotation of Councillor representation mid-way through the term.**

16. **Please share any comments you may have regarding the frequency and scheduling *(start time, day vs. evening, day of the week, etc.)* of Committee/Board meetings. Is the current schedule appropriate or do you have suggestions for improvement?**

17. **Overall, what do you feel works well with your Committee/Board?**

18. **Overall, do you have any suggestions to improve the Committee/Board you participated in?**

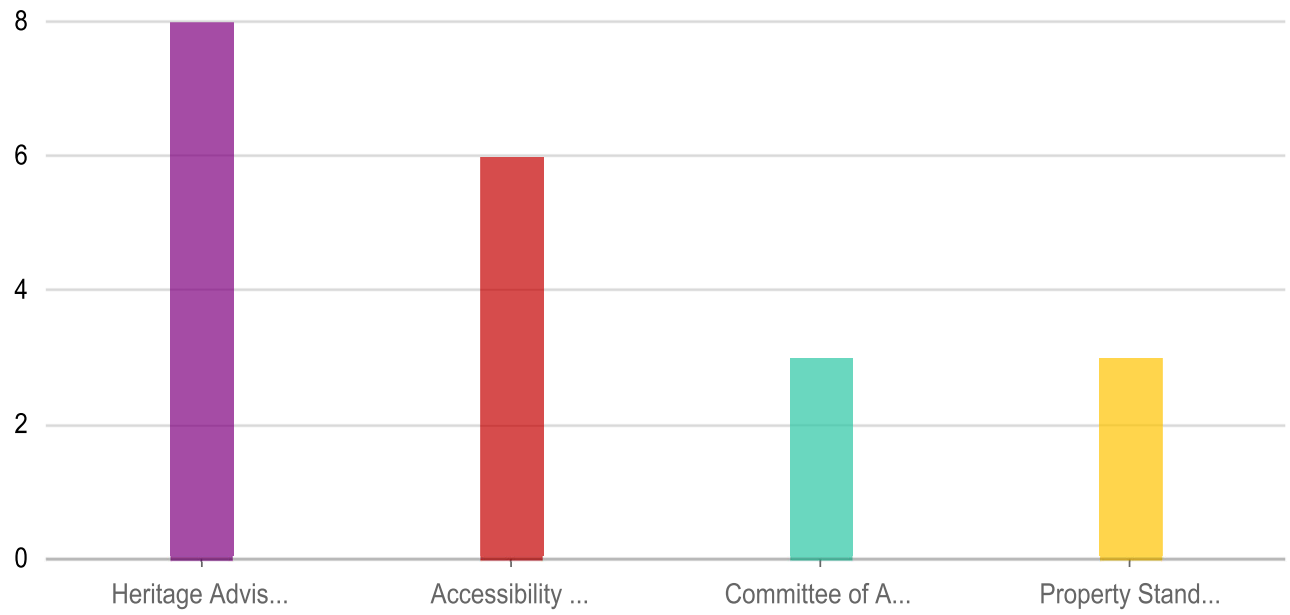
19. **Do you have any suggested projects/new directions that you feel the Committee/Board should explore during the next term?**

20. **Please share any additional comments you may have.**

2018-2022 Committee & Board Evaluation

Evaluation

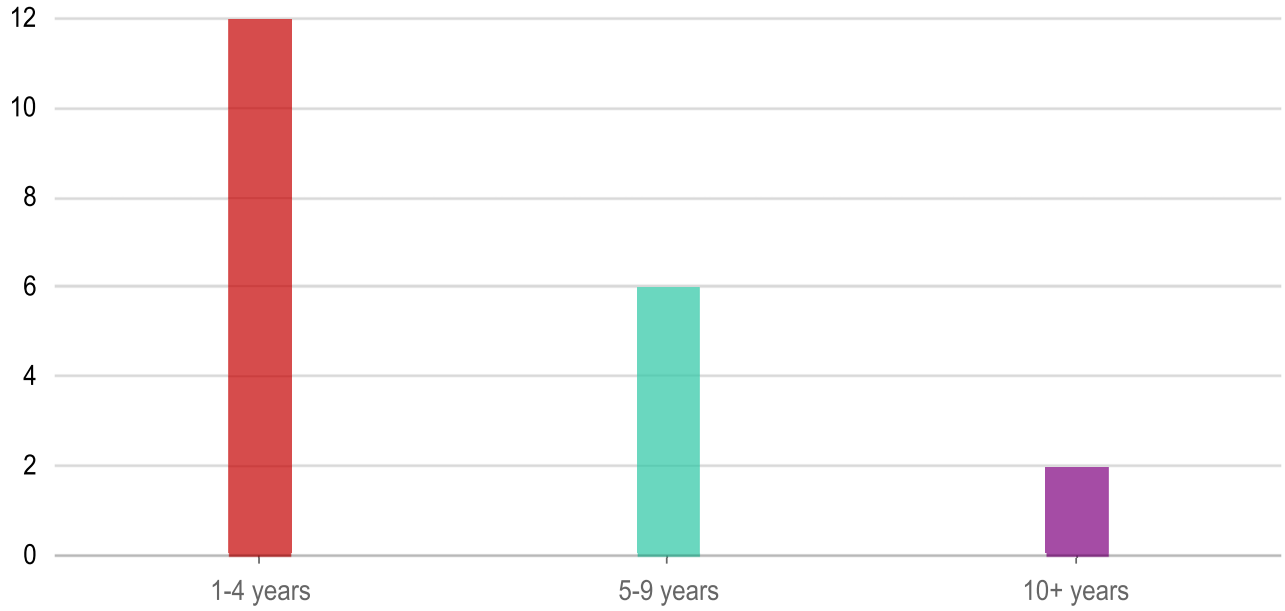
Which Committee/Board are you currently a Member of? *



Answers	Count	Percentage
Heritage Advisory Committee	8	40%
Accessibility Advisory Committee	6	30%
Committee of Adjustment	3	15%
Property Standards/Animal Services Appeals Committee	3	15%

Answered: 20 Skipped: 0

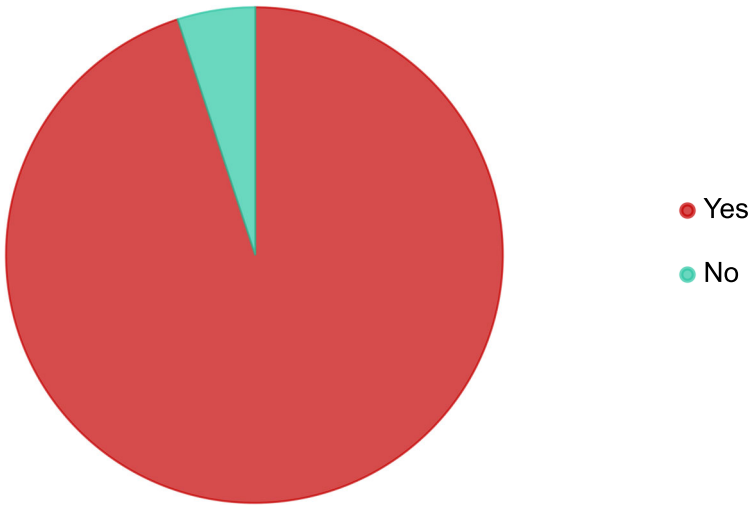
For how many years have you been a Member? *



Answers	Count	Percentage
1-4 years	12	60%
5-9 years	6	30%
10+ years	2	10%

Answered: 20 Skipped: 0

Do you plan to return for another term? *



Yes	19	95%
No	1	5%

Answered: 20 Skipped: 0

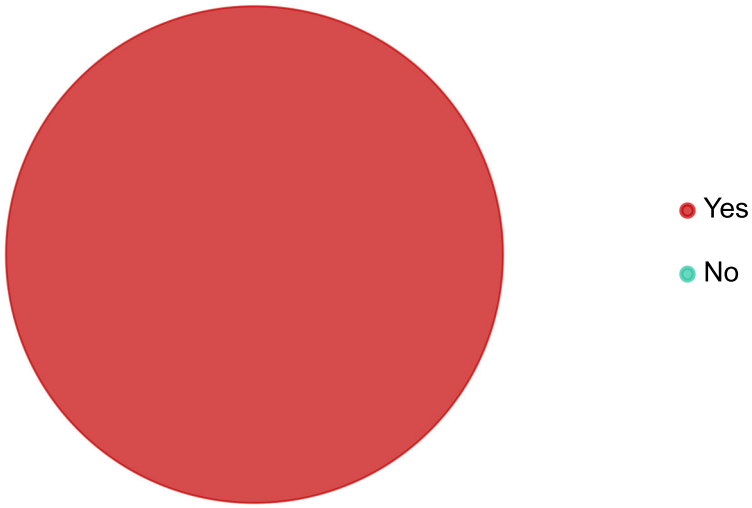
If you're comfortable with sharing, can you tell us why you're not returning for another…

The word cloud requires at least 20 answers to show.

Response	Count
Domestic circumstances that would not make me able to dedicate my time fully to the committee.	1

Answered: 1 Skipped: 19

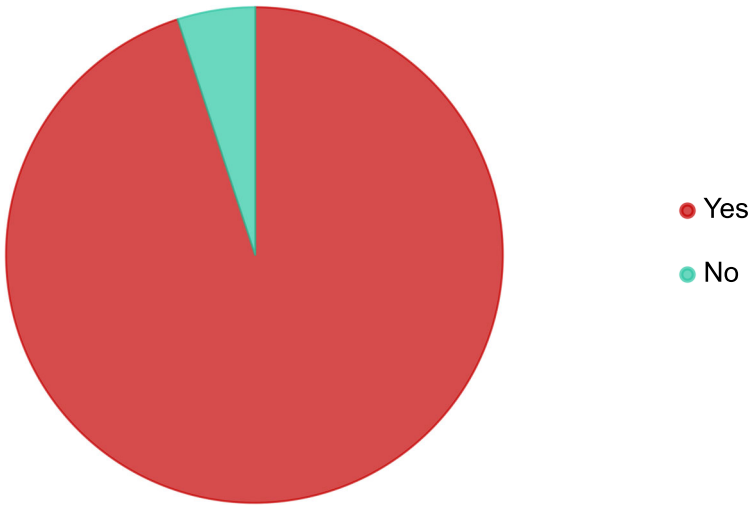
Is the mandate of the Committee/Board clear, appropriate, and relevant? *



Answers	Count	Percentage
Yes	20	100%
No	0	0%

Answered: 20 Skipped: 0

Do Committee/Board Members receive adequate orientation on their role… *



Answers	Count	Percentage
Yes	19	95%
No	1	5%

Answered: 20 Skipped: 0

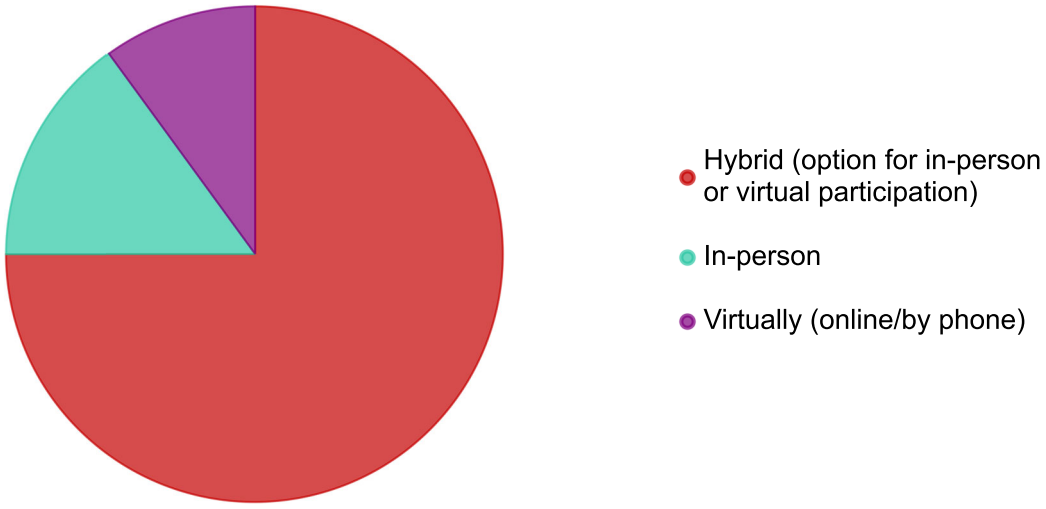
Do you have any suggestions on improving our orientation process?

The word cloud requires at least 20 answers to show.

Response	Count
Each term maybe do meeting to solely review the roles and responsibilities of members as some members become very passionate about personal issues rather than committee issues.	1

Answered: 1 Skipped: 19

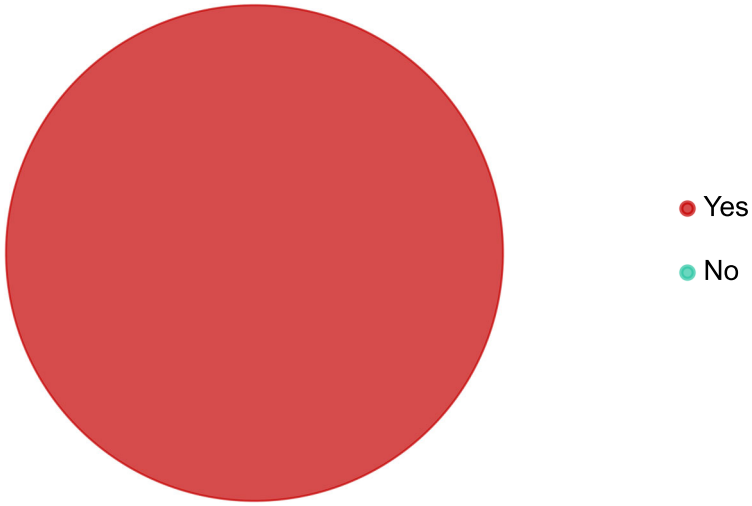
How do you prefer to participate in Committee/Board meetings? *



Answers	Count	Percentage
Hybrid (option for in-person or virtual participation)	15	75%
In-person	3	15%
Virtually (online/by phone)	2	10%

Answered: 20 Skipped: 0

Do you feel Committee/Board meetings run effectively, with adequate ti… *



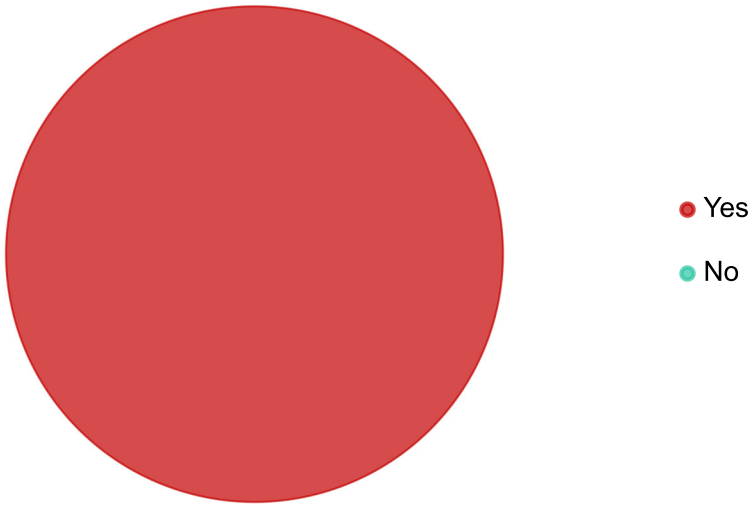
Yes	20	100%
No	0	0%

Answered: 20 Skipped: 0

Do you have any suggestions on improving meetings in the future?

There are no answers to this question yet.

Do the Committee/Board meetings support respectful, open, and engagi… *



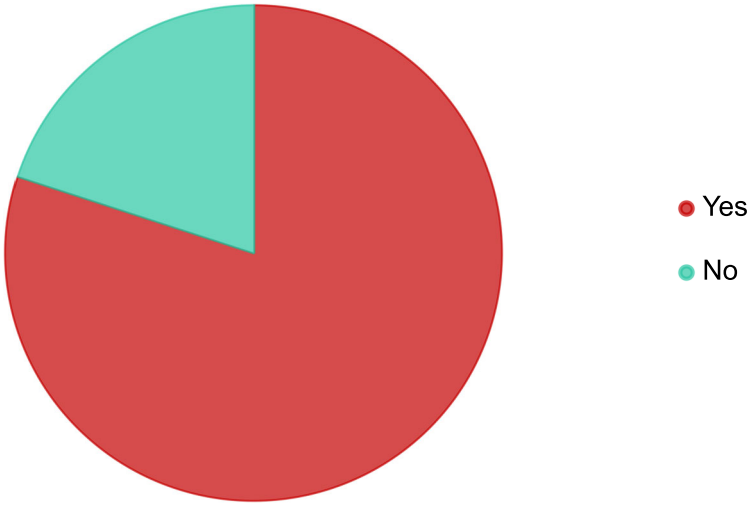
Answers	Count	Percentage
Yes	20	100%
No	0	0%

Answered: 20 Skipped: 0

Do you have any suggestions for improvement?

There are no answers to this question yet.

Should the Role of Committee/Board Chair rotate annually? *



Answers	Count	Percentage
Yes	16	80%
No	4	20%

Answered: 20 Skipped: 0

Any comments on the matter?

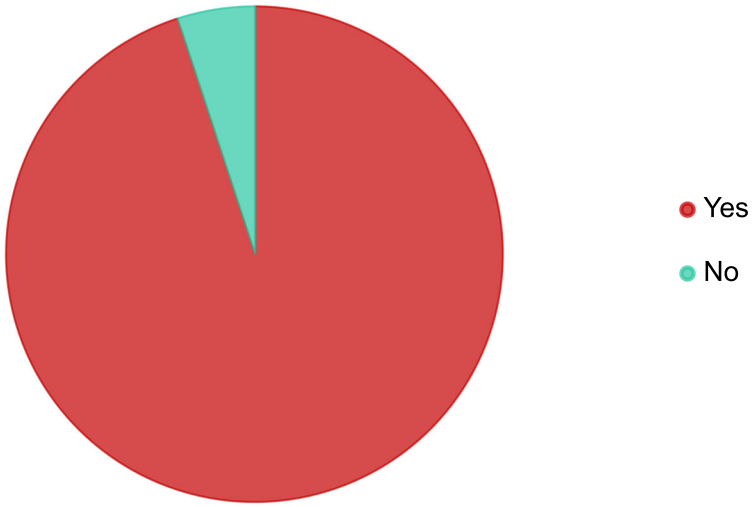
The word cloud requires at least 20 answers to show.

Response	Count
This supports greater participation on an individual level just knowing that you will be required to chair at some future date.	1
The HAC does it semi annual and I think it worked well. maybe even every 4 months rotate thru the c hair	1
Sharing is always a responsible thing to do even if it means returning the same Chair for a second ter m.	1

Rotation to provide opportunity for others	1
Rotating the Chair position gives excellent experience to role holders, and a chance for for different voices to be heard.	1
Loved working on this committee. Mike S is an excellent communicator and Town representative. Sarah is a great help and organizer.	1
It is important that each committee member shares role of chair and vice chair	1
If a chair wishes to continue the position longer than a year than the position should be voted on by the committee. Also if a member is not comfortable being the chair they can decline the nomination.	1
I"d prefer a consistent Chair as it leads to consistancy with respect to who to contact and stability of how the meeting are run. I also feel some members may feel obligated to be a chair (although they have been asked) and will feel uncomfortable with the role	1
I would also support an elected Chair and Vice-Chair.	1
I think the committee members should vote and choose who they wish to Chair/represent the committee.	1
I think our committee does a good Job of rotating as members' availability dictates	1
I am happy to act as chair whenever necessary, but given that this would be my last term on the committee I think others would benefit from the opportunity.	1
Consistency in Chairperson role has a favourable impact to the overall running of the Committee, in my opinion.	1

Answered: 14 Skipped: 6

a) Do you feel that it is reflective of the Ajax Community? *



Answers	Count	Percentage
Yes	19	95%
No	1	5%

Answered: 20 Skipped: 0

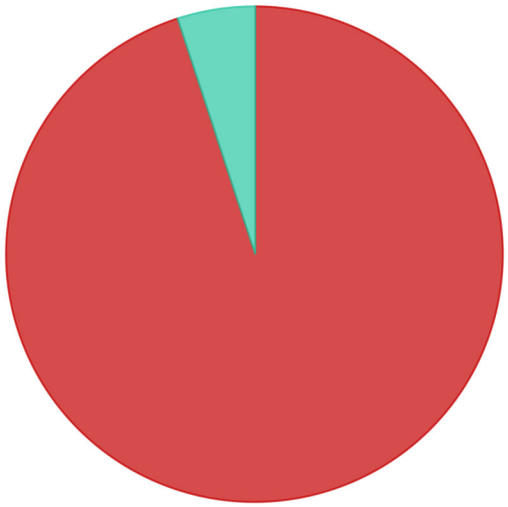
Any suggestions on how to improve?

The word cloud requires at least 20 answers to show.

Response	Count
improve on wider age group disparity in committee members	1

Answered: 1 Skipped: 19

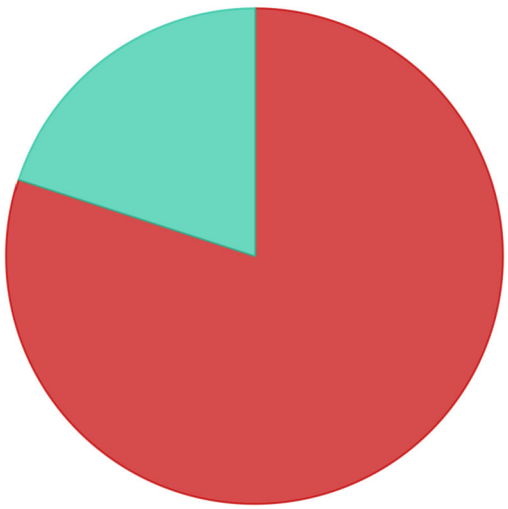
b) Do you feel that Members bring with them the collective skill and… *



Answers	Count	Percentage
Yes	19	95%
No	1	5%

Answered: 20 Skipped: 0

c) Do you feel that there are enough Members appointed to the… *



Answers	Count	Percentage

Yes	16	80%
No	4	20%

Answered: 20 Skipped: 0

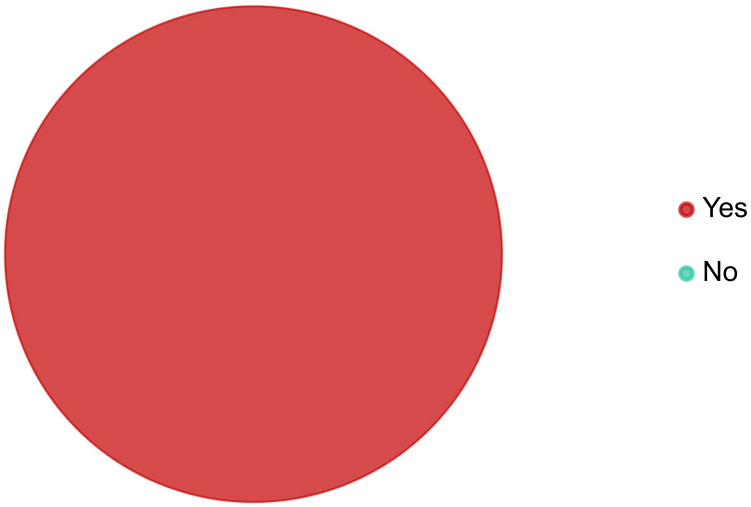
If no, should the number be increased or decreased?

The word cloud requires at least 20 answers to show.

Response	Count
Increased. We started with more members than show up. I was under the impression that you miss 2 consecutive meetings without excuse you get replaced. Should have alternates. Quorum has been dic ey. At least those who attend do so regularly	1
increased to allow for a more varied opinion	1
Increased	1
I feel that we are always concerned about quorum as we have one member who has not been presen t. Should be replaced. The committee would benefit from having "reserve" member in case of situatio ns like this, just like juries have alternates. Possibly a past committee member who would like to retai n some involvement if needed but because there is a term limit is not permitted to stay on officially	1

Answered: 4 Skipped: 16

Is the quality of presentations made to the Committee/Board appropriate? *



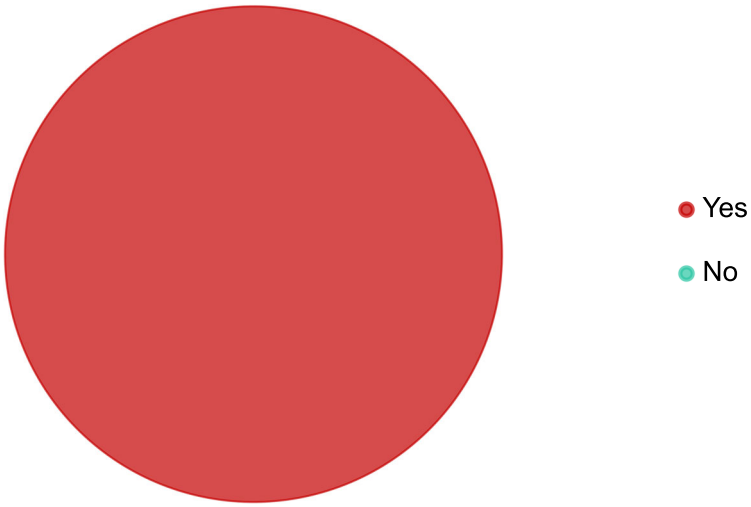
Answers	Count	Percentage
Yes	20	100%
No	0	0%

Answered: 20 Skipped: 0

Any suggestions on how to improve their quality?

There are no answers to this question yet.

Does the Committee/Board maintain good working relationship with staf… *



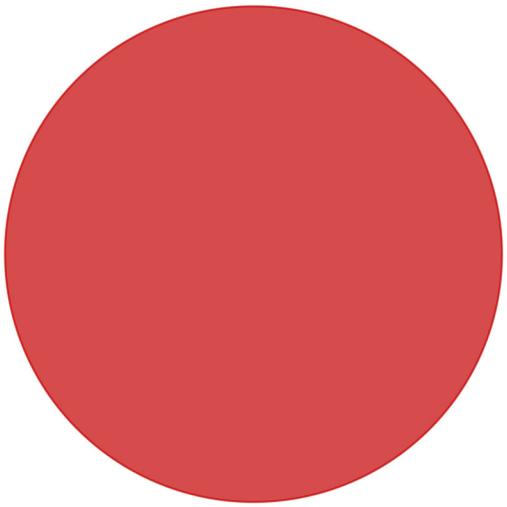
Answers	Count	Percentage
Yes	20	100%
No	0	0%

Answered: 20 Skipped: 0

Any suggestions on how to improve relations?

There are no answers to this question yet.

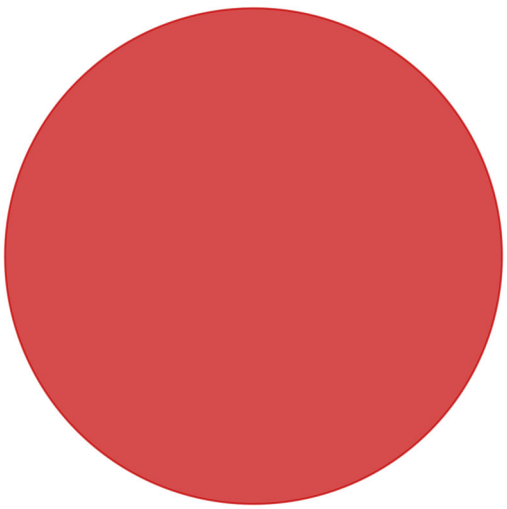
Does the Committee/Board bring forward appropriate recommendations… *



Answers	Count	Percentage
Yes	20	100%
No	0	0%

Answered: 20 Skipped: 0

Do you feel that you are able to meaningfully contribute to the… *



Answers	Count	Percentage

Yes	20	100%
No	0	0%

Answered: 20 Skipped: 0

Do you have any suggestions for improvement?

There are no answers to this question yet.

For Advisory Committee Members, please share any feedback on the rotation of…

The word cloud requires at least 20 answers to show.

Response	Count
Well, it can have pros and cons. Sometimes I'm sure you can get a different style and engagement fro m the participating Conseillor. I I am very pleased with the commitment and dedication from both. It is an education from them as well, which is a good thing	1
This is positive in that it builds Council awareness of the committee's work.	1
This is an good idea and should've continued. Each council member brings different skills and perspe ctives.	1
Not in favour of it. When the new Councillor comes on to the Committee they are not intune with what has taken place or what events are planned for the future.	1
Is good. Makes the council members more aware of what each committee really does so that they are able to make representation in council meetings, and would be much easily appreciated by other coun cilors because they have first hand knowledge of committee discussions	1
I think the rotation of Councillor representation is an excellent idea as I think it is great for the councill ors to be exposed to each committee directly which increases the committees representation to counc il on a whole.I I	1
I think it worked well. It also gave the committee a chance to work with a different member of council	1

I think it is so wonderful having a councillor as part of the committee It really helps understand what is going on with the town	1
I support the rotation. It provides us with the opportunity to develop a closer working relationship with at least 2 of the 4 Councillors.	1
I prefer same councillor no rotation	1
I do not like the mid term shift. The Councillor that starts the term has a better understanding of what we are trying to accomplish and the rules to make things happen. The second Councillor must then tr y to get caught up on two years of.	1
Each councilor has brought a different viewpoint, and getting news from town council fresh from the s ource has been exciting.	1
Appropriate	1

Answered: 13 Skipped: 7

Please share any comments you may have regarding the frequency and scheduling (st…

The word cloud requires at least 20 answers to show.

Response	Count
Would love to see the meeting moved to Tuesday or Thursday.	1
The current schedule is fair, perhaps a 7pm start could be better.	1
Schedule is well advertised ahead of time, allowing Committee members to plan around it.	1
Schedule is great	1
one evening per month for meetings is entirely doable. Staff is very good about keeping meetings fro m going over time.	1
No concerns, everything runs very smoothly	1
No concerns this meeting isn't frequent to the point it would interfere with my personal life	1
No concerns	1

Monthly meetings and a 6:30 start are appropriate. No problem with cancelling meetings or imposing extra ones. We are driven by community and Town needs.	1
I think the current meeting schedule works but now that inperson events have started again, extra sub-committees may help when doing larger events	1
I prefer short meetings	1
I am comfortable with the current meeting arrangements.	1
Good as is.	1
Currently I have no issue with the times of our meetings. I would love to see more subcommittee work being done during the term. I feel the AAC communicated extremely well and have the BEST leader in Sarah. She keeps us all involved and engaged. She is the glue to this and other committees	1
As is	1
Appropriate	1
Additional meetings (maybe optional attendance) as per my suggestions below.	1

Answered: 17 Skipped: 3

Overall, what do you feel works well with your Committee/Board?

The word cloud requires at least 20 answers to show.

Response	Count
Yearly Chairs	1
Would not change	1
Well organized and we always get a chance to comment and make suggestions.	1
We have a variety of experiences in the disability sector in the community.	1
We are well structured and have fairly good relationships and respect for each other. We are participative and desire to do a good job on behalf of the Town.	1
We are all respectful even if we disagree. Our professionalism works well.	1

This term members where more engaged with the outside meeting work not just the meetings.	1
The relationship between the staff and the Committee is very strong and open which is very helpful and contributes to the success of the Committee.	1
The Committee overall worked well together. I felt like the staff guidance was a big part of that. Mike would provide us with all the relevant info to help with decisions	1
The committee members are all thoughtful and well prepared for meetings. We have really successfully been able to respectfully discuss matters and generally reach consensus on the issues in front of us.	1
The collaboration between members on projects.	1
Professional and respectful dialogue without too much elaboration or unnecessary chatter	1
Mike's presentations are well researched and the information is timely. He provides information to support his position on action items.	1
Meeting virtually has been convenient, but I think in-person contact is sorely missed.	1
I prefer virtual mtg with option of in person	1
Communication, commitment, dedication and the BEST leader in the world. Sarah RULES. But having said the positive stuff (and well deserved), I"m also thinking, what is Sarah wasn't there? We relay on her for so much (the Town and our committee). We need some more leaders in the community for disability rights and accessibility	1
A shared passion and commitment	1

Answered: 17 Skipped: 3

Overall, do you have any suggestions to improve the Committee/Board you participate…

The word cloud requires at least 20 answers to show.

Response	Count
No	2

The committee needs one or more architect members, preferably with some background/experience with heritage buildings. Include strategies to foster greater participation/discussion. Suggestions include inviting committee member(s) to attend site visits to provide first hand perspective and provide feedback ; the formation of liaison positions and/or subcommittees to collaborate with members of other committees and/or departments for joint projects for example with Recreation, Culture & Community Development	1
Staff Reports to provide more lead time for adequate preparation as they occasionally appear very rushed. Enrich experience by briefly providing regular post meeting update on Appeals for example. Or any general info on planned future developments in Ajax. Consider letters of support and objections from neighbors to have an earlier cutoff time. Some Staff Reports occasionally read like an essay. Consider a more bulleted approach as statement of facts if and where applicable. Consider a possible video link or Satellite shot that further clarifies the minor variance.	1
Recommend Hybrid form of meetings (Choice of in person or virtual) until our environment is safe to do so	1
Please see my comments above. Also, creating an Ambassador Program. I"m also concerned about what will happen after 2025 when the AODA ends. What will happen to us and other AAC committees. We need to address this.	1
Perhaps Chair needs to pull in some of the quieter members during debates to get comments.	1
No, its well run.	1
No other than having absent members replaced	1
Just as noted above to replace members who don't attend and have an alternate backup in case of quorum issues / scheduling problems	1
I think in-person meeting would be a viable improvement.	1
I know there are and will always be exceptions, but it would be appreciated if the full meeting material can be sent out at least 3 business days prior to the meeting to enable full and thorough review (of the applications and the staffing reports).	1
I feel starting in person committee meetings again will allow for more committee member participation	1
I can't think of anything to improve. Sarah has been a wonderful mediator for suggestions and recommendations.	1
For new members to have a session to give them an overview of what the committee is about.	1

Answered: 15 Skipped: 5

Do you have any suggested projects/new directions that you feel the Committee/Board…

The word cloud requires at least 20 answers to show.

Response	Count
This I'm not sure of.. The topics over the last 2 terms have worked well. Very informative	1
The new term must get more properties move from the wish list to the designated list.	1
Nothing obvious at the moment.	1
Not really applicable to the PSAC committee	1
Not at the moment	1
No	1
N/ A	1
Keep doing the Historic minutes.	1
Include learning opportunities within meetings or via possible additional meetings; 3 or 4 per year presented by expert in topic/skill area. For example bylaw department as it applies to Ajax heritage, construction/restoration methods and materials (balloon framing, rubblestone foundations), innovative new restoration materials, architectural styles, integration/considerations for architectural styles in street/façade approval in the town of Ajax, how to search land transfer records etc., tour of the Ajax archives and how to access this info.	1
I think we need to make a thorough assessment of the accessibility of the Ajax Community Centre and McLean Community Centre, especially the pools.	1
I think it would be beneficial to the committee to add new members to bring about some new ideas	1
I am pleased as the AAC is involved in many aspects with the Town of Ajax. I am also a senior and very please of our involvement with the Age Friendly Committee. Again the only concern I have is having others leaders, including the disability community. Sarah and Laura cannot do it all. I have suggested crating an Ambassador Program with respect to Age Friendly but why not add Accessibility and the Disabled Community.	1

Great changes lie ahead as Go Transit expands through our region. It would be nice to have more information about the heritage challenges facing neighboring communities, with the aim of the various heritage bodies in Durham speaking with one voice on certain topics.	1
Focus on Youth to join committees.	1
Accessibility and Advisory: An awareness campaign re 2025	1

Answered: 15 Skipped: 5

Please share any additional comments you may have.

The word cloud requires at least 20 answers to show.

Response	Count
Na	1
It has been an absolutely wonderful experience to be a part of the TOA's Accessibility Advisory Committee. I have met some wonderful people and I have been able to learn a lot from the members and presenters.	1
I really enjoy participating on this committee. It’s been a fun and interesting experience and I hope to continue another term.	1
I love being apart of a successful comittee and volunteering with Sarah	1
I am so proud to be a part of 2 wonderful committees in Ajax. I feel I wan to do more and open to other ideas from a senior and disability perspective. I'm sure others want to be more involved as well.	1
Host a joint meeting with neighbouring heritage committee members (Whitby, Pickering, Oshawa) to discuss current events/projects	1
Heritage is a well-run committee, and I hope to serve another term!	1
Accessibility and Advisory: Excellent Committee with great push to the strategic plans and progression of projects Very productive sustainable Committee	1

Answered: 8 Skipped: 12

ATT - 2

CORPORATION OF THE TOWN OF AJAX
CORPORATE POLICIES AND PROCEDURES

SUBJECT: ***Committees & Boards***

COUNCIL ISSUED:	COUNCIL REVISED:	AUTHORED BY:	REVISION #:	Page 1 of 15	POLICY #:
01/21/19	12 / 12 / 22	S. Moore	2		155

Deleted: 22 / 12 / 1222 / 12 / 12

1. Policy Objective

1.1. Committees and Boards are established by Council, in some cases pursuant to prescribed legislative requirements. Such bodies play an important role by providing a means for Council and staff to receive the views and advice from Ajax residents on a variety of matters and make decisions on matters delegated to Statutory Committees and Boards by Council.

Deleted: matters, and

2. Scope & Application

2.1. This Policy outlines a fair, equitable and transparent approach and process for the establishment and operation of Committees of Council and Boards. It is intended to address:

- The process for establishing and reviewing Committees and Boards
- Recruitment, selection, appointment and resignation processes
- Duties and conduct of Members
- Meeting management
- Reporting requirements
- Media relations
- Financial requirements

2.2. This Policy applies to Committees and Boards established by Town of Ajax Council.

2.3. This Policy does not apply to Council's Standing Committees (General Government Committee and Community Affairs & Planning Committee), the Election Campaign Finance Compliance Audit Committee, nor to any informal committees, groups, or taskforces established by staff or Council for the purposes of public consultation and engagement, with the exception of Appendix A – Honoraria Schedule.

2.4. Changes or clarifications of policy or procedure shall be reflected in updates to the Policy, which may be supplemented by guidelines and training materials, as deemed appropriate by the Clerk.

3. Definitions

3.1. **Committee (statutory):** a committee established by Council of the Town of Ajax whose mandate and duties are prescribed by provincial law. Establishment of such committees may be either mandatory or optional, based on governing legislation (e.g. Accessibility Advisory Committee, Heritage Advisory Committee

3.2. **Committee (discretionary) –** a committee established by Council of the Town of Ajax to perform functions and duties not prescribed by legislation.

3.3. **Board (statutory):** a board established by Council of the Town of Ajax to perform quasi-judicial functions that are prescribed by provincial law. Establishment of such boards may be either mandatory or optional, based on governing legislation (e.g. Committee of Adjustment, Compliance Audit Committee, and Property Standards/Animal Services Appeals Panel).

3.4. **Committee/Board Member:** an individual who is appointed by Ajax Council to a statutory committee or board.

3.5. **Chair:** the individual designated as the head of the committee/board who assists with planning and coordinating the committee's work and conducting its meetings and business.

3.6. **Council:** the Council of the Corporation of the Town of Ajax.

3.7. **Mandate:** the statement that describes the Committee or Board's purpose or responsibilities. The mandate for any committee/board shall align with any relevant legislative requirements and Council's strategic direction.

3.8. **Quorum:** the number of Members required to be present at any meeting in order for business to be conducted.

3.9. **Terms of Reference:** the guiding document that provides a general overview of the scope of limitations, structure, objectives, and responsibilities for a committee/board.

4. Establishment of a Committee or Board

4.1. Committees and Boards are established by Council by-law, and in some cases, are prescribed by provincial legislation

4.2. As early as possible in a new term of Council, Council shall establish all Committees and Boards required by statute and may establish any optional Committees and Boards as it deems necessary.

4.3. All Committees and Boards shall dissolve at the end of each term of Council.

5. Terms of Reference

5.1. Committee and Board Terms of Reference shall be included as an appendix to the establishment by-law.

The Terms of Reference for each Committee or Board shall include but need not be limited to the Committee or Board's mandate, membership, meeting structure and schedule, and rules of procedure.

6. Orientation and Training

6.1. Every committee/board member shall participate in member orientation and training. Orientation may take place in advance of the first meeting of the Committee or Board, or during the first meeting.

6.2. Committee/Board member orientation and training content shall include:

- an overview of Committee/Board member rights, responsibilities, conduct, policies and procedures;
- Mandatory *Accessibility for Ontarians with Disabilities Act*, *Ontario Human Rights Code*, and *Occupational Health & Safety Act* training; and
- Any additional Committee/Board-specific content required for the role.

6.3. Committee/Board members shall be provided with copies of all relevant Town policies and resource materials for reference.

7. Accessibility & Inclusion

7.1. While serving on any Town of Ajax Committee or Board, all members shall comply with all Town of Ajax accessibility-related policies, practices, and procedures.

7.2. Notification of accommodation availability throughout the Committee/Board membership shall be provided (from recruitment to end of appointment).

7.3. To encourage maximum participation, the Town of Ajax shall ensure that consideration is taken to provide accessibility in relation to meeting places, agenda and minute formats, communications, and conduct of meetings.

8. Municipal Freedom of Information and Protection of Privacy Act

8.1. Town of Ajax Advisory Committees are accountable for complying with the *Municipal Freedom of Information and Protection of Privacy Act,* and related Town of Ajax policies and practices regarding privacy and access to information.

9. Health and Safety

9.1. While serving on any Town of Ajax Committee or Board, all members shall comply with all Town of Ajax health and safety-related policies, practices, and procedures.

9.2. Committee/Board members shall never be asked to do anything unsafe and have the right to refuse any request, function, or activity they feel is unsafe.

9.3. All Committee/Board projects shall comply with the *Occupational Health and Safety Act* and Regulations. Training shall ensure that Committee/Board members understand their duties, rights, and responsibilities. Training shall identify hazards, the incident reporting process, violence/harassment policies and emergency procedures.

9.4. Committee/Board members must report all incidents and injuries immediately to Town staff. An incident report must be completed and sent to the appropriate Town liaison within 24 hours. Staff shall immediately notify the Occupational Health & Safety Specialist in the event a critical injury occurs.

Deleted: Health & Safety/WSIB Advisor

- A critical injury is an injury of a serious nature that:
  - Places life in jeopardy;
  - Produces unconsciousness;
  - Results in substantial loss of blood;
  - Involves the fracture of a leg or arm but not a finger or a toe;
  - Involves the amputation of a leg, arm, hand or foot, but not a finger or toe;
  - Consists of burns to a major portion of the body; or
  - Causes the loss of sight in an eye.

10. General Eligibility Requirements

10.1. Committee and Board members shall be:
- 18 years of age or older; (16 years of age or older for advisory committees only)
- Legally entitled to work in Canada
- A resident, business owner or property owner in the Town of Ajax; and
- Available to attend monthly evening meetings at Town facilities (up to 10 per year; absent from no more than 3).

10.2. Employees of the Town of Ajax are prohibited from appointment to Committees and Boards. Any Committee/Board member who becomes employed by the Town shall be required to resign from their appointment effective immediately.

11. Membership Administration

11.1. The process for acquisition, selection, appointment and dismissal from Town of Ajax Advisory Committees is detailed within the **Town of Ajax Committee and Board Recruitment and Appointment Process (LIS-WI-008**).

11.2. A Committee and Board information session may be held as part of the recruitment process at the onset of the new term of Council. The session shall provide the public

and potential applicants with information regarding the Town's Committee and Board structure, mandates, and responsibilities.

11.3. Principles of equity and accommodation for all candidates shall be adopted and implemented by enforcing application deadlines, selection criteria and consistent screening/interviewing procedures.

11.4. Membership, as much as possible, shall be representative of the Ajax community, and achieve balance between diversity, a variety of technical expertise and other related skills and experiences.

12. Term of Appointment

12.1. Members are appointed by resolution of Council and shall serve for a term concurrent to the term of Council, plus an additional three months during the transition period. Appointments shall commence, as close as possible, to March 1 of the first year of a Council term, and end on February 28 or 29 of the first year following a Council term.

12.2. Members may only serve on one Town of Ajax Committee or Board of Council at a time (with the exception of the Ajax Public Library Board). However, members may serve on administratively-established committees (i.e. project steering committees) at the same time as serving on a Committee or Board of Council.

12.3. Committee/board Members may seek reappointment upon reapplication for a consecutive term. Completion of a new/updated application shall be required. A balance of new and returning Members shall be sought by staff during the selection process.

12.4. Notwithstanding section 12.3, Members of the Committee of Adjustment and Property Standards/Animal Services Appeals Committee who have served a two-term period may choose to re-apply, and an application may be considered if sufficient interest, experience, and skills from new applicants is not received.

12.5. Members may hold appointments on Regional Committees/Boards concurrently, as well as committees and boards for other public and private organizations.

12.6. Appointed members may independently participate in the Town's online Public Engagement Platform in addition to their Committee/Board involvement.

13. Attendance Management & Resignation of Members

13.1. Wherever possible, Members shall inform Staff in advance of any planned absence.

13.2. Prior to appointment, members shall commit to not being absent for more than three (3) meetings within a calendar year (unless documented as a result of extenuating circumstances – e.g. illness, parental leave, compassionate grounds, etc.).

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13.3. After two (2) absences by any Member at regularly scheduled meetings, the following process shall be followed:

a) Staff shall contact the absent Member by e-mail to review the attendance requirements and identify any extenuating circumstances preventing the member's attendance.

b) If no extenuating circumstances are provided, staff shall inform the absent member that if they are absent from a third meeting, their appointment may be revoked by resolution of Council.

13.4. To address the conflicting commitments to attend meetings, statutory authorities and other Council business, the attendance management section of this policy shall not apply to members of Council.

13.5. Committee Members wishing to resign their appointment shall submit their resignation in writing to the Legislative & Information Services Department.

14. Relationship Between Committees/Boards and Council

14.1. The nature of Advisory Committee recommendations to Council is purely advisory, and Council may or may not approve, amend, refer or propose other resolutions, as Council sees appropriate.

14.2. Quasi-judicial boards are delegated authority to make decisions on behalf of Council relating only to matters within the Board's jurisdiction as defined by statute and the Terms of Reference.

14.3. Committees and Boards shall not reconsider, recommend or advise on a matter that has been decided by Council, unless otherwise directed by Council.

15. Conduct & Conflict Resolution

15.1. All members shall be required to review, sign, and adhere to the **Town of Ajax Code of Conduct for Local Boards.**

15.2. When controversial, inappropriate, unconstructive, or offensive conduct becomes ongoing, intervention with an appropriate conflict resolution mechanism shall be implemented. This process may be initiated confidentially by a committee Member or staff.

16. Chairs and Vice-Chairs

16.1. Advisory Committees

16.1.1 At the first meeting of the new term, the staff shall seek the names of those members interested in the role of Chair and Vice-Chair. Members will rotate,

alphabetically, from the list, to allow for fair and inclusive participation of all members interested in a leadership role.

16.1.2 The role of the Chair will rotate annually and the vice-chair twice annually, beginning at the first meeting of the calendar year.

16.1.3 If a Chair is not present within the first 10 minutes of a meeting, one of the Vice-Chairs shall preside.

16.2. Quasi-Judicial Boards

16.2.1 At the first meeting of the new term, Members shall designate a Chair for the year. The position of Chair shall rotate on an annual basis amongst 4 members. The fifth member shall be designated the Vice-Chair for the entire term, in the event the Chair is not present for a meeting.

16.3. Responsibilities & Expectations of Chairs and Vice-Chairs

16.3.1 The Chair is expected to:

- Preside over all meetings and be responsible for the overall administration of the business of the Committee/Board, ruling on any points of order;
- Provide assistance to staff with the preparation of meeting agendas;
- Facilitate meetings;
- Participate as an active member, encouraging participation by all Committee/Board members;
- Generally refrain from discussion until all Committee/Board members have had an opportunity to speak on a matter;
- Refrain from voting unless a tie is present;
- Undertake any necessary work, including special projects and research, between meetings;
- Be the point of contact for the Committee/Board;
- Assist with the preparation of the annual report/presentation to Council; and
- Review the mandate, goals and objectives of the Committee.

16.3.2 The Vice-Chair is expected to:

- Assume the duties of the Chair if the Chair is not present within the first ten (10) minutes of a meeting.

17. Responsibilities & Expectations of All Members

17.1. Committee/Board members (inclusive of the Chair, Vice-Chair and Council Member Appointees) are expected to:

- Attend all scheduled and special Committee/Board meetings, sending regrets in advance where possible;
- Understand their role and expectations, including relevant Town policies;
- Follow the agenda and stay focused on the topic at hand;

- Understand and adhere to the mandate of the Committee/Board, including its relationship to Council;
- Participate as an active member, asking questions and seeking clarification through the Chair;
- Undertake work necessary to contribute meaningfully – i.e. reading agendas, conducting research between meetings, etc.;
- Adhere to the Town of Ajax Code of Conduct for Local Boards;
- In a public forum, clearly identify that they are speaking as an independent resident, unless otherwise designated to speak on behalf of their Committee/Board;
- Respect confidential information;
- Comply with the Statutory Committees and Boards Policy & Procedure; and
- Attend any training or personal/professional development sessions offered by the Town of Ajax.

18. Responsibilities & Expectations of Council Member Appointees

18.1. Council Member Appointees are voting members who are expected to:
- Liaise between Council and the Committee/Board during Council meetings;
- Ensure that Committee/Board members are aware of Council issues that may affect the goals and objectives of the Committee/Board; and
- Assist the Chair in reviewing the goals and objectives of the Committee/Board.

19. Responsibilities & Expectations of Committee/Board Support Staff

19.1. Staff have two principal functions in regard to Committees/Boards: **administrative coordination role** and **staff liaison role**, providing content support and policy advice.

19.2. **Legislative Specialist**

19.2.1 The Legislative Specialist shall provide administrative coordination support to Advisory Committees (i.e. recruitment, training, on-boarding, member relations, and attendance management).

19.2.2 The Legislative Specialist may facilitate a Committee/Board 'open house' in conjunction with recruitment efforts.

19.2.3 The Legislative Specialist may coordinate an annual professional development/skill-building workshop for members.

19.3. **Staff Liaison**

19.3.1 Staff liaisons shall attend each Committee/Board meeting or arrange for a designate to be present in their absence.

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Deleted: (Quasi-judicial boards shall be administratively supported by the Department responsible for their operation).

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19.3.2 Staff liaisons shall oversee and determine operating budget availability for Committee/Board-related expenses and departmental work plan items and projects.

19.3.3 Staff liaisons shall offer policy advice, provide presentation and discussion content for meetings, assist with special events/projects (including reports to Council), and follow-up with appropriate staff.

20. Responsibilities & Expectations of Departments

20.1. The department role shall be fulfilled by managers/supervisors of staff involved with Committees/Boards and shall include:

- Understanding the role and expectations of the Committee/Board Members, Chairs and staff;
- Ensure staff receive appropriate training and coaching to serve Committees/Boards;
- Track and approve staff workload in regard to Committees/Boards and ensure the nature and amount of work performed by staff is appropriate;
- Contact Committee/Board Chairs and Legislative & Information Services department if issues/concerns related to staff arise; and
- Encourage staff to bring forward content related to departmental work plans to Advisory Committees for consultation.

Deleted: work load

21. Meeting Management

Detailed rules of procedure for each committee shall be incorporated into the Terms of Reference.

21.1. **Agendas**

22.1.1 Agenda content shall be finalized by no later than noon one week prior to the scheduled meeting date.

22.1.2 Agendas shall be prepared, circulated and posted on the Town's website no later than one week prior to the meeting date.

22.1.3 If no substantive agenda content is received, the meeting shall be cancelled at the discretion of the Chair.

21.2. **Minutes**

22.2.1 Minutes shall briefly outline the substance of each of the items listed on the agenda, including actions taken and recommendations.

22.2.2 Minutes shall require the approval of the Committee/Board and be posted on the Town's web site.

21.3. **Work Plan**

At the beginning of each new term, and annually thereafter, staff liaisons to Advisory Committees shall draft a committee work plan in alignment with the Committee's mandate and individual or departmental work plan projects and initiatives. The work plan will be reviewed with the Committee and act as a guide for presentation and discussion items, projects and initiatives.

21.4. **Open and Closed Meetings**

All meetings shall be open to the public to ensure accountability and transparency.

21.5. **Meeting Frequency**

21.5.1 Meetings shall be scheduled as needed, on a monthly/bi-monthly basis.

21.5.2 Committees/boards may determine that meetings shall not be held during the summer months, and possibly December, to recognize holiday schedules as they relate to member attendance.

21.5.3 During a municipal election year, meetings will be scheduled in the last half of the calendar year (September–December), only if necessary.

21.6 **Quorum**

21.6.1 Quorum for advisory committees shall be 6 members.

21.6.2 Quorum for quasi-judicial boards shall be 3 members.

22. Annual Reporting Requirements

22.1. Each Advisory Committee shall present an annual report and/or presentation to Council, with the assistance of staff.

23. Media Relations

23.1. Committee/Board members shall not speak to the media on Town of Ajax matters, unless authorized by Town of Ajax Corporate Communications. When attending public meetings/events, members shall not represent the Town of Ajax unless they have received consent from staff to act as a Town delegate.

24. Financial Matters

24.1. **Budget**

Committees and Boards may make requests for budget allocations through their lead department, in advance of the Town's annual budget process. Requests shall relate to specific activities approved in the Committee/Board's mandate and work plan.

24.2. **Fundraising Activities**

Committees and Boards shall not undertake any fundraising activities without prior approval from Council.

24.3. **Member Remuneration**

24.3.1 Committee and Board Members shall receive honoraria in accordance with the Council-approve honoraria schedule, attached in this policy as Appendix A.

24.3.1.1 On request, members may be reimbursed for official Committee/Board attendance at conferences and special events, including reasonable travel expenses approved and allocated in the Town's operating budget (Business Unit 1347).

25. Remote Meeting Participation

25.1. Committee Members, staff, and members of the public are permitted to participate in meetings remotely via electronic means (e.g. video or audio teleconference). Committee Members participating remotely shall have all the same rights and responsibilities as if they were in physical attendance. A Committee Member who is remotely participating in a meeting shall be counted in determining whether or not a quorum of members is present at any point in time and may participate electronically in any portion of a meeting that is closed to the public.

25.2. Where a Committee Member encounters technical difficulties or is otherwise unable to participate remotely in a meeting, such circumstances shall not affect the validity of the meeting or any action taken at the meeting, provided that quorum is not lost during the meeting.

26. Recording and Broadcasting of Meetings

26.1. Meetings of the Committee may be audio and/or video recorded and may be broadcast publicly by the Town. Closed Session portions of all meetings shall not be recorded or broadcast.

27. Acknowledgement of Traditional Treaty Lands

Deleted: Advisory Committee

Deleted: members shall serve without remuneration.

Deleted: <#> Quasi-Judicial Board members shall receive $65 per meeting for members and $70 per meeting for the Chair. Remuneration shall be provided to members in December of each year. ¶
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27.1. Acknowledgement of Traditional Treaty Lands shall be read by the Chair following the call to order of all Committee and Board meetings:

"We would like to begin this meeting by acknowledging that the land on which we gather is situated within the traditional and treaty territory of the Mississaugas. More specifically, the Mississauga's of Scugog Island First Nation, signatories of the Gunshot Treaty of 1788 and the Williams Treaties of 1923. This land is, and will continue to be, home to the Indigenous Peoples. Let us acknowledge the mistakes and traumas of the past through authenticity and support truth and reconciliation. Let us engage and celebrate Indigenous communities by being leaders of action in acknowledging the United Nations Declaration on the Rights of Indigenous Peoples and the Truth and Reconciliation Commission's recommendations towards truth and reconciliation. Let us keep these principles close, as we continue towards truth and reconciliation and as we move forward with kindness and respect as a community."

28. Administration of Policy & Procedure

28.1. The Committees and Boards Policy shall be administered by the Legislative and Information Services Department.

APPROVED: COUNCIL 22 / 12 / 12 _____

(AUTHORITY) (DATE) (SIGNATURE)

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Appendix A

Committee & Board Honoraria Schedule

Type	Function	Membership	Honoraria/meeting	Example of Eligible Bodies
A	Established by staff and is advisory to staff. May be temporary in nature with a project-specific mandate; participation supports departmental goals and objectives; has no defined statutory role; may be comprised of staff and community stakeholders	determined by staff	no honorarium	Age-Friendly Ajax Steering Committee; Youth Engagement Advisory Committee
B	Established by Council, strictly advisory in nature and has no decision-making authority. Role is to provide feedback based on lived-experience and/or subject matter expertise, may make recommendations to staff/Council; may or may not have a defined statutory role	appointed by Council	$65.00	Advisory Committees (statutory/non-statutory): Accessibility Advisory Committee, Heritage Advisory Committee
C	Established by Council and required through other legislation, generally for statutory functions. Adjudicative Committee or Local Board granted independent decision-making authority, may exercise an operational management or control role; greater degree of meeting preparation is required of Members (reviewing reports, evidence, financial statements, etc.)	appointed by Council	$75.00	Local Boards and Committees: Committee of Adjustment, Property Standards/Animal Services Appeals Committee, Ajax Public Library Board
D	Joint Adjudicative Committee established by legislation, granted independent decision-making authority with specific mandate that may extend beyond term of Council and be outside the scope of a Type A, B, or C body.	appointed by Council	$400 retainer* $350/meeting	Joint Municipal Election Compliance Audit Committee
E	Task force established by Council for the provision of policy advice and recommendations on a specific issue or topic, with input from Town staff as necessary, (functions outside of the Committee & Board policy).	self-appointed members	$65.00	Ajax Anti-Black Racism Taskforce

**costs will be shared equally by the participating municipalities*

ATT-3

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER XX-2022

Being a By-law to establish a Committee of Adjustment

WHEREAS *Section 44 and 45 of the Planning Act, R.S.O. 1990,* Chapter 13, as amended, provides that Council may, by by-law, establish a Committee of Adjustment, if the municipality has passed a by-law under section 34 of the said Planning Act;

AND WHEREAS the Council of the Corporation of the Town of Ajax deems it advisable and expedient to establish a Committee of Adjustment;

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax “Committee of Adjustment” be established for the 2022 to 2026 term of Council.

2. The attached “terms of reference and rules of procedure” shall guide the roles, expectations, conduct, structure and administration of the Town of Ajax’s Committee of Adjustment.

3. Where the *Section 44 and 45 of the Planning Act, R. S. O. 1990,* Chapter 13, as amended, and the *Statutory Powers and Procedures Act R.S.O. 1990, c. S.22* are silent, relevant by-laws, resolutions and practices of the Town of Ajax shall govern the roles, expectations, conduct, structure and administration of the Committee of Adjustment.

4. That By-law 7-2019 is hereby repealed.

READ a first and second time this Twelfth day of December, 2022.

READ a third time and passed this Twelfth day of December, 2022.

_____
Mayor

_____
D-Clerk

Town of Ajax Committee of Adjustment
Terms of Reference

1. Mandate

The Committee of Adjustment has five (5) members appointed by Council. The responsibilities of the Committee are established by Sections 34, 44, and 45 of the *Planning Act* and related Ontario *Regulations*. The Committee considers matters of zoning variance which are often of the utmost importance to individual applicants, but which are not of sufficient magnitude to warrant the formal consideration of Town Council.

The Committee of Adjustment may consider requests for minor relief from the provisions of the Town of Ajax Zoning By-law 95-2003, as amended, to any land, building or structure, provided the requests satisfy the four (4) tests outlined in Section 45(1) of the *Planning Act,* which are:

- the request is minor in nature;
- the request is desirable for the appropriate development of the land, building or structure;
- the request maintains the general intent of the Zoning By-law; and
- the request maintains the general intent of the Official Plan.

The Committee may also consider requests under Section 45(2) of the *Planning Act*, which includes but is not limited to, requests to extend or enlarge the legal non-conforming use of any land, building or structure.

The Committee of Adjustment shall:

- hear presentations from property owner(s), applicants or authorized agent(s) and consider correspondence from the public (e.g. oral and written comments);
- make a decision based on the presentation by the property owner(s), applicant or authorized agent(s), comments received from the public, and the staff recommendation report to the Committee of Adjustment; and
- approve, refuse, defer, or modify the recommendations of the staff report to the Committee of Adjustment.

2. Reporting & Functional Relationships

A Senior Development Planner of Planning & Development Services will act as the Secretary-Treasurer and staff resource person for the Committee of Adjustment, unless as directed otherwise by the Director of Planning & Development Services.

Staff will provide a report to Council on its activities and decisions annually.

3. Committee Membership

The Committee of Adjustment shall consist of five (5) members of the public appointed by the Council of the Town of Ajax. Town staff shall recruit, interview, and recommend five (5) individuals for appointment to the Committee

Three (3) members shall constitute a quorum. Section 1 of “Schedule A”, Rules of

Procedure, shall apply if no quorum is present.

Committee Members must have the ability to understand and apply the provisions of the Town's Official Plan and Zoning By-law and should be considered impartial with respect to their ability to fulfill their responsibilities.

Remuneration ($75.00 for all members of the Committee for each meeting attended) shall be provided to the members in December of each year.

The Term of the Committee of Adjustment is four (4) years, corresponding with the Term of Council, plus an additional three (3) months during the transition period.

A Chair will be elected by the Committee members and will serve for a one (1) year term. A Vice-Chair will be chosen for the entire four (4) year term to act on behalf of the Chair when they are not available. The Chair/Vice-Chair will ensure that decorum is maintained at each meeting and that "Schedule A", Rules of Procedure is observed at all times.

The appointment of a Committee member shall be rescinded if the member is absent from three (3) consecutive meetings or absent for over 50% of the meetings in one (1) year, unless excused by the Committee due to extenuating circumstances.

4. Meeting Structure

The Committee will be called to order for a mandatory training session at the beginning of the term. Monthly meetings will be scheduled; however, it is understood that additional meetings may be called, if needed. Further, if no applications are received by the deadline for the scheduled meeting, the Committee of Adjustment meeting will be cancelled. The date and time of the meetings will be coordinated by the Secretary-Treasurer of the Committee of Adjustment and communicated directly to the Committee members.

An agenda shall be prepared for each Committee of Adjustment meeting and the minutes of each meeting shall outline the general deliberations and specific actions and decisions that result. The Committee of Adjustment shall provide its decision in writing to allparties.

The decision of the Committee may be appealed to the Ontario Land Tribunal (OLT), or any other Tribunal, as amended by the Province, by serving personally or sending by registered mail to the Secretary-Treasurer of the Committee of Adjustment, written notice of appeal accompanied by the requisite Appellant Form. This form is available on the OLT website at: https://olt.gov.on.ca/. The appeal must be made within 20 days of the decision. The appeal must include the Tribunal's fee made payable to the Minister of Finance and the Town's fee made payable to the Town of Ajax. Please refer to the Tribunal website and Town of Ajax Fees and Charges By-law, as may be amended from time to time, for updated fees.

Failure to Attend by Applicant/Authorized Agent

Where a property owner(s), applicant or authorized agent(s) has filed an application to the Committee of Adjustment and does not attend the meeting at the time and place appointed, the Committee of Adjustment shall determine whether or not the application can be heard or if the application is to be deferred until the next scheduled meeting with the Committee of Adjustment. If the application is deferred by the Committee of Adjustment, the property owner(s), applicant or authorized agent(s) may be required to pay the requisite tabling fee in accordance with the Town of Ajax Fees and Charges By-law, as may be amended from time to time, to move the application to the next scheduled meeting of the Committee of Adjustment.

Public Access

All Committee of Adjustment meetings shall be fully accessible to the general public and the agenda shall be posted to the Town's website the day the Committee members receive their agendas, and the minutes shall be posted on the Town's website within five (5) business days (where possible) after the Committee of Adjustment meeting. The Committee of Adjustment shall render its decision on the matter in the presence of the public, applicants/authorized agents, staff, and other interested parties

Confidentiality

Members of the Committee of Adjustment shall not permit any person, other than those who are legally entitled, to inspect or have access to information. If unsure, the Committee shall discuss this matter with the Town Clerk or Designate.

5. Remote Meeting Participation

Committee Members, staff, and members of the public are permitted to participate in meetings remotely via electronic means (e.g. video or audio teleconference). Committee Members participating remotely shall have all the same rights and responsibilities as if they were in physical attendance. A Committee Member who is remotely participating in a meeting shall be counted in determining whether or not a quorum of members is present at any point in time and may participate electronically in any portion of a meeting that is closed to the public.

Where a Committee Member encounters technical difficulties or is otherwise unable to participate remotely in a meeting, such circumstances shall not affect the validity of the meeting or any action taken at the meeting, provided that quorum is not lost during the meeting.

6. Recording and Broadcasting Meetings

Meetings of the Committee may be audio and/or video recorded and may be broadcast publicly by the Town. Closed Session portions of all meetings shall not be recorded or broadcast.

SCHEDULE "A"
RULES OF PROCEDURES

1. Quorum

1.1 A quorum of Committee shall be three (3) Members.

1.2 If a quorum is not present within 15 minutes after the time appointed for a meeting, the Secretary-Treasurer shall record the names of the Members present and the meeting shall stand adjourned until the date of the next scheduled regular meeting.

1.3 Members of Committee are encouraged to notify the Secretary-Treasurer when the Member is aware that he/she will be absent from any meeting of the Committee of Adjustment.

2. Meetings Open to the Public

2.1 All proceedings of the Committee of Adjustment shall be open to the public.

3. Conduct of Applicants, Authorized Agents, Members of the Public, or Other Interested Parties

3.1 Applicants, Authorized Agents, or Members of the Public, or Other Interested Parties shall not:

a) speak disrespectfully of any person;
b) use offensive words;
c) speak on any subject other than the subject for which they have received approval to address Committee;
d) disobey the decision of the Chair or Committee; and
e) enter into cross debate with other persons present, Town staff, Members, or the Chair.

3.2 Persons desiring to make an application to the Committee of Adjustment shall submit a complete application to the Secretary-Treasurer of the Committee of Adjustment, by the prescribed deadline for the next scheduled Committee of Adjustment meeting.

3.3 Notwithstanding Section 3.2, a person wishing to present information is not required to give written notice nor be listed on the agenda with respect to a matter before the Committee of Adjustment for which the public has been invited.

3.4 Individuals shall be permitted to speak on a matter only once and be limited to speak for no more than ten (10) minutes. A five (5) minute extension to speak may be decided, without debate, by a majority of Committee Members present. Where there are numerous individuals taking the same position on a matter, they are encouraged not to repeat information presented by an earlier delegation.

3.5 The Chair can limit the number of individuals speaking if he/she believes that the information being provided has already been presented to the Committee of Adjustment.

3.6 Members of the Committee of Adjustment shall be permitted to ask questions of applicants or authorized agents but shall not make statements to nor enter into debate with such persons.

4. Order of Business

Agenda

4.1 The Secretary-Treasurer shall prepare and cause to be circulated for the use of the Members at the regular scheduled meetings of the Committee of Adjustment, an agenda listing the Order of Business, as follows:

a) Call to Order & Acknowledgement of Traditional Treaty Lands
b) Conflict of Interest
c) Adoption of Minutes from the previous Committee of Adjustment Meeting
d) Outline of the General Mandate of the Committee of Adjustment
e) Public Meeting/Hearing of Submitted Applications
f) Other Business/New Business
g) Adjournment

4.2 All business shall be taken up in the order in which it appears on the agenda unless otherwise decided by general consent of the Members present.

4.3 The agenda will be provided to each Committee Member no later than the Friday prior to the regular scheduled Committee of Adjustment meeting.

Call to Order & Acknowledgement of Traditional Treaty Lands

4.4 As soon after the hour fixed for the holding of the meeting of the Committee of Adjustment as a quorum is present, the Chair shall call the Members to order and read the acknowledgement of traditional treaty lands.

4.5 If the Chair does not attend a meeting of the Committee of Adjustment within five (5) minutes after the time appointed, the Secretary-Treasurer shall call the Members to order, and the Vice Chair shall preside until the arrival of the Chair.

4.6 If the Vice Chair is not present at the time when the Secretary-Treasurer calls the Members to order, the Members present shall appoint a Presiding Member who shall preside over the meeting.

4.7 The Chair shall advise all persons present that any and all electronic devices shall be turned off for the duration of the meeting.

Conflict of Interest

4.8 Members shall adhere to the Town of Ajax Code of Conduct for Local Boards. It is the responsibility of Members to identify and disclose any conflict of interest as defined under the *Municipal Conflict of Interest Act*.

4.9 Members shall disclose and conflicts at the opening of a meeting, prior to any discussion on the matter, and shall not take part in discussion or vote on such matter. Members shall not in any way attempt to influence the voting on a matter before, during or after the meeting. Where a member is absent from a Meeting which included a matter on which they have a conflict of interest, the member shall disclose the conflict at the next meeting they attend. All disclosed conflicts of interest shall be recorded in the meeting minutes and in the Town's Conflict of Interest Declaration Registry.

Minutes

4.10 The Secretary-Treasurer shall cause minutes to be taken of each meeting of the Committee of Adjustment, which shall include:

a) the place, date, and time of the meeting;
b) the attendance of the Members; should a member enter after the commencement of a meeting or leave prior to adjournment, the time shall be noted; and
c) all other proceedings of the Committee of Adjustment without note or comment.

4.11 Minutes of the last regular meeting of the Committee of Adjustment shall be included in the agenda and may be adopted by the Committee of Adjustment without having been read at the meeting at which the question of their adoption is considered.

General Mandate

4.12 The Chair shall outline the general mandate of the Committee of Adjustment prior to proceeding with the first application on the agenda.

Public Meeting/Submitted Applications

4.13 The Chair will co-ordinate the meeting as it is outlined on the meeting Agenda. The format is outlined in Section 8 of this document. The Chair has the ability to deviate from the format as he/she deems necessary but shall always strive to have it

maintained as written.

Other / New Business

4.14 Items of business requiring the direction of the Committee of Adjustment will appear under this section of the agenda. These matters shall generally pertain to information items only.

5. Rules of Debate and Conduct

Conduct of Members of Committee

5.1 No Member shall:

a) speak disrespectfully of the Reigning Sovereign, of any Member of the Royal Family, of the Governor-General of Canada, of the Lieutenant-Governor of any Province, of any Member of Senate or of any elected assembly;
b) use offensive words or against the Committee, Council or any Member, or any officer or employee of the Town of Ajax;
c) speak on any subject other than the subject in debate;
d) disobey the Rules of Procedure or a decision of the Committee of Adjustment Chair on questions of order or procedure or upon the interpretation of the Rules of Procedure; and in case a Member persists in any such disobedience after having been called to order, the Chair shall forthwith order him or her to leave the meeting, but if the Member apologizes he or she may, by majority vote of the Members of Committee, be permitted to retake his or her seat; and
e) speak in a manner that is discriminatory in nature based on an individual's race, ancestry, place of origin, ethnic origin, citizenship, creed, gender, sexual orientation, age, colour, marital status, family status, or disability.

Rules of Debate

5.2 The Chair shall preserve order and decorum and decide questions of order subject to an application to the Committee of Adjustment by any Member.

5.3 When two (2) or more Members desire to speak, the Chair shall designate the Memberwho has the floor.

5.4 No Member shall be deemed to have precedence or seniority over any other Member.

5.5 Before speaking to a question or motion, a Member shall be acknowledged by the Chair and shall address the Chair.

5.6 When a Member is speaking, no other Member shall pass between that Member and the Chair or interrupt that Member except to raise a point of order.

5.7 A Member may require the question or motion under discussion to be read at any time during the debate but not so as to interrupt a Member who is speaking.

5.8 No Member, without leave of the Committee, shall speak to the same question, or reply, for longer than five (5) minutes.

5.9 A Member may ask a question for the purpose of obtaining information relating to the matter under discussion and such question shall be stated concisely and asked only through the Chair.

5.10 When a Member has been recognized as the next speaker, before speaking the Member may ask a question of or through the Chair on the matter under discussion for the purpose of obtaining information, following which the Member may speak.

Points of Order

5.11 When a Member desires to call attention to a violation of the rules of procedure, the Member shall ask leave of the Chair to raise a point of order, and after leave is granted, shall state the point of order to the Chair succinctly and the Chair shall then decide upon the point of order and advise the Members of his/her decision.

5.12 Unless a Member immediately appeals the Chair's decision to the Committee, the decision of the Chair shall be final.

5.13 If a Member appeals to the Committee on a point of order, the Committee shall hear the reason for the appeal from the appellant and the reason for the decision from the Chair, and shall decide the question without debate. The decision of Committee under this section shall be final.

6. Motions

6.1 A motion presented to the Committee of Adjustment need not be in writing but will require a seconder.

6.2 When a motion is presented and has been seconded, it shall be stated by the Chair/Member before debate.

6.3 After a motion is stated by the Chair/Member it shall be deemed to be in possession of the Committee of Adjustment, but with permission of the mover, may be withdrawn at any time before decision or amendment.

6.4 A motion in respect of a matter which is beyond the jurisdiction of the Committee of Adjustment shall not be in order.

6.5 A motion properly before the Committee of Adjustment for decision must receive disposition before any other motion can be received.

7. Voting

7.1 Every Member present at a meeting when a question is put shall vote thereon unless disqualified to vote on the question. All votes shall be by show of hands except where a recorded vote is requested by any Member.

7.2 If a Member does not vote when a question is put, he or she shall be deemed to have voted in the negative, except where the Member is disqualified from voting.

7.3 A Member not in their seat when the question is called by the Chair is not entitled to vote on that question.

7.4 Immediately preceding the taking of the vote, the Chair shall state the question in the form introduced.

7.5 The Chair shall announce the result of every vote.

7.6 If a Member disagrees with the announcement of the Chair that a question is carried or defeated, he/she may immediately after the declaration by the Chair, state their objection to the declaration and request that a recorded vote be taken on the question.

Recorded Vote

7.7 When a recorded vote is requested by a Member, or is otherwise required, the Secretary-Treasurer shall record the name and vote of every Member, on the question commencing with the Member who made the request and then all other Members, alphabetically, until all Members have voted. The Chair shall vote last.

Tied Vote

7.8 Any question on which there is an equality of votes shall be deemed to have been decided in the negative.

8. Hearing of Submitted Applications

8.1 The Chair will welcome all individuals present and call the first application on the meeting Agenda.

8.2 The Chair will explain the Mandate of the Committee of Adjustment and the format of the meeting.

8.3 The Chair will outline the submitted applications and reiterate the requests before the Committee of Adjustment.

8.4 The Applicant/Authorized Agent will present their application to the Committee of Adjustment. The Committee of Adjustment will ask the Applicant/Authorized Agent questions. The Committee of Adjustment will then ask if there are any other

interested parties that wish to speak to the submitted application. The Committee of Adjustment can then ask questions of the any interested party. Then the Chair of the Committee of Adjustment will ask for a motion from the Committee on the submitted application and a motion will be brought forward, seconded, and then voted on.

At any time, the Committee can ask questions of staff or of any witnesses who have already spoken to get clarification on an issue.

8.5 Once a decision is made by the Committee of Adjustment, the Chair will explain the appeal process should an individual not agree with a decision of the Committee of Adjustment, pursuant to the *Planning Act*.

8.6 The Chair will orally notify the Applicant/Authorized Agent of the Committee's decision with regard to the application. The Chair will also notify the Applicant/Authorized Agent that the Committee's decision will be provided to them in writing.

8.7 The above process will continue until the Committee has heard all applications listed on the Agenda for that meeting.

ATT-4

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER XX-2022

Being a By-law to establish a Property Standards Appeal Committee/Animal Services Appeal Committee.

WHEREAS the Building Code Act 1992, S.O. 1992, CHAPTER 23 provides for the establishment of a Property Standards Appeal Committee;

AND WHEREAS the Municipal Act, 2001, S.O. 2001, CHAPTER 25, mandates that the council of a municipality must hold a hearing at the request of an owner of a dog that has been subject to a muzzling order;

AND WHEREAS the Municipal Act 2001, S.O. 2001, CHAPTER 25, authorize a municipality to delegate its powers and duties under this or any other Act to a person or body;

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax “Property Standards Appeal Committee/Animal Services Appeal Committee” be established for the 2022 to 2026 term of Council.

2. The attached “terms of reference and rules of procedure” shall guide the roles, expectations, conduct, structure and administration of the Town of Ajax’s Property Standards Appeal Committee/Animal Services Appeal Committee.

3. Where the Building Code Act, 1992, S.O. 1992, CHAPTER 23 or the Municipal Act 2001, S.O. 2001, CHAPTER 25 or the Statutory Powers and Procedures Act R.S.O. 1990, c. S.22 is silent, relevant by-laws, resolutions and practices of the Town of Ajax shall govern the roles, expectations, conduct, structure and administration of the Property Standards Appeal Committee/Animal Services Appeal Committee.

4. That By-law 6-2019 is hereby repealed.

READ a first and second time this
Twelfth day of December, 2022.

READ a third time and passed this
Twelfth day of December, 2022.

_____
Mayor

_____
D-Clerk

Town of Ajax Property Standards Appeal Committee/Animal Services Appeal Committee
Terms of Reference

1. Mandate

The Town of Ajax Property Standards Appeal Committee & the Animal Services Appeal Committee (the "Committee") has full delegation of the authority in the **Building Code Act and the Municipal Act** to hear appeals from both property owners and dog owners who disagree with either a Property Standards Order or an Order to Restrain.

The Committee Shall:

- Hear evidence presented by witnesses, Town By-law Staff, property owners, the owner of the dog, or other individuals that may have evidence relating to the case.
- Make decisions on the status of either the Property Standards Order or an Order to Restrain.
- Confirm, modify, rescind, or extend the time for complying with the Order.

2. Reporting & Functional Relationships

The Manager of By-law Services, or designate, will act as the staff resource person for the Committee, as well as provide organizational and procedural support

All Committee Agendas, Minutes, and Videos (if available) will be uploaded to the Town's website.

3. Committee Membership

The Committee shall consist of five (5) public citizens appointed by the Council of the Town of Ajax. Town staff shall recruit, interview and recommend five individuals for appointment to the Committee.

Three (3) members shall constitute a quorum. Section 1 of "Schedule A", Rules of Procedure, shall apply if no quorum is present.

Committee Members must have the ability to understand and apply the provisions of the Town's Property Standards By-law and the Town's Dog and Cat By-law and should be considered impartial with respect to their ability to fulfill their responsibilities.

Remuneration ($75.00 for all members of the Committee for each meeting attended) shall be provided to the members in December of each year of the Committee.

The Term of the Committee is four years, corresponding with the Term of Council, **plus an additional three months during the transition period.**

A Chair will be elected by the Committee members and will serve for a one year term. A Vice-Chair will be chosen for the one-year term to act on behalf of the Chair when they are not available. The Chair/Vice-Chair will ensure that decorum is maintained at each meeting and that "Schedule A", Rules of Procedure is observed at all times.

There is no provision that precludes the Committee from electing the same individual as the Chair/Vice-Chair for consecutive years.

Last updated: December 2022

The appointment of a Committee member shall be rescinded if the member is absent from 3 consecutive meetings or absent for over 50% of the meetings in one year, unless excused by the Committee due to extenuating circumstances. Where a vacancy occurs for any reason, Council may by resolution, appoint a person qualified to be on the Committee for the remainder of the term.

4. Meeting Structure

The Committee will be called to order for **two** mandatory training sessions at the beginning of the term. Bi-monthly meetings will be scheduled, however, it is understood that additional meetings may be called, if needed. Further, if no appeals are made in a given period, the committee meeting may be cancelled. The date and time of the meetings will be coordinated by the Secretary of the Committee and communicated directly to the committee members.

A Committee Secretary will be provided for by the Town of Ajax. An agenda shall be prepared for each Committee meeting and the Minutes of each meeting shall outline the general deliberations and specific actions and decisions that result. The Committee's decision shall be provided to all parties in writing. For Property Standards Appeals, appellants or staff can appeal to the Superior Court of Justice within 14 days of the Committee's written decision being sent, pursuant to the Building Code Act and by notifying the Town Clerk in writing. For Animal Services appeals, the appellant or staff can appeal the decision of the Committee to the Town's General Government Committee within 14 days of the Committee's written decision being sent, with the applicable fees attached.

Appellants must submit a written request via registered mail to begin the appeal process. Appellants have 10 days from the date of service to appeal an Order to Restrain and 14 days from the date of service to appeal a Property Standards Order. Before an Appeal date has been set, all Orders to Restrain are in full effect, pursuant to the Town's Dog and Cat By-law.

Failure to Attend by Appellant

Where an appellant is properly notified of a hearing or appeal (via registered mail) and does not attend at the time and place appointed, the Committee shall determine that the appellant has "deemed not to dispute" the Order or Order to Restrain and the Committee shall confirm the Order(s) as written, with the appellant being notified of the Committee's decision in writing after the appeal hearing.

Public Access

All appeal hearings shall be fully accessible to the general public, either in person, electronically or both. The appeal agenda shall be posted to the Town's website the day the Committee members receive their agendas. The meeting minutes shall be posted on the Town's website as soon as practical after the appeal meeting. The Committee shall render its decision on the matter in the presence of the public, the appellant, staff and other interested parties.

Confidentiality

Members of the Committee shall not permit any person, other than those who are legally entitled, to inspect or have access to information. If unsure, the Committee shall discuss this matter with the Town Clerk or Designate.

5. Remote Meeting Participation

Committee Members, staff, and members of the public are permitted to participate in meetings remotely via electronic means (e.g. video or audio teleconference). Committee Members participating remotely shall have all the same rights and responsibilities as if they were in physical attendance. A Committee Member who is remotely participating in a meeting shall be counted in determining whether or not a quorum of members is present at any point in time, and may participate electronically in any portion of a meeting that is closed to the public.

Where a Committee Member encounters technical difficulties or is otherwise unable to participate remotely in a meeting, such circumstances shall not affect the validity of the meeting or any action taken at the meeting, provided that quorum is not lost during the meeting.

6. Recording and Broadcasting Meetings

Meetings of the Committee may be audio and/or video recorded and may be broadcast publicly by the Town. Closed Session portions of all meetings shall not be recorded or broadcast.

Town of Ajax Property Standards Appeal Committee/Animal Services Appeal Committee
Terms of Reference

SCHEDULE "A"

RULES OF PROCEDURES

1. Quorum

1.1 A quorum of Committee shall be 3 Members.

1.2 If a quorum is not present within 10 minutes after the time appointed for a meeting, the Secretary shall record the names of the Members present and the meeting shall stand adjourned until the date of the next regular meeting.

1.3 Members of Committee are encouraged to notify the Secretary when the Member is aware that they will be absent from any meeting of Committee.

2. Meetings Open to the Public

2.1 All proceedings of Committee shall be open to the public.

3. Conduct of Witnesses, Appellants, Delegations, or Individuals making Presentations

3.1 Witnesses, Appellants, or Individuals making presentation shall not:

a) Speak disrespectfully of any person

b) Use offensive words

c) Speak on any subject other than the subject for which they have received approval to address Committee

d) Disobey the decision of the Chair or Committee

e) Enter into cross debate with the Chair, Members, Town staff, or any other persons present.

3.2 Persons desiring to present an appeal to Committee shall give notice, to the Secretary of the Committee, by sending registered mail;

a) within 14 days after service of the Order with regard to Property Standard Orders

b) within 10 days after service of the Order to Restrain with regard to Animal Services

3.3 Notwithstanding section 3.2, a person wishing to present information is not required to give written notice nor be listed on the agenda with respect to a matter before the Committee for which the public has been invited.

3.4 Individuals shall be permitted to speak on a matter only once and be limited to speak for no more than 10 minutes. A five minute extension to speak may be decided, without debate, by a majority of Committee Members present. Where there are numerous individuals taking the same position on a matter, they are encouraged not to repeat information presented by an earlier delegation.

3.5 The Chair can limit the number of individuals speaking if they believes that the information being provided has already been presented to the Committee or the individual does not have firsthand knowledge of the matter or incident that is being heard by the Committee.

3.6 Members shall be permitted to ask questions of delegates but shall not make statements to nor enter into debate with such persons.

4. Order of Business

Agenda

4.1 The Secretary shall prepare and cause to be circulated for the use of the Members at the regular meetings of Committee, an agenda listing the Order of Business, as follows:

a) Call to Order & Acknowledgement of Traditional Treaty Lands
b) Conflict of Interest
c) Minutes
d) Public Meeting / Appeals
e) Verbal Update
f) Other / New Business
g) Adjournment

4.2 All business shall be taken up in the order in which it appears on the agenda unless otherwise decided by general consent of the Members present.

4.3 The agenda will be sent electronically to each Members no later than the Friday preceding the regular Committee meeting.

Call to Order & Acknowledgement of Traditional Treaty Lands

4.4 As soon after the hour fixed for the holding of the meeting of the Committee as a quorum is present, the Chair shall call the Members to order and read the acknowledgement of traditional treaty lands.

4.5 If the Chair does not attend a meeting of Committee within five minutes after the time appointed, the Secretary shall call the Members to order and the Vice Chair shall preside until the arrival of the Chair.

4.6 If the Vice Chair is not present at the time when the Secretary calls the Members to order, the Members present shall appoint a Presiding Member who shall preside over the meeting.

4.7 The Chair shall advise all persons present that any and all electronic devices shall be turned off for the duration of the meeting.

Conflict of Interest

4.8 Members shall adhere to the Town of Ajax Code of Conduct for Local Boards. It is the responsibility of Members to identify and disclose any conflict of interest as defined under the *Municipal Conflict of Interest Act*.

4.9 Members shall disclose and conflicts at the opening of a meeting, prior to any discussion on the matter, and shall not take part in discussion or vote on such matter. Members shall not in any way attempt to influence the voting on a matter before, during or after the meeting. Where a member is absent from a Meeting which included a matter on which they have a conflict of interest, the member shall disclose the conflict at the next meeting they attend. All disclosed conflicts of interest shall be recorded in the meeting minutes and in the Town's Conflict of Interest Declaration Registry.

Minutes

4.10 The Secretary shall cause minutes to be taken of each meeting of Committee, which shall include:

a) the place, date and time of the meeting;

b) the attendance of the Members; should a member enter after the commencement of a meeting or leave prior to adjournment, the time shall be noted;

c) all other proceedings of Committee without note or comment.

4.11 Minutes of the last regular meeting of Committee and of all Special Committee meetings held subsequent to the last regular meeting, shall be included in the agenda and may be adopted by Committee without having been read at the meeting at which the question of their adoption is considered.

Public Meeting / Appeals

4.12 The Chair will co-ordinate the hearing of the Appeals as they are listed on the meeting Agenda. The Appeal format is outlined in Section 8 of this document. The Chair has the ability to deviate the Order of Appeals and the format as they deems necessary but shall always strive to have it maintained as written.

Verbal Update

4.13 The Staff Resource shall give verbal updates on past Appeals heard by the Committee. This verbal update is for information purposes only and requires no action of the Committee.

Other / New Business

4.14 Items of business requiring the direction of Committee will appear under this section of the agenda. These matters shall generally pertain to information items only.

5. Rules of Debate and Conduct

Conduct of Members of Committee

5.1 No Member shall:

a) speak disrespectfully of the Reigning Sovereign, of any Member of the Royal Family, of the Governor-General of Canada, of the Lieutenant-Governor of any Province, of any Member of Senate or of any elected assembly;

b) use offensive words or against the Council or against any Member, or any officer or employee of the Town of Ajax;

c) speak on any subject other than the subject in debate;

d) disobey the Rules of Procedure or a decision of the Committee Chair on questions of order or procedure or upon the interpretation of the Rules of Procedure; and in case a Member persists in any such disobedience after having been called to order, the Chair shall forthwith order them to vacate the Chamber or virtual meeting in which the meeting is being held, but if the Member apologizes they may, by majority vote of the Members of Committee, be permitted to retake their seat;

e) speak in a manner that is discriminatory in nature based on an individual's race, ancestry, place of origin, ethnic origin, citizenship, creed, gender, sexual orientation, age, colour, marital status, family status, or disability.

Rules of Debate

5.2 The Chair shall preserve order and decorum and decide questions of order subject to an appeal to the Committee by any Member.

5.3 When two or more Members desire to speak, the Chair shall designate the Member who has the floor.

5.4 No Member shall be deemed to have precedence or seniority over any other Member.

5.5 Before speaking to a question or motion, a Member shall be acknowledged by the Chair and shall address the Chair.

5.6 When a Member is speaking, no other Member shall pass between that Member and the Chair or interrupt that Member except to raise a point of order.

5.7 A Member may require the question or motion under discussion to be read at any time during the debate but not so as to interrupt a Member who is speaking.

5.8 No Member, without leave of the Committee, shall speak to the same question, or reply, for longer than five minutes.

5.9 A Member may ask a question for the purpose of obtaining information relating to the matter under discussion and such question shall be stated concisely and asked only through the Chair.

5.10 When a Member has been recognized as the next speaker, before speaking the Member may ask a question of or through the Chair on the matter under discussion for the purpose of obtaining information, following which the Member may speak.

Points of Order

5.11 When a Member desires to call attention to a violation of the rules of procedure, the Member shall ask leave of the Chair to raise a point of order, and after leave is granted, shall state the point of order to the Chair succinctly and the Chair shall then decide upon the point of order and advise the Members of their decision.

5.12 Unless a Member immediately appeals the Chair's decision to the Committee, the decision of the Chair shall be final.

5.13 If a Member appeals to the Committee on a point of order, the Committee shall hear the reason for the appeal from the appellant and the reason for the decision from the Chair, and shall decide the question without debate. The decision of the Committee under this section shall be final.

6. Motions

6.1 A motion presented in Committee need not be in writing nor require a seconder.

6.2 When a motion is presented in Committee, it shall be stated by the Chair/Member before debate.

6.3 After a motion is stated by the Chair/Member it shall be deemed to be in possession of Committee, but may with permission of the mover, be withdrawn at any time before decision or amendment.

6.4 A motion in respect of a matter which is beyond the jurisdiction of Committee shall not be in order.

6.5 A motion properly before Committee for decision must receive disposition before any other motion can be received.

7 Voting

7.1 Every Member present at a meeting when a question is put shall vote thereon unless disqualified to vote on the question. All votes shall be by show of hands except where a recorded vote is requested by any Member.

7.2 If a Member does not vote when a question is put, they shall be deemed to have voted in the negative, except where the Member is disqualified from voting.

7.3 A Member not in their seat when the question is called by the Chair is not entitled to vote on that question.

7.4 Immediately preceding the taking of the vote, the Chair shall state the question in the form introduced.

7.5 The Chair shall announce the result of every vote.

7.6 If a Member disagrees with the announcement of the Chair that a question is carried or defeated, they may immediately after the declaration by the Chair, state their objection to the declaration and request that a recorded vote be taken on the question.

Recorded Vote

7.7 When a recorded vote is requested by a Member, or is otherwise required, the Secretary shall record the name and vote of every Member, on the question commencing with the Member who made the request and then all other Members, alphabetically, until all Members have voted. The Chair shall vote last.

Tied Vote

7.8 Any question on which there is an equality of votes shall be deemed to have been decided in the negative.

8. Appeal Format

8.1 The Chair will welcome all individuals present and call the first Appeal on the meeting Agenda.

8.2 The Chair will explain the Role of the Committee and the format of the Appeal section of the meeting.

8.3 The Chair will explain the appeal process should an individual or the Town staff not agree with a decision of the Committee for both Property Standard Orders, pursuant to the Building Code Act, and Orders to Restrain, pursuant to the Town's Dog and Cat By-law.

a) Property Standards - the municipality in which the property is situate or any owner or occupant or person affected by a decision may appeal to the Superior Court of Justice by notifying the clerk of the municipality in writing and by applying to the court within 14 days of the Committee's decision being sent.

b) Animal Services Appeals – the municipality in which the dog resides in or any owner of a dog may appeal to the General Government Committee of the Town,

by notifying the clerk of the municipality in writing and by paying the appropriate fees as outlined in the Town's Fees & Charges By-law within 14 days of the Committee's decision being sent.

8.4 Town staff will present their testimony to the Committee. The Committee will then ask the Officer questions. At the conclusion of Committee questions, the appellant will then have the option to ask questions of the Officer. This is only an opportunity for questions from the Appellant and not for providing statements to the Committee. This process will continue for each witness that will give testimony on behalf of the Town.

8.5 The Appellant will present their testimony to the Committee. The Committee will then ask the Appellant questions. At the conclusion of Committee questions, Town staff will then have the option to ask questions of the Appellant. This process will continue for each witness that will give testimony on behalf of the Appellant.

8.6 The Chair will ask each side to summarize their respective positions, starting with Town staff.

8.7 The Committee will deliberate. Town staff and the Appellant will remain present in the event that any additional questions are raised by any Member that requires clarification.

8.8 At any time the Committee can ask questions of staff or of any witnesses who have already spoken to get clarification on an issue.

8.9 The Chair will orally notify the Appellant of the Committee's decision with regard to the Appeal. The Chair will also notify the Appellant that the Committee's decision will be provided to them in writing.

8.10 The above process will continue until the Committee has heard all the Appeals listed on the Agenda for that meeting.

ATT-5

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER XX-2022

Being a By-law to establish an Accessibility Advisory Committee.

WHEREAS The Town of Ajax is committed to improving access for members of the community, through the requirements and in the spirit of the *Ontarians with Disabilities Act, 2001* and the *Accessibility for Ontarians with Disabilities Act, 2005*, by identifying and mitigating barriers for persons with disabilities;

AND WHEREAS the Town of Ajax is required to establish an accessibility advisory committee under Section 12 of the *Ontarians with Disabilities Act, 2001.*

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax “Accessibility Advisory Committee” be established for the 2022 to 2026 term of Council.

2. The attached “terms of reference” shall guide the roles, expectations, conduct, structure and administration of the Town of Ajax’s Accessibility Advisory Committee.

3. Where the *Ontarians with Disabilities Act, 2001* or the *Accessibility for Ontarians with Disabilities Act, 2005* and any other relevant legislation is silent, relevant by-laws, resolutions, policies and practices of the Town of Ajax shall govern the roles, expectations, conduct, structure and administration of the Accessibility Advisory Committee.

4. That By-law 4-2019 is hereby repealed.

READ a first and second time this Twelfth day of December, 2022.

READ a third time and passed this Twelfth day of December, 2022.

_____
Mayor

_____
D-Clerk

Town of Ajax Accessibility Advisory Committee
Terms of Reference

A. Purpose

The Town of Ajax Accessibility Advisory Committee is a statutory committee required to be established through the Ontarians with Disabilities Act, 2001 and the Accessibility for Ontarians with Disabilities Act, 2005. The committee advises Council and staff on specific initiatives to be taken by the organization to reduce and prevent barriers in order to cultivate inclusion within the Ajax community.

B. Mandate

- **Make recommendations to staff and Council on the development and implementation of the Town of Ajax Multi-year Accessibility Plan;**
- **Review and provide feedback relative to accessibility on site plans for Town and municipal buildings/facilities, as well as priority applications identified by the Committee (e.g. seniors residences, schools, etc.);**
- **Make recommendations to staff and Council on issues relating to customer feedback, Town programs, services, policies and procedures from an accessibility and inclusion lens;**
- **Monitor the development of accessibility-related legislation and offer feedback on the Town's compliance with provincial accessibility regulations;**
- **Promote accessibility and inclusion in the Town of Ajax through public outreach, education and special events.**

C. Lead Department

The **Legislative and Information Services Department** will be the lead for the committee. Staff from other departments and/or members of other agencies may attend meetings as required to provide expertise or report on various matters.

D. Reporting Relationship

The committee is to serve as an advisory body and does not have any delegated authority. Recommendations requiring implementation, expenditures, reports or staff actions must be considered by staff and/or Council. Council may cause the committee to review and report on matters pertaining to the committee's mandate.

E. Committee Membership

The committee shall be comprised of 7-10 voting members who must be Ajax residents. The majority of membership shall be comprised of persons with disabilities. Voluntary disclosure will be included on the application form.

An honorarium of $65.00 for each meeting attended shall be provided to all members.

Appointments will run concurrent with the term of Council, plus an addition three months during the transition period. Appointments may be revoked at anytime at the discretion of Council.

The committee shall also consist of 1 Member of Council who shall have full voting

privileges. The Councillor representative will rotate mid-term. All members are to be appointed by way of Council resolution. The Mayor is an ex-officio member of the Committee.

A representative from the **Legislative & Information Services Department** will serve as a staff resource liaison to the committee as well as provide organizational and procedural support. Other staff and delegates may be invited to provide input at times; however, they are not to be counted towards quorum and do not have voting privileges.

F. Chairperson

The Chairperson is responsible for leading the discussion at each meeting pursuant to the meeting agenda and the committee's mandate. If a Chair or Vice-Chair is not present, members are to select an acting Chairperson to serve in the same capacity for the duration of that meeting. The annual rotation process for the Chair and Vice Chair is outlined in **Committees and Boards Policy 047**.

G. Subcommittees

Subcommittees *may* be formed to complete specific tasks related to the committee's mandate and work plan but must report through the committee.

H. Decision Making and Voting

Where possible, decisions and recommendations will be made by way of consensus. When a formal vote is necessary, a motion must be moved and seconded prior to voting. A resolution is deemed to be carried if the majority of members present vote in the affirmative. Recorded votes shall not be permitted. The committee shall not reconsider a previous decision, unless directed to so by Council.

I. Work Plan

The committee work plan shall be developed by Committee Staff Liaisons and reviewed with the Committee. The Work Plan will appear as a standing item on the agenda to facilitate a regular review by the staff liaison representative(s) and/or the committee, if deemed to be necessary.

J. Meeting Structure and Format

Meetings will generally be scheduled on a monthly basis, with the exception of July and August. Accessibility Advisory Committee Meetings shall be scheduled the third Wednesday of the month, from 6:00 – 8:00 p.m. The Committee shall meet a minimum of four times annually.

An agenda package, including meeting materials and previous meeting minutes will be posted on the Town's website one week in advance of the meeting date. Legislative Services staff will provide content and administrative support to the committee.

Staff shall be responsible for forwarding substantive action items and recommendations to the appropriate staff for review and action as necessary. Staff presenting to a committee or soliciting feedback shall be responsible for following up on the feedback received. An update

shall be provided to Members at a future meeting. All recommendations must relate to the committee's mandate.

In consultation with the committee Chair, the staff liaison will generate content for each meeting so as to ensure progress of the committee's work plan.

Committee meetings are open to the public and are subject to the provisions of Section 239 of the *Municipal Act, 2001*. Members of the public who are in attendance shall not interfere with the conduct of the committee.

The ***Town of Ajax Committee/Board Policy & Procedure*** (Policy 047) shall be followed for all matters not specifically addressed within this document. These Terms of Reference are established by Council and can only be altered by Council approval.

K. Meeting Procedures

1. Attendance

A minimum of 6 voting members shall be required for a meeting to be held. In the absence of a meeting, staff liaisons may circulate content to members through alternative means (email) in order to obtain informal feedback for that particular item, especially those items that are time-sensitive in nature.

2. Agenda

Meeting structure, agenda and minute formats should meet the needs of individual Advisory Committees, while ensuring consistency, completeness and accountability. The following components shall be included in Accessibility Advisory Committee agendas:

a) Call to Order & Acknowledgement of Traditional Treaty Lands
b) Conflict of Interest
c) Approval of Minutes
d) Presentations/Discussion Items
e) Standing Items (i.e. work plan, site plan updates, external committee participation, subcommittee updates)
f) Correspondence
g) Feedback Updates
h) New/Other Business
i) Next Meeting
j) Adjournment

Staff liaisons and/or those staff with a forecasted agenda item shall submit agenda content to the Legislative Services by no later than noon, one week prior to the scheduled meeting date. If no substantive agenda content is received by the content deadline, the meeting will be cancelled, at the discretion of the Chair.

The business of each meeting shall be taken up in the order in which it is listed on the agenda, unless otherwise agreed to by members present.

3. Minutes

Minutes shall briefly outline the substance of each item listed on the agenda, including action items and recommendations. Draft Minutes of each meeting shall be posted on the Town's website once available and shall be presented to the Committee at its next meeting for approval.

4. Presentations to Committee

Individuals interested in presenting as a delegation to the Accessibility Advisory Committee must submit their request to Town Staff (staff liaisons and/or Legislative Services) in writing, no later than **two weeks** prior to the scheduled meeting date. Only one spokesperson per group/organization shall be permitted to speak on a matter. Individuals shall be limited to speak for no more than 10 minutes. A five-minute extension to speak may be decided, without debate, by a majority of Committee Members present.

Individuals making a presentation to the Accessibility Advisory Committee shall not:
a) Speak disrespectfully of any person
b) Use offensive words
c) Speak on any subject other than the subject for which they have received approval to address Committee
d) Disobey the decision of the Chair or Committee
e) Enter into cross debate with other persons present, Town staff, Members or the Chair

Members shall be permitted to ask questions of delegate(s) but shall not make statements to enter into debate with such persons.

5. Rules of Order

Members are encouraged to ask questions engage in discussion and share feedback following presentations and delegations. The committee Chair shall maintain order and decorum during the meeting and decide the order of questions.

Members shall indicate to the Chair their desire to speak and wait to be acknowledged by the Chair before speaking. Only one member shall speak at a time. All members are equal, and no member has seniority over another member. No member shall interrupt another member while speaking.

6. Conflict of Interest

Members shall adhere to the Town of Ajax Code of Conduct for Local Boards. It is the responsibility of Members to identify and disclose any conflict of interest as defined under the *Municipal Conflict of Interest Act*.

Members shall disclose and conflicts at the opening of a meeting, prior to any discussion on the matter, and shall not take part in discussion or vote on such matter. Members shall not in any way attempt to influence the voting on a matter before, during or after the meeting. Where a member is absent from a Meeting which included a matter on which they have a conflict of interest, the member shall disclose the conflict at the next meeting they attend. All disclosed

conflicts of interest shall be recorded in the meeting minutes and in the Town's Conflict of Interest Declaration Registry.

7. Remote Meeting Participation

Committee Members, staff, and members of the public are permitted to participate in meetings remotely via electronic means (e.g. video or audio teleconference). Committee Members participating remotely shall have all the same rights and responsibilities as if they were in physical attendance. A Committee Member who is remotely participating in a meeting shall be counted in determining whether or not a quorum of members is present at any point in time and may participate electronically in any portion of a meeting that is closed to the public.

Where a Committee Member encounters technical difficulties or is otherwise unable to participate remotely in a meeting, such circumstances shall not affect the validity of the meeting or any action taken at the meeting, provided that quorum is not lost during the meeting.

8. Recording and Broadcasting Meetings

Meetings of the Committee may be audio and/or video recorded and may be broadcast publicly by the Town. Closed Session portions of all meetings shall not be recorded or broadcast.

ATT-6

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER XX-2022

Being a By-law to establish a Municipal Heritage Committee.

WHEREAS the Town of Ajax is committed to preserving and providing access to its collective local natural, cultural, architectural and historical heritage;

AND WHEREAS Section 28 (1) of the *Ontario Heritage Act, R.S.O. 1990* allows for the council of a municipality to establish a committee to advise and assist council on various heritage-related matters by by-law;

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax establish a Municipal Heritage Committee for the 2022 to 2026 term of Council.

2. That the committee be called the “Heritage Advisory Committee”.

3. The attached “terms of reference” shall guide the roles, expectations, conduct, structure and administration of the Town of Ajax’s Heritage Advisory Committee.

4. That By-law 5-2019 is hereby repealed.

READ a first and second time this Twelfth day of December, 2022.

READ a third time and passed this Twelfth day of December, 2022.

_____
Mayor

_____
D-Clerk

Town of Ajax Heritage Advisory Committee
Terms of Reference

A. Purpose

The Heritage Advisory Committee ("the committee") will promote the conservation and celebration of the Town of Ajax's unique local history, including its natural, cultural and architectural heritage. It will serve to assist local residents in developing an understanding and appreciation of the community's beginnings, development and future.

The committee will also serve as the Town's Municipal Heritage Committee to advise and assist Council on heritage matters as outlined in Section 28 of the *Ontario Heritage Act.*

B. Mandate

- **Promote the history and heritage of the Town of Ajax through public outreach, education and special events;**
- **Identify and evaluate properties of cultural heritage value or interest for designation under the *Ontario Heritage Act* or addition to the Town's Heritage Inventory;**
- **Make recommendations to staff and Council on issues relating to the conservation and stewardship of heritage properties;**
- **Review and comment on planning applications that may have an impact on heritage properties.**
- **Make recommendations of items suitable for inclusion in the Ajax Public Library Archives.**
- **Comment on Federal, Provincial and Town policies and initiatives relating to heritage matters; and**
- **Recognize and celebrate the achievements of past and present residents through interpretive displays and recognition programs.**

C. Lead Departments

The **Planning & Development Services Department** and **Ajax Public Library** will be the leads for the committee. Staff from other departments and/or members of other agencies may attend meetings as required toprovide expertise or report on various matters.

D. Reporting Relationship

The committee is to serve as an advisory body and does not have any delegated authority. Recommendations requiring implementation, expenditures, reports or staff actions must be considered by staff and/or Council. Council may cause the committee to review and report on matters pertaining to the committee's mandate.

E. Committee Membership

The committee shall be comprised of 7-11 voting members who must be Ajax residents.

An honorarium of $65.00 for each meeting attended shall be provided to all members.

Appointments will run concurrent with the term of Council, plus an addition three months during the transition period. Appointments may be revoked at anytime at the discretion of Council.

The committee shall also consist of 1 Member of Council who shall have full voting privileges.

The Councillor representative will rotate mid-term. All members are to be appointed by way of Council resolution. The Mayor is an ex-officio member of the Committee.

Representatives from the **Planning & Development Services Department** and the **Ajax Public Library** will serve as staff liaisons to the committee.

The Legislative Services will provide organizational and procedural support to the committee. Other staff and delegates may be invited to provide input at times; however, they are not to be counted towards quorum and do not have voting privileges.

F. Chairperson

The Chairperson is responsible for leading the discussion at each meeting pursuant to the meeting agenda and the committee's mandate. If a Chair or Vice-Chair is not present, members are to select an acting Chairperson to serve in the same capacity for the duration of that meeting. The annual rotation process for the Chair and Vice Chair is outlined in the **Committees and Boards Policy 047**.

G. Subcommittees

Subcommittees *may* be formed to complete specific tasks related to the committee's mandate and work plan but must report through the committee.

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Where possible, decisions and recommendations will be made by way of consensus. When a formal vote is necessary, a motion must be moved and seconded prior to voting. A resolution is deemed to be carried if the majority of members present vote in the affirmative. Recorded votes shall not be permitted. The committee shall only reconsider a previous decision if new information affecting that decision has become available or if directed to so by Council.

I. Work Plan

The committee work plan shall be developed by Committee Staff Liaisons and reviewed with the Committee. The Work Plan will appear as a standing item on the agenda so as to facilitate a regular review by the staff liaison representative(s) and/or the committee, if deemed to be necessary.

J. Meeting Structure and Format

Meetings will generally be scheduled on a monthly basis, with the exception of July and August. Heritage Advisory Committee Meetings shall be scheduled the first Wednesday of the month, at 6 p.m. The Committee shall meet a minimum of four times annually.

An agenda package, including meeting materials and previous meeting minutes will be posted on the Town's website one week in advance of the meeting date.

Staff shall be responsible for forwarding substantive action items and recommendations to the appropriate staff for review and action as necessary. Staff presenting to a committee or soliciting feedback shall be responsible for following up on the feedback received. An update

shall be provided to Members at a future meeting. All recommendations must relate to the committee's mandate.

In consultation with the Chair, Staff Liaisons will generate content for each meeting agenda so as to ensure progress of the committee's work plan.

Committee meetings are open to the public and are subject to the provisions of Section 239 of the *Municipal Act, 2001*. Members of the public who are in attendance shall not interfere with the conduct of the committee.

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2. Agenda

Meeting structure, agenda and minute formats should meet the needs of individual Advisory Committees, while ensuring consistency, completeness and accountability. The following components shall be included in Heritage Advisory Committee agendas:

a) Call to Order & Acknowledgement of Traditional Treaty Lands
b) Conflict of Interest
c) Approval of Minutes
d) Presentations/Discussion Items
e) Standing Items (i.e. Work Plan, Heritage Permit Updates)
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Individuals interested in presenting as a delegation to the Heritage Advisory Committee must submit their request to staff liaisons in writing, no later than **two weeks** prior to the scheduled meeting date. Only one spokesperson per group/organization shall be permitted to speak on a matter. Individuals shall be limited to speak for no more than 10 minutes. A five-minute extension to speak maybe decided, without debate, by a majority of Committee Members present.

Individuals making a presentation to the Heritage Advisory Committee shall not:
a) Speak disrespectfully of any person
b) Use offensive words
c) Speak on any subject other than the subject for which they have received approval to address Committee
d) Disobey the decision of the Chair or Committee
e) Enter into cross debate with other persons present, Town staff, Members or the Chair

Members shall be permitted to ask questions of delegate(s) but shall not make statements to enter into debate with such persons.

5. Rules of Order

Members are encouraged to ask questions, engage in discussion and share feedback following presentations and delegations. The committee Chair shall maintain order and decorum during the meeting and decide the order of questions.

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8. Recording and Broadcasting Meetings

Meetings of the Committee may be audio and/or video recorded and may be broadcast publicly by the Town. Closed Session portions of all meetings shall not be recorded or broadcast.

TOWN OF AJAX
2023 COMMITTEES AND BOARDS MEETING SCHEDULE

NOTE:

Meetings will be held in the Council Chambers, Town Hall, 65 Harwood Avenue South, unless otherwise advertised*. Fully electronic meetings may be livestreamed at www.ajax.ca/live.

Date	Time	Meeting
Wednesday, January 11*	7 p.m.	Committee & Board Open House (virtual)
Wednesday, January 25*	7 p.m.	Committee of Adjustment
Thursday, February 9*	7 p.m.	Property Standards/Animal Services Appeals Committee
Wednesday, February 22*	7 p.m.	Committee of Adjustment
Wednesday, March 22	6:00 p.m.	Accessibility Advisory Committee
Wednesday, March 26	7 p.m.	Committee of Adjustment
Wednesday, April 5	6:30 p.m.	Heritage Advisory Committee
Thursday, April 13	7 p.m.	Property Standards/Animal Services Appeals Committee
Wednesday, April 19	6:00 p.m.	Accessibility Advisory Committee
Wednesday, April 26	7 p.m.	Committee of Adjustment
Wednesday, May 3	6:30 p.m.	Heritage Advisory Committee
Wednesday, May, 17	6:00 p.m.	Accessibility Advisory Committee
Wednesday, May 31	7 p.m.	Committee of Adjustment
Wednesday, June 7	6:30 p.m.	Heritage Advisory Committee
Thursday, June 8	7 p.m.	Property Standards/Animal Services Appeals Committee
Wednesday, June 21	6:00 p.m.	Accessibility Advisory Committee
Wednesday, June 28	7 p.m.	Committee of Adjustment
Wednesday, July 26	7 p.m.	Committee of Adjustment
Wednesday, August 30	7 p.m.	Committee of Adjustment
Wednesday, September 6	6:30 p.m.	Heritage Advisory Committee
Thursday, September 14	7 p.m.	Property Standards/Animal Services Appeals Committee
Wednesday, September 20	6:00 p.m.	Accessibility Advisory Committee
Wednesday, September 27	7 p.m.	Committee of Adjustment
Wednesday, October 4	6:30 p.m.	Heritage Advisory Committee
Wednesday, October 18	6:00 p.m.	Accessibility Advisory Committee
Wednesday, October 25	7 p.m.	Committee of Adjustment
Wednesday, November 1	6:30 p.m.	Heritage Advisory Committee
Thursday, November 9	7 p.m.	Property Standards/Animal Services Appeals Committee
Wednesday, November 15	6:00 p.m.	Accessibility Advisory Committee
Wednesday, November 29	7 p.m.	Committee of Adjustment
Wednesday, December 6	6:30 p.m.	Heritage Advisory Committee
Wednesday, December 13	6:00 p.m.	Accessibility Advisory Committee
	7 p.m.	Committee of Adjustment

Note: *Due to renovations currently underway in Council Chambers, meetings identified by * will be held fully-electronically.*

This document is available in alternative formats on request by emailing contactus@ajax.ca or calling 905-683-4550.

Town of Ajax Report

Report To:	General Government Committee
Prepared by:	Nicole Cooper, Director of LIS/Clerk / Christie McLardie, Manager of Public and Strategic Affairs
Report #	LIS-2022-21
Subject:	**Various Appointments and Nominations to Boards and Committees**
Ward(s):	All
Date of Meeting:	December 12, 2022
Reference:	N/A

Recommendation:

1. That Council approve the following appointments:

Name	Board/Committee	Term of Appointment
Nancy Henry	Ajax Accessibility Advisory Committee	2023-2024
Rob Tyler Morin	Ajax Accessibility Advisory Committee	2025-2026
Rob Tyler Morin	Ajax Heritage Advisory Committee	2023-2024
Nancy Henry	Ajax Heritage Advisory Committee	2025-2026
Lisa Bower	Temporary Alternate to Durham Regional Council	2022-2026 Council Term
Sterling Lee	Ajax Public Library Board	2022-2026 Council Term
Deborah McDougall	Ajax Public Library Board	2022-2026 Council Term
Douglas Miller	Ajax Public Library Board	2022-2026 Council Term
Eesha Chaudhry	Ajax Public Library Board	2022-2026 Council Term
Piyali Correya	Ajax Public Library Board	2022-2026 Council Term
Rebecca Hayes	Ajax Public Library Board	2022-2026 Council Term
Sandy Taylor	Ajax Public Library Board	2022-2026 Council Term
Sepelene Deonarine	Ajax Public Library Board	2022-2026 Council Term
Voytek Bialowski	Ajax Public Library Board	2022-2026 Council Term

2. That Council approve the following nominations:

Name	Board/Committee	Term of Appointment
Joanne Dies	Toronto and Region Conservation Authority	2022-2026 Council Term
Marilyn Crawford	Central Lake Ontario Conservation Authority	2022-2026 Council Term
Marilyn Crawford	Ajax Municipal Housing Corporation	2022-2026 Council

	(Mayor's Designate)	Term*
Rob Tyler Morin	Ajax Municipal Housing Corporation (Council Representative)	2022-2026 Council Term*
Lisa Bower	PARA Marine Search and Rescue	2022-2026 Council Term*

Background:

At the outset of each term of Council, various appointments need to be made to a number of boards and committees. Some of these are time-sensitive, in that the Region requires the names of nominees by mid-December. The purpose of this report is to approve appointments or propose nominees (as the case may be) to various boards and committees. Generally, recommended nominations/appointments are based either on a recruitment process that has recently taken place, or discussions with individual members of Council as to which boards and committees are of interest to them.

Discussion:

Ajax Accessibility Advisory Committee (AAC)

The AAC provides advice on the prevention, identification and removal of barriers that restrict people with disabilities from fully participating in Town programs, services and facilities. With consideration for the *Accessibility for Ontarians with Disabilities Act* (AODA), *Ontario Human Rights Code* and *Ontario Building Code*, the AAC reviews Town initiatives, programs, site plans and services from an inclusive and barrier-prevention/removal perspective. Members also participate in coordination of the Town's annual recognition of National AccessABILITY week. The majority of membership is comprised of persons with disabilities. The Committee meets one evening per month, normally on Wednesdays.

Staff will commence recruitment of 10 community members to this committee in early 2023. In the meantime, it is recommended that Councillor Nancy Henry be appointed to this committee for the first half of the Council term, and that Councillor Rob Tyler Morin be appointed for the second half of the Council term.

Ajax Heritage Advisory Committee (HAC)

The HAC promotes and preserves the unique local history, including the natural, cultural and architectural heritage of Ajax. With consideration for the *Ontario Heritage Act* and *Planning Act*, the HAC participates in consultation of Heritage Permit applications, heritage property designation, and the Town's historical and heritage preservation (through research projects, archives, participation in community events, etc.) The Committee meets one evening per month, normally on Wednesdays.

Staff will commence recruitment of 10 community members to this committee in early 2023. In the meantime, it is recommended that Councillor Rob Tyler Morin be appointed to this committee for

* Or until Town of Ajax is no longer involved in the governance of AMHC, expected Q1 2023

the first half of the Council term, and that Councillor Nancy Henry be appointed for the second half of the Council term.

Temporary Alternate to Durham Region Council

All Durham Region lower-tier Councils are permitted to appoint one local member to serve as an alternate on the Durham Region Council in the event of an absence of a regional member. During the meeting, the alternate is allowed to participate as a regular member would, and may vote on motions, move and second motions, ask questions, etc. Alternate members may only participate at meetings of Regional Council and are not permitted to participate on Committees of Regional Council. Only one alternate member is permitted. It is not a requirement to appoint an alternate, however it is recommended that an alternate be appointed to ensure the municipality maintains its voting rights at Regional Council in the event of an absence. It is expected that a temporary substitution would be required only on rare occasion; Regional Council meetings are held on the last Wednesday of each month commencing at 9:00 a.m. Training for alternate members is provided by the Region of Durham Clerk's Department. It is important to note that the appointed member cannot be changed for the entire term of Council pursuant to the Municipal Act.

It is recommended that Councillor Lisa Bower be appointed as the Ajax's alternate member, for the purposes of temporary substitution at Regional Council.

Ajax Public Library Board

The Ajax Public Library Board is constituted and governed through the provisions of the provincial *Public Libraries Act*. The Board is comprised of 8 community members, appointed by Council, and one Council representative. It serves for the four year tenure of Council. The Board has an obligation under the *Act* to hold at least seven regular meetings each year. It is the Board's responsibility to: represent the interests of the community with reference to Library services; set strategic objectives for the Chief Librarian and to monitor performance to ensure that the objectives are met; and, ensure that the Library has sufficient resources to meet its objectives.

An open recruitment process was undertaken in order to develop a Library Board that fully represents the community and whose members have diverse skills, experience and abilities to develop a strategic vision for the Library and ensure proper operational oversight.

Following an interview process, the following persons are recommended for appointment:

- Deborah McDougall
- Douglas Miller
- Eesha Chaudhry
- Piyali Correya
- Rebecca Hayes
- Sandy Taylor
- Sepelene Deonarine
- Voytek Bialowski

In addition, it is recommended that Regional Councillor Sterling Lee be appointed as the Council representative on the Library Board.

Toronto and Region Conservation Authority (TRCA)

The Toronto and Region Conservation Authority (TRCA) is one of various Conservation Authorities in Ontario. The TRCA works with municipalities and other partners to look after the nine watersheds of the Toronto region – including Duffins Creek and Carruthers Creek – and its Lake Ontario waterfront. Their mandate is to protect the land, improve wildlife and plant habitats, to monitor and report on environmental health, provide input and expertise on water management, resource conservation, natural heritage and cultural heritage, to promote our natural environment to residents through programming and reduce human impact on natural resources.

Ajax is entitled to 1 representative on TRCA, and it must be a member of Regional Council. The Region requires that Ajax nominate a representative by mid-December.

It is recommended that Regional Councillor Joanne Dies be nominated as Ajax's representative on TRCA.

Central Lake Ontario Conservation Authority (CLOCA)

Central Lake Ontario Conservation (CLOCA) is a local, community based, environmental organization and one of several Conservation Authorities responsible for managing watershed resources across Ontario. Established in 1958, CLOCA's jurisdiction is based on the watershed boundaries of 4 major and 18 minor watercourses draining an area of over 639 square km. CLOCA's watershed stretches from the municipal boundaries of Ajax/Pickering to Clarington, and north, from Lake Ontario to the crest of the Oak Ridges. CLOCA is responsible for flood forecasting, monitoring, stewardship, education, plan review, and land management.

Ajax is entitled to 1 representative on CLOCA, and it must be a member of Regional Council. The Region requires that Ajax nominate a representative by mid-December.

It is recommended that Regional Councillor Marilyn Crawford be nominated as Ajax's representative on CLOCA.

Ajax Municipal Housing Corporation (1 person to serve as "Mayor's Designate", plus 1 other Council member)

Ajax Municipal Housing Corporation (AMHC) is the third largest non-profit housing provider in the Region of Durham, managing 6 buildings comprising approximately 600 residential units. It is an independently operated municipal non-profit. It was established in 1982 by the Council of the Town of Ajax, in order to take advantage of the various housing programs being offered at that time by higher levels of government. While having no involvement in its *operation*, the Town still plays a role in the governance of the corporation due to outdated language in the letters patent and bylaws of the corporation.

Ajax Council has authorized staff to proceed with taking the necessary actions to remove the Town from future involvement with AMHC; this process is underway and set to conclude in the first quarter of 2023. Staff are working collaboratively with AMHC to complete this process. For this reason, this assignment is expected to only be for several months, after which the Town will have no direct involvement with AMHC. The board meets once monthly, on Thursday evenings.

Until such a time that the Town has successfully transitioned away from its role with AMHC, it is recommended that Regional Councillor Marilyn Crawford be nominated as the Mayor's Designate. It is recommended that Councillor Rob Tyler Morin be nominated as the other Council representative on AMHC.

PARA

The Canadian Coast Guard (CCG) is responsible for manning the Joint Rescue Coordination Centre (JRCC) out of Trenton, Ontario. The CCG maintains assets in strategic locations on Lake Ontario and works with the local volunteer auxiliary units provide. To support this mandate, PARA patrols from Whitby, Ontario to the Rouge River in Scarborough, Ontario. The unit is a Registered Charitable Corporation. Oversight to the organization is provided by volunteer board consisting of at 4 members representing the local communities (Whitby, Ajax, Pickering and Toronto) and 4 active members of PARA.

Financial Implications:

N/A

Communication Issues:

Council member appointments and nominations to Boards and Committees were discussed directly with individual members of Council by staff from the Office of the CAO.

Pending Council approval, the Clerk's division will advise the appropriate external parties of Council's appointments or nominations

Relationship to the Strategic Plan:

N/A

Conclusion:

The appointments and nominations recommended herein will ensure that the Town, its Council members, and its community volunteers continue to be an actively engaged in the activities of local boards and committees for the coming term of Council. Approving these appointments at the outset of the term will ensure that Town representatives can begin acting in their appointed capacities in a timely manner, while also meeting the requested deadlines established by the Region for nominees to regional bodies.

Prepared by:

Nicole Cooper – Director of LIS/Clerk

Christie McLardie – Manager of Public and Strategic Affairs

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Sarah Vaisler, Chief Librarian and Executive Officer
Report #:	APL-2022-03
Subject:	**2021 Library Reserve Balances**
Ward(s):	All
Date of Meeting:	December 12, 2022
Reference:	GGC Report, December 13, 2021 Library Memorandum of Understanding 2021 GGC Report February 8, 2021 Operating Budget GGC Report, September 13, 2021 2020 Library Operating Surplus Update

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Recommendation:

1. **That this report be received for information.**

Background:

The Ajax Public Library Board is responsible for setting and approving the annual operating budget for recommendation to Town of Ajax Council for final approval. The Library's budget is prepared by both Town and Library staff and follows the Town's guidelines. In 2021, the Town and Library signed a Memorandum of Understanding (MOU) outlining the Library's ability to establish reserve funds with specific provisions. This MOU dictates that the Library shall report to Town Council on the previous year's reserve allocations and surplus utilization.

The MOU allows the Library to hold a Library Stabilization Reserve with funding targets of 6-8% of the Library's operating budget; previously the Library was permitted to hold approximately $200,000. In 2021 this range was between $403,698 - $538,264.

The MOU allows the Library to hold a Donations Reserve; this has no maximum limit. The Library may hold Special Project Reserves with a maximum balance of $75,000.

Discussion:

The Library holds two (2) active reserve funds; the Stabilization Reserve and the Donations Reserve.

In 2020, the Library had an accumulated surplus of $290,045 plus $200,000 that was held in reserve. The accumulated surplus was transferred to the Library's Stabilization Reserve in 2021

in alignment with the MOU totaling $490,045 inclusive of the $125,000 committed for the 2022 budgeted deficit.

In 2021 the Library had an annual surplus of $696,689 caused by pandemic service reductions. No additional monies were transferred into the Library Stabilization Reserve in 2021; the year-end closing balance in 2021 was $490,045.

Prior to the establishment of the MOU, the Library held a separate Donations Reserve which is used to hold personal and corporate donations. In 2021, the Donations Reserve opening balance was $24,562 and the closing balance was $29,383.

The annual surplus of $696,689 was transferred back to the Town; on May 19, 2022, the Library Board approved the transfer of $524,000 to the Town's Library Capital account to fund a Makerspace and returned the remaining $172,689 to be used at Council's discretion. These transfers occurred in 2022 in alignment with the MOU and will be communicated in a future report to Council.

There are no special projects proposed by the Library Board as of December 2022 which would require the establishment of a Special Projects Reserve.

Financial Implications:

The breakdown of the Library's Stabilization and Donation Reserve balances as December 31, 2021 is shown below:

Library Stabilization Reserve	
2020 Closing Stabilization Reserve Balance	$200,000
Add:	
2021 Transfer to Library Stabilization Reserve	$290,045
2021 Closing Reserve Balance	$490,045
Less Committed Funds:	
2022 Library Budgeted Deficit	($125,000)
Stabilization Reserve Balance	$365,045
Library Donations Reserve	
2020 Closing Reserve Balance	$24,562
Add:	
2021 Donations Revenue	$5,266
Less:	
2021 Donation Expenses	($445)
2021 Closing Reserve Balance	$29,383

Communication Issues:

N/A

Relationship to the Strategic Plan:

This report aligns with the Focus Area Investing in our Community, Goal 5: Undertaking key corporate reviews and strategies, Action 5.4: Continue to review the Financial Sustainability Plan based on external and internal influences to ensure it continues to meet our financial goals and priorities.

This report also aligns with Leading in our Community, Goal 6: Strengthening corporate governance and innovation, Action 6.8: Review capital reserves to ensure overall sustainability (i.e. capital contingency for grant opportunities), and consider establishing reserves to prevent fluctuations in the operating budget where it is financially prudent (i.e. insurance, education and training, etc.).

Conclusion:

This report provides the details on the closing balances of the Library's 2021 reserves.

Attachments:

N/A

Submitted by:

Sarah Vaisler – Chief Librarian and Executive Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Tim Field
Report #:	OES-2022-12
Subject:	**May 21, 2022 - Emergency Storm Clean-up Forestry**
Ward(s):	All
Date of Meeting:	December 12, 2022
Reference:	Capital Account 1039111.4716.001

Recommendation:

1 That the report on the emergency contract awards to:

Rockwood Tree Service - $501,825.92
Darlington Tree Service - $43,705.55
AJ Forestry Inc- $14,108.93

for a total amount of $559,640.40 (inclusive of taxes) for the May 21, 2022 - Emergency Storm Clean up Forestry be received for information.

2 That Council approve funding of $503,973.51 to be allocated to Capital Account No. 1039111 from the Capital Contingency Reserve.

Background:

On May 21, 2022, a derecho storm left a lasting impact across Ontario, including the Town of Ajax and other municipalities within the Region of Durham, where damaging winds downed trees and tree limbs, caused power interruptions through downed power lines, and caused other severe property damage.

The Town of Ajax had over 580 requests from residents to investigate and complete necessary tree removals or pruning on municipal trees along road allowances, trails and parkland. Work was completed in order of priority to try and prevent further damage to property or persons. Due to the magnitude of the storm and the amount of damage to municipal trees, contractors were required to assist in the clean-up operation including pruning and removal. Furthermore, contractors also assisted staff with the collection of brush and debris piled on the municipal boulevards from both private and municipally owned trees.

On June 20th and subsequently on July 24th, wind events were experienced in Ajax with staff and contractors assigned to address tree issues.

Discussion:

The current Purchasing By-Law allows for emergency purchases under certain conditions, more specifically, emergency purchases of Goods/Services may be made by the Department Head or CAO or designates when the immediate purchase is essential to prevent serious delays in the work of any department.

This report and emergency purchase has been reviewed and approved by the Chief Administrative Officer.

Financial Implications:

Capital Account No. 10391111.4716.001

May 21, 2022 – Emergency Storm Clean-up Forestry is an unbudgeted Capital Project.

Contract (net of HST rebate) – Rockwood Tree Service	$451,909.78
Contract (net of HST rebate) – Darlington Tree Service	$39,358.20
Contract (net of HST rebate) – AJ Forestry Inc.	$12,705.53
Total Expenditures	$503,973.51

Funding in the amount of $502,544.08 will be allocated from the Capital Contingency Reserve.

Communication Issues: N/A

Relationship to the Strategic Plan:

Connecting Our Community – Providing excellence in customer service

Leading in Our Community – Investing in community safety

Conclusion:

Staff awarded the emergency purchase of May 21, 2022 – Emergency Storm Cleanup Forestry to Rockwood Tree Service, Darlington Tree Service, and AJ Forestry Inc. all in accordance with the Town's Purchasing By-Law.

Attachments:

ATT 1 – Work Order Locations North
ATT 2 – Work Order Location South

Prepared by:

Tim Field – Manager of Environmental Services

Submitted by:

Dave Meredith – Director of Operations and Environmental Services

Approved by:

Shane Baker – Chief Administrative Officer

May 21, 2022 Storm
Tree Damage Locations
North Ajax

- Parks & Trails
- Roads
- Ajax Border

N

0 0.25 0.5 1 Kilometers

Whitevale Rd
Fifth Concession Rd
Fifth Concession Rd
Taunton Rd
Taunton Rd W
Taunton Rd E
Taunton Rd W
Brock Rd
Church St N
Westney Rd N
Salem Rd N
Lake Ridge Rd N
Coronation Rd
Third Concession Rd
Rossland Rd W
Rossland Rd E
Rossland Rd W
Audley Rd N
Finch Av
Kingston Rd
Kingston Rd W
Kingston Rd E
Dundas St W
Church St S
Westney Rd S
Westney Rd S
Salem Rd S
Lake Ridge Rd S
Brock Rd

May 21, 2022 Storm
Tree Damage Locations
South Ajax
- Parks & Trails
- Roads
- Ajax Border
N
0
0.25
0.5
1 Kilometers
Westney Rd S
Westney Rd S
Church St S
Salem Rd S
Bayly St
Bayly St W
Bayly St E
Victoria St W

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Rassle Solaiman, Capital Projects Coordinator
Report #:	OES-2022-14
Subject:	**RFP No. P22012 - Outdoor Light Maintenance**
Ward(s):	All
Date of Meeting:	December 12, 2022
Reference:	Operating Account No. 3272.4412, 3273.4412 & 3390.4412

Recommendation:

1. **That the report on the contract award to MDK Electric Ltd., in the amount of $69,894.74 (inclusive of all taxes) for Outdoor Light Maintenance, for a period of one year, be received for information.**

2. **That Staff be authorized to renew the contract for an additional six one year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $449,722.55 (inclusive of all taxes).**

Background:

The Town has an inventory of over one thousand outdoor lighting assets illuminating trails, parks, sportsfields, walkways and parking lots. Outdoor lighting systems require regular maintenance and repair to ensure they are operational and provide the required illumination for a safe user experience. The Outdoor Light Maintenance Contract will service the following areas within the Town of Ajax:

- 5 soccer pitches
- 11 baseball diamonds
- 1 tennis facility consisting of 8 courts
- Approximately 30km of illuminated trails and walkway with an inventory of approximately 950 light standards.
- Approximately 30 illuminated parking lots with approximately 130 light standards.

The repair and maintenance of outdoor lighting include but is not limited to the following:

- Replacement of burned-out lamps and fuses
- Fixture repair or replacement
- Underground and in-pole wiring fault repair or replacement
- Light pole repair or replacement

- Cleaning fixture lenses and re-lamping

As provided for under the Purchasing By-Law, this contract was awarded by the CAO and Director of Finance/Treasurer (or their designates), during Council's Recess Period.

Discussion:

Request for Proposal (RFP) documents were posted to the Town's eBidding platform and 12 prospective Proponents registered for the opportunity with Proposals being received from 6 of these, prior to the closing on September 7, 2022. Listed below is a summary of the Proposals considered:

NAME OF PROPONENTS
Advance Net Electric Ltd.
Black & McDonald Limited
Hard-Co Construction Ltd.
Hastings Utilities Contracting Ltd.
MDK Electric Limited
R. A. Graham Contractors Ltd.

The following is the Proposal Evaluation Criteria used for this RFP:

MANDATORY SUBMISSION REQUIRMENTS (firms not meeting the mandatory requirements may be deemed non-responsive & subject to rejection)		
Insurance	Pass/Fail	
WSIB	Pass/Fail	
Health & Safety Plan/Policy	Pass/Fail	
EVALUATION CRITERIA	**WEIGHTED POINTS**	**TOTAL AVAILABLE POINTS**
QUALIFICATIONS & EXPERIENCE		
Demonstrated Experience of the Company	10	20
Demonstrated Experience of Key Personnel	10	
QUALITY OF PROPOSAL SUBMISSION		
Responsiveness/Completeness of Submission	10	20
Demonstrated Willingness to Comply with Terms of the Bid Document	10	
APPROACH & METHODOLOGY		
Demonstrated Understanding of the Requirements	10	30
Quality & Completeness of Approach/Work Plan/Methodology	10	
Project Management Structure	5	
Ability to Meet Time Estimates/Deadlines	5	
PRICING		
Cost Effectiveness of the Proposal		30
	TOTAL POINTS	100

INTERVIEW (if applicable)	50
GRAND TOTAL	150

An Evaluation Committee, made up of Operations & Environmental Services staff, reviewed all of the Proposals received. Based on the evaluation criteria, specified in the RFP document, MDK Electric Limited was the highest scoring Proponent and met all of the needs of the Town.

Financial Implications:

Funds for Outdoor Light Maintenance are included in the Operations and Environmental Services operating budget.

Communication Issues: N/A

Relationship to the Strategic Plan:

This report aligns with the following section of the 2018-2022 Strategic Plan – Stronger Together:

Focus Area: Investing in our Community
Goal 4: Modernizing existing municipal infrastructure and other assets

Conclusion:

Staff awarded the Contract for Outdoor Light Maintenance to MDK Electric Limited, during Council's recess period, all in accordance with the Town's Purchasing By-Law.

Attachments: N/A

Prepared by:

Rassle Solaiman – Capital Projects Coordinator

Submitted by:

Dave Meredith – Director of Operations & Environmental Services

Approved by:

Shane Baker – Chief Administrative Officer

Approved by:

Shaun Collier - Mayor

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Dylan Quigley, Interim Supervisor of Fleet and Inventory Services
Report #:	OES-2022-15
Subject:	**RFT No. DPC2202 Gas & Diesel Fuel – Durham Purchasing Cooperative**
Ward(s):	All
Date of Meeting:	Monday, December 12, 2022
Reference:	**RFT No. T-257-2022 – Durham Purchasing Cooperative**

Recommendations:

1. **That the report on the contract award to Suncor Energy Products Partnership, in the estimated amount of $1,532,637.98 (inclusive of all taxes) for Gas and Diesel Fuel for a period of two (2) years, be received for information.**

2. **That Council authorize staff to renew the contract for an additional three (3), one (1) year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $2,298,956.97 (inclusive of all taxes).**

Background:

The current contract for the supply and delivery of Gas and Diesel Fuel expires on November 30, 2022. The Region of Durham on behalf of the members of the Durham Purchasing Cooperative Group, of which the Town of Ajax is a participating member, is responsible for issuing the Bid Documents for this commodity. The supply and delivery of gas and diesel fuel is a key resource for the delivery of several municipal services.

As provided for under the Purchasing By-Law, this contract was awarded by the CAO and Director of Finance/Treasurer (or their designates) and Mayor (if applicable), during Council's Recess Period.

Discussion:

The Region of Durham, on behalf of all participating Durham Purchasing Cooperative Group members, issued a Request for Tender for Gas and Diesel Fuel to cover requirements for a five (5) year period.

Eight (8) prospective bidders downloaded the bid documents from the Region's website with four (4) compliant Bids being received prior to the closing on September 7, 2022. Listed below is a summary of the bids received identifying the Town of Ajax's portion only:

NAME OF BIDDER	TOTAL TENDER AMOUNT (AJAX PORTION)
Suncor Energy Products Partnership	$3,831,594.95
Canada Clean Fuels Inc.	$3,903,813.25
Mansfield of Canada, ULC.	$3,908,525.35
Parkland Corporation	$3,996,925.25

Financial Implications:

Funds for the supply and delivery of Gas & Diesel Fuel are included in each department's operating budget.

Relationship to the Strategic Plan:

The supply and delivery of gas and diesel fuel aligns with the following sections of the Strategic Plan:

Focus Area: Investing in Our Community
Goal 7: Ensuring the Town's workforce effectively and efficiently meets the community's needs.

Focus Area: Leading in Our Community
Goal 7: Fostering and strengthening external relationships and partnerships to help achieve strategic goals.

Conclusion:

Staff awarded the Contract for Gas & Diesel Fuel – Durham Purchasing Cooperative to Suncor Energy Products Partnership during Council's recess period, all in accordance with the Town's Purchasing By-Law.

Attachments:

None

Prepared by:

Dylan Quigley – Interim Supervisor of Fleet and Inventory Services

Submitted by:

Dave Meredith – Director of Operations and Environmental Service

Approved By:

Dianne Valentim – Director of Finance/Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To: General Government Committee

Prepared By: Ranil Fernando, Manager Infrastructure and Asset Management
Dylan Quigley, Interim Supervisor of Fleet and Inventory Services

Report #: OES-2022-16

Subject: Capital Pre-Budget Approval – 2023

Ward(s): All

Date of Meeting: December 12, 2022

Reference: LC030000 Road Resurfacing 2023 – CCBF
23090322 Brine Truck w/Plow
23002901 Snow Blower Attachment Add'l
23003001 Multi-use Tractor with Implements

Recommendation:

1. **That Council provide pre-budget approval in the amount of $3,001,100 for the 2023 CCBF Road Resurfacing capital project (LC030000-CCBF), funded from Federal Gas Tax Reserve Fund.**

2. **That Council provide pre-budget approval in the amount of $650,000 for the brine truck with plow and wing attachments (23090322) funded from:**

Development Reserve	**$32,500**
Development Charges 2018	**$617,500**
	$650,000

3. **That Council provide pre-budget approval in the amount of $15,000 for the snowblower attachment (23002901) from Development Reserve Fund.**

4. **That Council provide pre-budget approval in the amount of $400,000 for the multi-use heavy tractor with attachments (23003001) from Development Reserve Fund.**

Background:

The Town of Ajax capital budget for an upcoming year is typically considered and approved prior to the end of December in years where a Council election does not take place. Given the current economic conditions resulting high inflation rates and potential impacts of reduced funding, both the capital and operating budgets will be deliberated in early 2023. Delaying the capital budget has an impact on time-sensitive projects and can affect ultimate project costs. The following projects are being proposed for Council's pre-approval:

Road Resurfacing 2023:

The resurfacing of municipal roads and associated curb and sidewalk repairs are a critical component of the Town's infrastructure maintenance program. The roads to be resurfaced and/or reconstructed each year are prioritized based on the Town's Pavement Management System and coordinated with the Region of Durham's construction projects. The asphalt resurfacing work for 2023 includes the following:

CAPITAL ACCOUNT	ROAD	FROM	TO
23030001	Delaney Drive (Resurface)	Church Street	Ravenscroft Road
23030002	Ritchie Avenue (Resurface)	Westney Road South	Kingston Road
23030003	Farrow Crescent (Resurface)	Parks Drive West	Parks Drive East
23030004	Fitzgerald Drive (Resurface)	Varley Drive	Parkes Drive
23030005	Varley Drive (Resurface)	Parkes Drive	Lake Driveway
23030006	Rideout Street (Resurface)	Exeter Road	Kings Crescent

A portion of this budget will be used for the following future contract awards:

- Patching of various locations and Crack sealing
- Pavement Management System Update
- Design for future reconstruction
- Geotechnical services for future reconstruction

Vehicles and Equipment

The Fleet Services section collaborates annually with multiple business groups throughout the organization to identify any additional vehicle and equipment needs pertaining to development growth, additional staffing, service level changes, etc. Through this process, staff identified several vehicles and pieces of equipment, which will be presented for capital budget approval in 2023.

Among the vehicles and equipment identified by various business groups, the Fleet Services section recommends that the three (3) pieces of equipment (listed below) are presented for pre-budget approval:

- 23090322 Brine Truck with Plow and Wing Attachments
- 23002901 Snowblower Attachment
- 23003001 Multi-use Heavy Tractor with Attachment

Discussion:

The rationale for capital project pre-approval is detailed below:

Road Resurfacing

Pre-budget approval will be required for regular ongoing capital works where early tendering will likely result in competitive pricing. Typically, the Road Resurfacing project is undertaken yearly and prioritized based on the Town's Pavement Management System.

An approved budget will allow staff to issue Request for Tender (RFT) documents for the supply of all labour, equipment, products, fuel and materials necessary to complete Local Road Resurfacing for the identified roads located within the Town of Ajax.

Brine Truck with Plow

Pre-budget approval will be required for the three (3) pieces of fleet equipment listed herein. As a result of vehicle and equipment shortages seen across the entire industry, lengthy or unknown lead times for various equipment is more common. It is recommended that the brine truck with plow attachment is tendered for competitive pricing as early as possible in 2023 to minimize delays where possible.

The pre-budget approval will allow Fleet services staff to issue Request for Tender (RFT) early in 2023. This will provide the successful bidder ample time, including expected delays due to parts shortages, to build and deliver a product that meets specifications and ready for use by the end of 2023 or early 2024.

Snow Blower Attachment Additional

It is recommended that the snowblower attachment is tendered for competitive pricing as early as possible in 2023 to minimize delays where possible. Currently the Operations and Environmental Services Department are limited to a small inventory of very specific snow blower types and sizes.

By issuing Request for Tender (RFT) early in 2023, the successful bidder will have sufficient time to build and deliver a snowblower attachment that can be utilized with existing equipment, and ready for use during the 2023 winter season.

Multi-use Tractor with Implements

It is recommended that multi-use tractor with implements is tendered for competitive pricing as early as possible in 2023 to minimize delays where possible. In correlation with the brine truck and plow, the parts shortages across the vehicle and equipment industry have presented various delays when it comes to expected delivery times of all equipment.

The pre-budget approval will allow Fleet services staff to issue Request for Tender (RFT) early in 2023. This will provide the successful bidder ample time, including expected delays due to parts shortages, to build and deliver a product that meets specifications and ready for use by the end of 2023 or early 2024.

Financial Implications:

Capital projects requiring pre-budget approval are listed below along with their respective funding sources. The project scope and funding sources for any pre-approved capital project will not be altered during deliberation of the 2021 capital budget and long-range capital forecast.

Road Resurfacing/Reconstruction 2023

Capital Project	Funding Sources	Total Budget 2023
LC030000 Road Resurfacing 2023 – CCBF	Canada Community Building Fund	$3,001,100
Total		**$ 3,001,100**

Brine Truck with Plow

Capital Project	Funding Sources	Total Budget 2023
23090322	Development Reserve	$32,500
23090322	Development Charges – 2018 Transportation	$617,500
Total		**$ 650,000**

Snow Blower Attachment Additional

Capital Project	Funding Sources	Total Budget 2023
23002901	Development Reserve	$15,000
Total		**$ 15,000**

Multi-use Tractor with Implements

Capital Project	Funding Sources	Total Budget 2023
23003001	Development Reserve	$400,000
Total		**$ 400,000**

The pre-approval or partial pre-approval of the four capital projects discussed in this report will result in the following funding commitments from the Town's reserves and reserve funds. The percentage of anticipated 2023 reserve/reserve fund revenues that are being allocated to fund these capital projects is shown below. The Development Reserve is currently subject to the 95% of anticipated revenues contributed, leaving funding to be applied to other capital projects of 67% ($1,056,600).

Funding Source	2023 Budget Funding Requirements	% of total 2023 forecasted reserve/reserve fund revenue
Development Charges 2018	$ 617,500	5%
Canada Community-Building Reserve Fund	$ 3,001,100	76%
Development Reserve	$ 447,500	28%
Total Capital Budget Commitment	**$ 4,066,100**	n/a

Communication Issues:

Pre-approved capital projects will be identified as such in the capital budget book and budget presentation.

Relationship to the Strategic Plan:

The Capital Projects requiring pre-budget approval identified in this report aligns with the following section of the strategic plan:

Focus Area: Investing in our Community
Goal 4: Modernizing existing municipal infrastructure and other assets

Conclusion:

Pre-Budget approval will allow staff to begin the required tender process in order to maintain the timelines for project completion and allow for competitive pricing.

Attachments

ATT-1 LC030000 Road Resurfacing 2023 – CCBF

ATT-2 23090322 Brine Truck w/Plow

ATT-3 23002901 Snow Blower Attachment Add'l

ATT-4 23003001 Multi-use Tractor with Implements

Prepared by:

Ranil Fernando – Manager of Infrastructure and Asset Management

Dylan Quigley – Interim Supervisor of Fleet and Inventory Services

Submitted by:

Dave Meredith – Director of Operations and Environmental Services

Approved by:

Shane Baker – Chief Administrative Officer

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Project Name **Road Resurfacing Program**
Project Number LC030000

Program Description

The Road Resurfacing program includes projects related to resurfacing of the Town's urban and rural roadways. Resurfacing projects include the removal of the existing surface layer and repaving with new asphalt to restore the road surface back to an excellent condition. Mill and Overlay (M&O) projects include grinding the existing surface and applying new asphalt to restore the road surface back to an excellent condition.

The scope of the projects may also include sidewalk replacement, curb and gutter replacement, storm sewer repairs, and minor road improvements. Minor road maintenance such as patching and crack sealing is also done through this program.

The ongoing monitoring of road conditions through the annual pavement management systems updates is also included within the scope of this program.

Timely road resurfacing and maintenance of the Town's road network, consisting of 675 lane kms, ensures public safety, reduces the lifecycle cost of operation and minimizes the risk of unplanned service disruptions.

EXPENDITURES / FUNDING

		2023	2024	2025	2026-2032	Total
Expenditures						
23030001	Delaney Dr Resurf-Church to Ravencroft	**870,200**	**-**	**-**	**-**	**870,200**
23030002	Ritchie Ave Resurf-Westney S to Kingston	**866,600**	**-**	**-**	**-**	**866,600**
23030003	Farrow Cr Resurf-Parkes DrW to Parkes	**443,800**	**-**	**-**	**-**	**443,800**
23030004	Fitzgerald Dr Resurf-Varley Dr to Parkes Dr	**356,000**	**-**	**-**	**-**	**356,000**
23030005	Varley Dr Resurf-Parkes to Lake Driveway	**288,300**	**-**	**-**	**-**	**288,300**
23030006	Rideout St Resurf-Exeter Rd to Kings Cres	**176,200**	**-**	**-**	**-**	**176,200**
23030007	Pavement Management System Update	**51,000**	**-**	**-**	**-**	**51,000**
23030008	Bowers Ct Recons-Brockman Cres to End	**48,000**	**396,900**	**-**	**-**	**444,900**
23030009	Brockman Cres Resurf-Delaney to Delaney	**-**	**489,900**	**-**	**-**	**489,900**
23030010	Crack Sealing-Var Locations	**100,000**	**-**	**-**	**-**	**100,000**
23030011	Patching-Var Locations	**50,000**	**-**	**-**	**-**	**50,000**
24030001	Harwood S Resurf-Clements W to Bayly E	**-**	**1,682,000**	**-**	**-**	**1,682,000**
24030002	Pickering Beach M&O-Beachview to Foord	**-**	**427,300**	**-**	**-**	**427,300**
24030003	Pickering Beach M&O-Foord to Emperor	**-**	**281,200**	**-**	**-**	**281,200**
24030004	Tipton Cres M&O - Brockman to Tipton	**-**	**251,500**	**-**	**-**	**251,500**
24030005	Pavement Management System Update	**-**	**48,000**	**-**	**-**	**48,000**
24030006	Hobson M&O-Brockman Cr. to Brockman	**-**	**43,300**	**-**	**-**	**43,300**
24030007	Crack Sealing-Var Locations 2024-2032	**-**	**100,000**	**100,000**	**700,000**	**900,000**
24030008	Patching-Var Locations 2024-2032	**-**	**50,000**	**50,000**	**350,000**	**450,000**

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Project Name **Road Resurfacing Program**

Project Number LC030000

EXPENDITURES / FUNDING

		2023	2024	2025	2026-2032	Total
Expenditures						
25030001	Harwood Ave M&O-Kerrison to Rossland W	-	-	**1,150,000**	-	**1,150,000**
25030002	Large Cres Resurf - Pearce Dr to Pearce Dr	-	-	**668,100**	-	**668,100**
25030003	Mullen Dr Resurf - Latimer St to Latimer St	-	-	**432,100**	-	**432,100**
25030004	Dakin Dr Resurf - Large Cres to Large Cres	-	-	**334,000**	-	**334,000**
25030005	Burningham Cres Resurf - Lincoln to Lincoln	-	-	**315,900**	-	**315,900**
25030006	Linton Ave Resurf-Kearney to Old Kingston	-	-	**307,500**	-	**307,500**
25030007	Station St Resurf-Mills Rd to Harwood Ave	-	-	**303,800**	-	**303,800**
25030008	Windsor Dr Resurf-Old Kingston to Kearney	-	-	**224,700**	-	**224,700**
25030009	Sherwood Rd Resurf-Windsor to Church	-	-	**212,200**	-	**212,200**
25030010	Cameron St Resurf - Elizabeth to Windsor	-	-	**172,700**	-	**172,700**
25030011	Dingley Ct Resurf - Lincoln St to End	-	-	**103,000**	-	**103,000**
25030012	Pavement Management System Update	-	-	**50,000**	-	**50,000**
25030013	Latimer St Resurf - Mullen Dr to Large Cres	-	-	**56,900**	-	**56,900**
26030001	Church St N M&O-Meekings to Rossland W	-	-	-	**848,000**	**848,000**
26030002	Ashbury M&O - Shoal Point to Audley	-	-	-	**501,000**	**501,000**
26030003	Mandrake St Resurf - Doric to Salem	-	-	-	**500,100**	**500,100**
26030004	Humphrey Dr Resurf-Lake Dwy W to Hilling	-	-	-	**418,700**	**418,700**
26030005	Cedar St Resurf - Knapton to Tudor Ave	-	-	-	**351,800**	**351,800**
26030006	Dobson Dr Resurf - Angus to Mandrake	-	-	-	**330,500**	**330,500**
26030007	Kipling Resur-Lake Dwy W to Lake Dwy W	-	-	-	**268,100**	**268,100**
26030008	Fielding Court Resurf - Westney Rd to End	-	-	-	**252,400**	**252,400**
26030009	Bird Crescent Resurf - Dobson to Dobson	-	-	-	**227,400**	**227,400**
26030010	Walker Resurf-Lake Dwy W to Lake Dwy W	-	-	-	**208,600**	**208,600**
26030011	Hilling Resurf-Lake Dwy W to Humphrey	-	-	-	**188,400**	**188,400**
26030012	Warwick Resurf - Ashbury to Lilley	-	-	-	**184,700**	**184,700**
26030013	Vale Resurf-Lake Dwy W to Lake Dwy W	-	-	-	**171,000**	**171,000**
26030014	Simpson Rd Resurf-Clements to Emperor	-	-	-	**163,500**	**163,500**
26030015	Follett Court Resurf - Simpson Road to End	-	-	-	**135,000**	**135,000**
26030016	Hewison Court Resurf - Kingston Rd to End	-	-	-	**81,800**	**81,800**
26030017	George Jones St Resurf-Sherwood to	-	-	-	**74,800**	**74,800**
26030018	Pavement Management System Update	-	-	-	**54,000**	**54,000**
26030019	Oldfield Court Resurf - Delaney Dr to End	-	-	-	**51,200**	**51,200**
27030002	Pavement Management System Update	-	-	-	**51,000**	**51,000**
27030003	Harwood Ave S Resurf-Kings Cr to Bayly St	-	-	-	**1,215,100**	**1,215,100**
27030004	Shoal Point Rd Resurf-Ashbury to Duckfield	-	-	-	**231,500**	**231,500**
27030005	Mayor Cres Resurf-Range Line to End	-	-	-	**374,900**	**374,900**
27030006	Flazington Court Resurf-Mayor Cres to End	-	-	-	**74,700**	**74,700**
28030002	Pavement Management System Update	-	-	-	**53,000**	**53,000**
28030003	Road Resurfacing Program - Inc. Backlog	-	-	-	**36,424,900**	**36,424,900**
29030001	Road Resurfacing Program	-	-	-	**15,814,500**	**15,814,500**
29030002	Pavement Management System Update	-	-	-	**57,000**	**57,000**
30030001	Road Resurfacing Program	-	-	-	**16,950,400**	**16,950,400**
30030002	Pavement Management System Update	-	-	-	**54,000**	**54,000**
31030001	Pavement Management System Update	-	-	-	**56,000**	**56,000**
31030002	Road Resurfacing Program	-	-	-	**16,099,600**	**16,099,600**
32030001	Road Resurfacing Program	-	-	-	**19,345,100**	**19,345,100**
Total Expenditures		**3,250,100**	**3,770,100**	**4,480,900**	**112,862,700**	**124,363,800**

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Project Name **Road Resurfacing Program**

Project Number LC030000

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Financing					
Road Maintenance Reserve	**249,000**	**1,598,200**	**1,653,800**	**93,025,300**	**96,526,300**
Canada Community-Building Fund	**3,001,100**	**2,171,900**	**2,827,100**	**19,837,400**	**27,837,500**
Total Financing	**3,250,100**	**3,770,100**	**4,480,900**	**112,862,700**	**124,363,800**

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Department	Operations & Environmental Services	**Initially budgeted in**	2023
Section	Fleet / Equipment Maintenance		
Project Name	**Brine Truck w/Plow**		
Submitted By	Dylan Quigley, Interim Supervisor Fleet & Inventory		
Start Year	2023		
Project Number	23090322		

PROJECT DESCRIPTION / JUSTIFICATION

Scope: This project includes an additional brine truck with plow and wing attachments to support Operations staff with providing proactive brine application.

Rationale: The purpose of this vehicle is to support snow removal operations and be specifically dedicated to the anti-icing (brine) program. In this configuration, the brine tank will mirror a water tank during the off season. As the Town has grown over the past few years, the arterial and collector road distance has also grown, with no equipment added to support anti-icing operations. A multi-use heavy duty dump truck, with a brine tank attachment and snow plowing capabilities, will further support the anti-icing program by continuing to meet service levels as the Town's Road network and traffic capacities continue to evolve. This will allow the Operations section to provide a more consistent, proactive approach to anti-icing arterial and collector roadways to meet all service level expectations and the Minimum Maintenance Standards, which govern this transportation program.

Reference: Future DC

Schedule: Specifications will be developed upon project approval. Tender documents will be issued in early January 2023 with the expectation for delivery of the new asset by year end 2023 or sooner

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Total Expenditures	**650,000**	**-**	**-**	**-**	**650,000**
Development Reserve	**32,500**	**-**	**-**	**-**	**32,500**
Development Charges - 2018	**617,500**	**-**	**-**	**-**	**617,500**
Total Funding	**650,000**	**-**	**-**	**-**	**650,000**

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Department	Operations & Environmental Services	**Initially budgeted in**	2023
Section	Fleet / Equipment Maintenance		
Project Name	**Snow Blower Attachment Add'l.**		
Submitted By	Dylan Quigley, Interim Supervisor Fleet & Inventory		
Start Year	2023		
Project Number	23002901		

PROJECT DESCRIPTION / JUSTIFICATION

Scope: This project includes an additional snowblower attachment to be installed on one (1) of three (3) multifunctional tractors currently within the Town's fleet inventory.

Rationale: As a result of the most recent heavy snowfalls over the past few years, it has been determined by Operations and Environmental Service staff that an additional snow blower is required to assist with snow storage capacities after a severe storm, and/or multiple consecutive weather events. The additional snowblower will provide additional support to Operations and Environmental staff with respect to clearing limited snow storage spaces along roadways, cul de sac, multi-use trails, and sidewalks.

It is recommended that an additional snow blower attachment is purchased to ensure staff have adequate equipment to open snow storage locations within challenging areas in a timely fashion.

Reference: Council Meeting – Response to January 17, 2022 Winter Storm – Notice of Motion.

Specifications: Specifications will be developed upon project approval. Tender documents will be issued in late February 2023 with the expectation for delivery of the new asset in late April 2023.

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Total Expenditures	**15,000**	**-**	**-**	**-**	**15,000**
Development Reserve	**15,000**	**-**	**-**	**-**	**15,000**
Total Funding	**15,000**	**-**	**-**	**-**	**15,000**

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Department	Operations & Environmental Services	**Initially budgeted in**	2023
Section	Fleet / Equipment Maintenance		
Project Name	**Multi-use Tractor with Implements**		
Submitted By	Dylan Quigley, Interim Supervisor Fleet & Inventory		
Start Year	2023		
Project Number	23003001		

PROJECT DESCRIPTION / JUSTIFICATION

Scope: This project includes an additional multi-use heavy tractor with attachments to support Operations staff in providing year-round roads maintenance service.

Rationale: As a result of the most recent heavy snowfalls over the past few years, it has been determined by Operations and Environmental Service staff that additional resources are required to assist with snow removal in areas with little snow storage locations. This tractor, combined with snow removal implements, will provide staff with the proper equipment to remove snow after winter weather events in areas such as cul de sacs, laneways, townhouse developments, intersections, and other challenging areas with limited snow storage and clearing options. Moreover, the multi-use tractor combined with applicable implements can be used in non-winter months for gravel road and shoulder maintenance, roadside mowing, etc.

It is recommended that a multi-use tractor is purchased to ensure staff have adequate equipment to open snow storage locations within challenging areas in a timely fashion and have additional resources to better maintain gravel roads/shoulders and roadside mowing. Rental units have been explored in the past to provide one (1) time service using similar equipment but have been cost prohibitive.

Reference: Council Meeting – Response to January 17, 2022 Winter Storm – Notice of Motion.

Specifications: Specifications will be developed upon project approval. Tender documents will be issued in late February 2023 with the expectation for delivery of the new asset in late April 2023.

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Total Expenditures	**400,000**	**-**	**-**	**-**	**400,000**
Development Reserve	**400,000**	**-**	**-**	**-**	**400,000**
Total Funding	**400,000**	**-**	**-**	**-**	**400,000**

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Cameron Richardson, Supervisor of Environmental Sustainability & Climate Change
Report #:	PDS-2022-27
Subject:	**Contract Award - Carruthers Creek Trail Reconstruction Project (Kerrison Dr to Kingston Rd E)**
Ward(s):	2
Date of Meeting:	December 12, 2022
Reference:	GGC – February 21, 2022 (Contract Award – Kingston Rd E Wetland Restoration – CAO-2022-01) 2022 Capital Project Number 1025611.5850 – Wetland Restoration (Kingston Rd E)

Recommendations:

1. **That the report on the contract award to Toronto and Region Conservation Authority (TRCA), in the amount of $109,971.60 (inclusive of all taxes) for Carruthers Creek Trail (Kerrison Dr to Kingston Rd E) reconstruction, be received for information; and,**

2. **That Council approve funding of $108,936.11 to be allocated to Capital Account No. 1025611 from Capital Contingency Reserve.**

Background:

In January 2021, on the recommendation of Council, staff applied for the *Investing in Canada Infrastructure Program (ICIP): COVID-19 Resiliency Fund*. This fund was made available to all municipalities in Ontario, and the Town was permitted to submit up to five (5) applications for projects up to a maximum funding allocation of $764,614. The Town submitted a joint application with the Region of Durham for the Kerrison Road Wetland Restoration Project, combining $250,000 of Ajax's allocation with $500,000 of the Region's for a total project budget of $750,000. The application was subsequently approved by the federal and provincial governments, with Ajax identified as the lead applicant and therefore responsible for the full administration of the project and grant funds.

Council awarded the contract for the restoration of the Kerrison Road Wetland Restoration Project to the Toronto and Region Conservation Authority (TRCA) at the February 2022 General Government Committee meeting (Report CAO-2022-01).

Discussion:

A section of the Carruthers Creek Trail (Kerrison Drive to Kingston Road) is located within the wetland restoration project site. This asphalt multi-use trail was completed and opened in 2016. In early 2018, a large section of the trail (approximately 300m) was flooded due to heavy rains and upstream beaver activity. The trail remained inundated with variable levels of water until Spring 2022 when the beaver dam was removed by natural processes. Although the flood waters receded, the trail sustained major damage. Town of Ajax staff have determined that the damaged section of trail will be re-aligned to higher ground to mitigate the impacts of future flooding events while maintaining the important Carruthers Creek active transportation corridor.

As part of earlier detailed design work associated with the Kerrison Wetland Restoration Project, TRCA has already completed a detailed concept design for the Carruthers Creek Trail re-alignment and reconstruction and has the capacity to complete the project to a high standard and concurrently with the wetland restoration works.

The current Purchasing By-law allows for purchases through negotiations, under certain conditions, more specifically, “where, at the discretion of the Department Head, in consultation with the Manager of Purchasing, it is deemed to be in the best interest of the municipality to negotiate with vendors.”

Staff have requested to single source this award as it is deemed to be in the best interest of the Town of Ajax, for the following reasons:

- The entire project area is located within the Regulated Area and Terrestrial Natural Heritage System of the TRCA, meaning the Town will not be required to apply and pay for the mandatory permits to complete the work and any costs will be absorbed through the TRCA’s management of the existing Wetland restoration project.

- This project was identified as a priority to reconnect the popular Carruthers Creek Trail system and Council authorized staff to fund and include the trail re-alignment and reconstruction as part of the larger Kerrison Wetland Restoration Project in report CAO-2022-01.

- Since TRCA is already mobilized on the project site completing the ICIP-funded wetland restoration project, the trail re-alignment and reconstruction can be completed on an expedited timeline and with considerable cost savings to the Town.

The Manager of Purchasing agrees that this procurement is in the best interest of the Town and approves this single source request on the basis that it meets the following condition(s) set out in the Town’s Purchasing By-law:

- The required Goods/Services are to be supplied by a particular Bidder/Proponent having special knowledge, skill, expertise, or experience which cannot be provided by any other person (Section 5.3.8 of the By-law).

Since the wetland restoration project is underway, it is anticipated that the trail reconstruction project will be substantially completed by the end of 2022.

Financial Implications:

The Carruthers Creek Trail reconstruction work awarded within this report will be allocated from the Town's Capital Contingency Reserve.

Capital Account No 1025611.5850 - Wetland Restoration (Kingston RD E)

ICIP Grant – COVID 19 Resilience Infrastructure Fund		
Town Grant Allocation	$250,000.00	
Region Grant Allocation	$500,000.00	
Additional Funding – Tree Compensation Fund - February 22, 2022 GGC	$60,000.00	$810,000.00
Previous Awards/Expenditures		
TRCA Contract Award for wetland restoration (net of HST rebate) (Upset Limit)	$750,000.00	
TRCA Contract Award for additional plantings to partially match Ducks Unlimited Canada contribution (net of HST rebate) (Upset Limit)	$60,000	$810,000.00
Available Budget		$0.00
Current Award(s)		
Contract (net of HST rebate)	$99,032.83	
Contingency (10%)	$9,903.28	$108,936.11
Over Budget		($108,936.11)

Additional Funding, not to exceed $108,936.11 to be allocated from the Capital Contingency Reserve.

Contingency amounts has been set at 10% of the net contract price due to the possibility of poor sub grade conditions and soft spots that could be identified once the asphalt surface has been removed. Over-runs may occur on the estimated quantities of asphalt and granular materials when repairing unforeseen deteriorated areas. Risks that can cause delays, necessitating the need for additional material and labor associated with the construction include poor weather conditions, unforeseen global supply chain shortages, contamination of soil, etc.

Communication Issues:

This project is expected to garner significant positive feedback from the community based on the popularity of the Town's trail system. Town staff will ensure that the Town, Region and TRCA are profiled prominently and positively given their direct involvement, financial commitments, and existing relationships with the Town.

Formal communications activities, including for the official announcement, signage, interim progress updates and project completion, will include Members of Council and representatives

from all partners where appropriate. Additionally, all communications will be strategically aligned with those of the Kerrison Wetland Restoration Project.

Relationship to the Strategic Plan:

This report aligns with the following sections of the 2018-2022 Strategic Plan – Stronger Together:

Focus Area:	Leading our Community
Goal:	Providing continued leadership in environmental sustainability
Action:	Implement actions and recommendations in the Ajax Climate Risk & Resiliency Plan

Focus Area:	Connecting our Community
Goal:	Enhancing connections to get people moving
Action:	Promote and facilitate the use of the Town's integrated active transportation network

Focus Area:	Investing in our Community
Goal:	Building new municipal infrastructure
Action:	Introduce new active transportation infrastructure and connections

Conclusion:

It is the recommendation of staff that Toronto and Region Conservation Authority be awarded the contract for the Carruthers Creek Trail (Kerrison Dr to Kingston Rd E) Reconstruction Project based on the information contained within this report and CAO-2022-01.

Attachments:

N/A

Prepared by:

Cameron Richardson – Supervisor of Environmental Sustainability & Climate Change – ext. 3229

Submitted by:

Geoff Romanowski, MCIP, RPP, CPT – Director, Planning and Development Services

Approved by:

Shane Baker – Chief Administrative Officer

Dianne Valentim, CPA, CGA – Director of Finance/Treasurer

Shaun Collier – Mayor and Chief Executive Officer

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Stev Andis, MCIP, RPP Manager of Planning
Report #:	**PDS-2022-28**
Subject:	**Resolution to Support Index Energy's Application to the Independent Electric System Operator**
Ward(s):	3
Date of Meeting:	December 12, 2022
Reference:	N/A

Recommendation:

That Town of Ajax Council approve the resolution included as ATT-1 to this report in support of Index Energy Ajax Corporation's application to the Independent Electricity System Operator under the Expedited Long-Term Request for Proposals to provide electricity to the grid.

1.0 Background:

The Independent Electric System Operator (IESO) coordinates Ontario's electricity system to balance supply and demand by directing the flow of electricity across Ontario's transmission lines. The IESO also forecasts Ontario's future energy needs. The IESO has identified that Ontario is entering a period of increased electricity system needs driven by increasing demand, eventual retirement of the Pickering nuclear plant, refurbishment of other nuclear generating units, and expiring contracts for existing facilities. To address this growing electricity need, the IESO has issued an Expedited Long-Term Request for Proposals to competitively secure an additional 1,500 MW of capacity.

The IESO has approached Ontario's power generators, including Index Energy Ajax Corporation, and has requested them to submit projects that would demonstrate their ability to supply a portion of the needed increase in electricity demand.

Index Energy Ajax Corporation (Index Energy) owns a 25 MW woodwaste biomass-fired cogeneration facility located at 170 Mills Road. The Index Energy facility serves a portion of Ontario's renewable energy needs by providing electricity into Ontario's electric power grid from clean woodwaste resources. EcoGen Holdings, LLC (EcoGen) is in the process of acquiring Index Energy.

Index Energy submitted an application to the IESO in response to the request for proposals and has met the IESO's top 3 expectations: 1) geographical location of the power generating facility

in relation to the areas of greatest demand; 2) power generating facility using green energy alternatives; and 3) ability to meet the IESO's date for commercial operation. As Index Energy's application met the IESO's top 3 expectations, they have been invited to enter the next stage of discussion which requires evidence of municipal support for the application (i.e. a Council Resolution).

2.0 Discussion:

The Index Energy facility was designed to have a net output of 25 MW through the operation of three steam turbine generators and three boilers. However, the facility had only been operating two steam turbine generators and two boilers to generate a total of 17.8 MW. These 17.8 MW of electricity are under an executed Feed-in-Tariff contract with the IESO until 2034.

As noted in the Background section above, Index Energy recently submitted an application in response to the Expedited Long-Term Request for Proposals issued by the IESO to provide an additional 7.62 MW of electricity to the grid. Should Index Energy be successful in receiving a contract from the IESO, the electricity generated from the Index Energy facility would feed into the local Elexicon electricity grid.

2.1 Index Energy Facility Refurbishment: Provincial and Municipal Approvals

In June 2020, the Index Energy facility entered an extended outage to refurbish the facility to increase the facility's reliability and availability. Refurbishment of the facility includes updating the boilers and steam turbine generators, installation of a new digital control system, and the installation of a new material handling system.

On September 23, 2021, the Ontario Ministry of the Environment, Conservation and Parks issued an Amended Environmental Compliance Approval for the refurbishment of the Index Energy facility. Index Energy is currently preparing detailed plans and specifications for the refurbishment and once completed will be submitted to the Town for required planning and/or building permit approvals.

Upon completion of construction and commissioning of the new equipment, which is expected in March 2025, the Index Energy facility will be fully operational with a net output of 25 MW.

2.2 EcoGen Hub Site at the Port of Oshawa

EcoGen is completing a long-term lease for a 2.8 acre hub site at the Port of Oshawa to develop a facility for the pre-chipping of clean woodwaste that would be transported to the Ajax Index Energy facility. The Port of Oshawa Hub Site is expected to be operational in January 2025.

2.3 Economic Benefits

Expansion of the Index Energy facility in Ajax and establishment of the Port of Oshawa Hub Site supports the Economic Development Action Plan's goal of being Leaders in Business Retention, Expansion and Attraction. Enabling growth among existing businesses helps businesses create and preserve local employment.

Expansion of the Index Energy facility in Ajax and establishment of the Port of Oshawa Hub Site is expected to create 150 direct and indirect construction jobs between 2023 and 2025 (125 jobs at the Index Energy facility and 25 jobs at Port of Oshawa Hub Site). Construction jobs include consultants, millwrights, pipefitters, boiler makers, welders, carpenters, and electricians. Once the Index Energy facility is fully operational, it will support 75 direct and indirect permanent jobs

from 2025 and beyond (60 jobs at the Index Energy facility and 15 jobs at the Port of Oshawa Hub Site). Permanent jobs include consultants, technicians, licensed operators, welders, carpenters, electricians, and maintenance.

2.4 Supporting Green Renewable Technologies and District Energy

As woodwaste biomass can be used to provide renewable energy with low to zero carbon emissions, the refurbishment and expansion of the Index Energy facility can help provide positive action on climate change and will be vital to achieve the Town's Council-endorsed corporate and community greenhouse gas (GHG) reduction targets. The use of woodwaste biomass as a fuel:

- adds no net CO_2 to the atmosphere;
- helps reduce waste by diverting woodwaste from landfill; and,
- reduces the need for fossil fuel consumption.

The refurbishment and expansion of the Index Energy facility will create a sustained and reliable source of local energy production and has the potential to become a true district energy facility that would reduce the need for numerous, less efficient heating and cooling systems in individual building systems; reduce operating costs for local industries by using steam generated at the plant; and, make Ajax a leader in sustainable development.

2.5 The Council Resolution

The Council Resolution, provided in Attachment 1, is solely for the purpose of enabling Index Energy to receive Rated Criteria points from the IESO and does not supersede any applicable municipal or provincial permits or approvals that may be required under applicable laws and regulations (e.g. building permits or environmental compliance approval). Even though the Council Resolution may help rank Index Energy's application higher in relation to other applications received by the IESO, it does not guarantee that a contract will be offered to Index Energy under the Expedited Long-Term Request for Proposals.

3.0 Financial Implications:

N/A

4.0 Communication Issues:

N/A

5.0 Relationship to the Strategic Plan:

Area of Focus: Leading Our Community
Goal: Providing continued leadership in environmental sustainability

6.0 Conclusion:

The refurbishment and expansion of the Index Energy facility in Ajax will be vital in achieving the Town's Council-endorsed corporate and community GHG emissions reduction target and can become a positive economic driver for the Town. It is also an important step towards helping the Town realize the Official Plan vision of creating a true district energy facility in the Downtown to serve local industries, businesses, and future residential development.

In the Economic Development Action Plan innovation is the application of new ideas or inventions into a good or service that creates value. Providing support, through Council resolutions such as this, to businesses and individuals that are advancing innovation enables them to grown and succeed in Ajax.

Staff recommend Council's endorsement of the resolution in Attachment 1 to support Index Energy's application to the IESO.

Attachments:

ATT-1: Council Support Resolution for Index Energy IESO Application

Prepared by:

Stev Andis – Manager of Planning

Submitted by:

Geoff Romanowski – Director of Planning & Development Services

Approved by:

Shane Baker – Chief Administrative Officer

Attachment 1

Council Support Resolution for Index Energy IESO Application

MUNICIPAL COUNCIL SUPPORT RESOLUTION

Independent Electric System Operator (IESO) Long-Term Reliability Project- under the E-LT1 RFP

Date: _____

WHEREAS Index Energy Ajax Corporation (the "**Proponent**") is proposing to construct and operate a Long-Term Reliability Project (the "**Project**"), with the characteristics outlined in the table below, under the Expedited Long-Term Request for Proposals (**"E-LT1 RFP"**) issued by the Independent Electricity System Operator (**"IESO"**).

Name of the Long-Term Reliability Project:	***EcoGen X Project***
Proponent:	***Index Energy Ajax Corporation***
Technology of the Long-Term Reliability Project:	***Back Pressure Steam Turbine Generator***
Maximum Contract Capacity of the Long-Term Reliability Project (in MW):	***7.62 MW***
Legal description of the portion of the Project Site:	Registered Plan M-30, Part of Lots 3, RP 40R4883 Part 1 and RP 40R4882 Parts 1 and 2; and Plan 512, Part of Lot 3, RP 40R8366, Part 1, known municipally as 170 Mills Road, in the Town of Ajax (the "**Municipal Lands**")

AND WHEREAS Pursuant to the E-LT1 RFP, Proposals that receive the formal support of the local jurisdictional authorities of all the project communities in which the Long-Term Reliability Project is located in the form of a support resolution will be awarded Rated Criteria points for the purpose of ranking the Proposal in relation to other Proposals for a contract under the E-LT1 RFP.

NOW THEREFORE BE IT RESOLVED THAT:

1. The Council of the Town of Ajax supports the development, construction, and operation of the Long-Term Reliability Project on the Municipal Lands.

2. This resolution's sole purpose is to enable the Proponent to receive Rated Criteria points under E-LT1 RFP or to satisfy its obligations under any awarded E-LT1 Contract and may not be used for the purpose of any other form of approval in relation to the Proposal or Long-Term Reliability Project or for any other purpose. Rated Criteria points will be used to rank the Proponent's Proposal in relation to other Proposals received by the IESO under the E-LT1 RFP.

_____
Mayor

_____
Clerk

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Sean McCullough, MCIP, RPP Supervisor, Planning Policy and Research
Report #:	2022-PDS-29
Subject:	**Bill 23: *More Homes Built Faster Act, 2022*** **Town of Ajax Comments**
Ward(s):	All
Date of Meeting:	December 12, 2022

Recommendations:

1. **That the Report entitled "Bill 23: More Homes Built Faster Act, 2022 – Town of Ajax Comments" be received for information.**

2. **That Council endorse staff's comments, included as Attachment 1 to this report, that were submitted in response to ERO bulletin No. 019-6172 *Proposed Planning Act and Development Charges Act Changes: Providing Greater Cost Certainty for Municipal Development-related Charges;***

3. **That Council endorse staff's comments, included as Attachment 2 to this report, that were submitted in response to ERO bulletin No. 019-6163 – *Proposed Planning Act and City of Toronto Act Changes (Schedules 9 and 1 of Bill 23 – the proposed More Homes Built Faster Act, 2022); Bulletin No.* ERO 019-6173 - *Proposed Amendments to O.Reg. 232/18: Inclusionary Zoning; Bulletin No.* ERO bulletin No. 019-6197 – Proposed Changes to *O.Reg. 299/19: Additional Residential Units*;**

4. **That Council endorse staff's comments, included as Attachment 3 to this report, that were submitted in response to ERO bulletin No. *ERO 019-6141 – Legislative and regulatory proposals affecting conservation authorities to support the Housing Supply Action Plan 3.0; ERO Bulletin No. 019-2927 - Proposed Updates to the regulation of development for the protection of people and property from natural hazards in Ontario; and* ERO Bulletin No. 019-6160 - *Revisions to Ontario's Wetland Evaluation System (OWES).***

5. **That Council endorse staff's comments, included as Attachments 4 to this report, that were submitted in response to ERO bulletin No. ERO 019-6192 - Supporting Growth and Housing in York and Durham Regions Act, 2022*;***

6. **That a copy of this report, attachments, and Council's resolution be submitted to the Ministry of Municipal Affairs and Housing; Ministry of Natural Resources; Ministry of Environment, Conservation and Parks; and sent to the Hon. Doug Ford, Premier of Ontario; Hon. Steve Clark, Minister of Municipal Affairs and Housing;**

Patrice Barnes, MPP for Ajax; the Region of Durham; Toronto and Region Conservation Authority; Central Lake Ontario Conservation Authority; Durham Area Municipalities; and Environmental Defense.

Background:

The Province has committed to constructing 1.5 million households over the next 10 years. To do this, on October 25, 2022, the Province released the More Homes Built Faster: Ontario's Housing Supply Action Plan 2022-2032 and introduced Bill 23: *More Homes Built Faster Act, 2022.* This omnibus Bill proposes to amend nine (9) different statutes, including:

- *City of Toronto Act, 2006*
- *Conservation Authorities Act*
- *Development Charges Act, 1997*
- *Municipal Act, 2001*
- *New Home Construction Licensing Act, 2017*
- *Ontario Heritage Act*
- *Ontario Land Tribunals Act, 2021*
- *Ontario Underground Notification System Act, 2012*
- *Planning Act*

The Bill also introduces new legislation entitled *Supporting Growth and Housing in York and Durham Regions Act, 2022*.

The Bill makes sweeping changes to Ontario's land-use planning system, Conservation Authorities, heritage preservation, protection of natural heritage systems, and development-related municipal finance tools that help pay for growth-related infrastructure.

The Province released 16 bulletins on the Environmental Registry of Ontario (ERO) with consultation periods ranging between 30 days (ending on November 24, 2022) and 66 Days (ending on December 30, 2022). On November 23, 2022, the commenting deadlines associated with bulletins that were set to end on November 24, 2022, were extended by 15 days to December 9, 2022.

On November 22, 2022, the Standing Committee on Heritage, Infrastructure and Cultural Policy made amendments to schedules relating to the *City of Toronto Act, Development Charges Act,* and *Planning Act*.

In order to meet the original November 24, 2022 commenting deadline, staff prepared and submitted comments on November 23, 2022 in response to eight (8) ERO postings that have been included as Attachments 1 to 4, inclusive, with this report. Comments on related ERO postings were grouped together as follows:

ATT-1: ERO No. 019-6172 – *Proposed Planning Act and Development Charges Act Changes: Providing Greater Cost Certainty for Municipal Development-related Charges*

ATT-2: ERO No. 019-6163 – *Proposed Planning Act and City of Toronto Act Changes (Schedule 9 and 1 of Bill 23 – the proposed More Homes Built Faster Act, 2022)*

ERO No. 019-6173 - *Proposed Amendments to O.Reg. 232/18: Inclusionary Zoning*

ERO NO. 019-6197 – Proposed Changes to *O.Reg. 299/19: Additional Residential Units*

ATT-3: *ERO No. 019-6141 – Legislative and regulatory proposals affecting conservation authorities to support the Housing Supply Action Plan 3.0*

ERO No. 019-2927 - Proposed Updates to the regulation of development for the protection of people and property from natural hazards in Ontario

ERO No. 019-6160 - *Revisions to Ontario's Wetland Evaluation System (OWES)*

ATT-4: ERO No. 019-6192 - *Supporting Growth and Housing in York and Durham Regions Act, 2022*

On November 28, 2022, ahead of the extended commenting deadline on December 9, 2022, Bill 23 received Royal Assent. Many of the amendments included in Bill 23 came into force on Royal Assent, while other amendments will come into force on proclamation following the release of related regulations. Staff will continue to review the amendments and evaluate next steps. The purpose of this report is to obtain an endorsement of staff comments that were submitted to the Province on November 23, 2022.

Discussion:

The following is a brief overview of changes implemented through Bill 23, and proposed regulations and policy documents.

Municipal Development-related Charges (ERO No. 019-6172)

Bill 23 amended the *Development Charges Act* and *Planning Act* that will impact municipal development-related charges including Development Charges (DCs), Parkland Dedication and Community Benefits Charges (CBC). The Province has grouped these amendments together in ERO No. 019-7172.

Amendments to the *Development Charges Act*:

- Remove land acquisition and study (e.g. Official Plan Review, DC Background Study etc.) costs associated with DC projects from being eligible for inclusion in the calculation and collection of DCs.
- Introduce new DC rates are to be phased in over a 5-year period. Meaning that new rates would be discounted in year 1 (20% discount) with the discount gradually decreasing (year 2 – 15%, year 3 – 10%, year 4 – 5%) until the full rate is applied in year 5.
- Extend the timeframe used to calculate the historical level of service from 10 to 15 years.
- Apply a maximum interest rate (bank prime + 1%) to DC payment deferrals.
- Extend the expiry of DC By-laws from 5 to 10 years.
- Apply a discount to purpose-built rentals based on number of rooms (25% discount for 3 bedrooms, 20% discount for 2 bedrooms and 15% for all others).
- Require municipalities to spend or allocate 60% of DC reserves associated with highways.

Amendments to the *Planning Act* related to Parkland Dedication and CBCs:

- Cut the maximum alternative parkland dedication rate in half to 1 hectare per 600 units (previously 300 units) where land is conveyed, and 1 hectare per 1,000 units (previously 500 units) for cash-in-lieu.
- Freeze the land value used to calculate parkland dedication for two years at the time that a Zoning By-law Amendment or Site Plan application is submitted.
- Impose a maximum land area or value thereof that can be collected where the alternative rate is utilized (10% for sites less than 5 hectares and 15% for sites greater than 5 hectares).
- Establish a process and criteria for developers to identify parkland and for municipalities to accept encumbered land (lands with easements or below grade infrastructure) for parks, and allow an applicant to appeal to the Ontario Land Tribunal if the municipality refuses to accept the encumbered land.

Amendments also exempt 'affordable' (both rental and ownership) and 'attainable' housing units from paying DCs, Parkland Dedication, and CBC's. 'Affordable' is defined as a unit that is 80% the average market rent or average market value. Average market value or rent will be established in a bulletin that will be released by the Province. 'Attainable' however, is only identified as not being affordable, not being rental, and within a prescribed class of development or meeting prescribed criteria. At this time, there is no indication as to what an 'attainable' unit is as the prescribed information would be released later.

Staff submitted comments in response to ERO No. 019-6172 on November 23, 2022, which have been included as Attachment 1.

<u>Key Comments</u>

- The Town does not support amendments that remove a funding source for land acquisition and studies for DC projects. Based on the current DC Background Study, this would impact $14.7 million in planned growth-related studies and land costs.
- The Town does not support discounting of new DC's. After examining the previous 5 years of DC collections, the discounting of DCs would have resulted in $4.6 million less DC collections.
- The known impact to the Town would be approximately $1.9M annually, which equates to an annual tax levy increase of 2.5%. This figure does not include anticipated funding loss from the exclusions for attainable/affordable housing, the extension of historical service level from 10 years to 15 years, the discount on purpose-built rentals, and amendments to Parkland Dedication and CBC calculation and exemptions.
- The Town does not support the exemption for 'attainable' housing units from paying DC's, Parkland Dedication and CBCs as the Province has not identified what an 'attainable' unit is.
- The Town does not support extending the timeframe for calculating the historical service level from 10 to 15 years, as the historical level of service would decrease the calculated cap, thereby further reducing the charge, and would not be reflective of the needs of the community.
- The Town does not support amendments to Section 42 of the *Planning Act* related to Parkland Dedication, as it will have consequential impacts on parkland within communities across Ontario, especially in high density communities.
- The Province recently required municipalities to update parkland dedication by-laws by September 18, 2022, many of which have already been appealed by the development industry. Poor coordination of legislative changes is unnecessarily costing municipalities significant financial resources.

The amendments outlined in Bill 23 are contrary to the core principle of growth paying for growth. The changes will make long-term home ownership costs unaffordable by shifting the growth-related financial burden to taxpayers currently struggling with the high cost of inflation on food and utilities, funding an infrastructure deficit, and the impacts of climate change.

***Planning Act* and associated regulations (ERO No. 019-6163, 019-6173 and 019-6197)**

There are many amendments to the *Planning Act* and related regulations that will directly impact the Town's planning responsibility and operations. The following is an overview of the changes to the *Planning Act*:

- The Region of Durham is now an "Upper-tier Municipality without Planning Authority". Meaning that the Region will no longer have any responsibility for planning and growth management. The Region's Official Plan is to be assigned to the lower-tier municipalities, and the Province will become the approval authority of lower-tier Official Plans and amendments.
- Consent applications (land division) are to be downloaded from the Region to the Town.
- Official Plans and Zoning By-laws must permit up to three (3) units (3 units in an existing dwelling, or 2 units in an existing dwelling and a 3rd in a detached accessory building) in a detached, semi-detached or townhouse dwelling. Zoning By-laws could also not set a minimum unit size or require more that one (1) parking space per unit.
- Site Plan Control no longer applies to:
    - buildings with 10 dwelling units or less;
    - the exterior design of buildings;
    - approval of design elements, including landscape design on properties and the adjoining boulevard, except for matters related to health, safety, accessibility, sustainable design, or the protection of adjoining lands.
- An existing prohibition of appeals on zoning by-laws to establish Major Transit Station Areas (MTSA) would be lifted if municipalities do not pass a zoning by-law implementing MTSA Official Plan policy within one (1) year.
- Remove the requirement to hold a public meeting for plans of subdivision.

The Province also released ERO No. 019-6173 which proposes to amend Ontario Regulation (O.Reg.) 232/18: Inclusionary Zoning (IZ). IZ allows municipalities to require a minimum percentage of units to be provided at an affordable rate. Currently, there is no maximum on the percentage of units that a municipality may require, however rates need to be supported by an assessment report that examines local context and affordability to justify the number of units. Amendments will limit the number of IZ units (or gross floor area) in a development to 5% and set the affordable price or rental rate at 80% of the average market rent. Units will also only be required to remain affordable for a period of 25 years.

Similarly, the Province released ERO No. 019-6197 amendments to O.Reg. 299/19: Additional Dwelling Units, to permit up to three units in a detached, semi-detached or townhouse dwelling "as-of-right", without the need for a Zoning By-law Amendment or Official Plan Amendment.

Staff submitted comments in response to ERO No. 019-6163, 019-6173, and 019-6197 on November 23, 2022, which have been included as Attachment 2.

<u>Key Comments:</u>

- The Town have concern with the Region's Official Plan being transferred to the Town as servicing and transportation infrastructure planning is inherently tied to growth management and could result in construction delays and higher costs for infrastructure.

- Additionally, the Province has not been expedient in approving Regional Official Plan Amendments, and transferring all lower-tier Official Plans to the Province for approval could compound the issue, and delay approvals. If the Region's Official Plan is to be transferred to the Town, the Province needs to:
    - engage in consultation with municipalities to determine which Official Plan Amendments are to be exempt from Provincial approval;
    - commit to hiring significantly more staff at the Ministry of Municipal Affairs and Housing to review and approve Official Plans and amendments; and
    - adhere to statutory approval timelines.
- The Region should be permitted to complete their ongoing Municipal Comprehensive Review to allocate the growth forecast to lower-tier municipalities; otherwise lower-tier municipalities will be required to complete this project as an unbudgeted project, which is likely to cause further delay.
- Amendments to Section 41 (Site Plan Control) should be repealed.
- The Town does not support allowing appeals of zoning by-laws that establish MTSAs if the zoning is not implemented within one (1) year as appeals would delay housing construction in MTSAs.
- The Town does not support limiting Inclusionary Zoning units to 5%. If the Province is going to dictate maximum permissions, then the need for municipalities to complete a Housing Assessment Report should also be eliminated.

In addition to the comments above, staff have reviewed amendments introduced by Standing Committee on November 22, 2022. The original version of Bill 23 prohibited municipalities from approving the exterior design of buildings, including matters relating to sustainable design, and landscape elements with some exception. This would have impacted implementation of the Ajax Green Standard. Amendments introduced by the Standing Committee reintroduce language to allow a municipality to approve plans with green roofs, and landscape sustainable design elements. Other matters included in the Ajax Green Standard would continue to not apply, such as building energy performance. This will impact the Town's ability to meet its greenhouse gas emission reduction targets as building energy performance can not be considered. The Town does not support these amendments. Alternatively, the Province should substantially improve energy performance standards in the Ontario Building Code immediately.

Bill 23 also originally proposed to eliminate third party appeals (e.g. residents) for Official Plan Amendments, Zoning By-law Amendments, Minor Variance and Consent (land division) applications. Standing Committee reintroduced appeals for Official Plan and Zoning By-law Amendments; and continues to eliminate appeals related to Consent and Minor Variance Applications. Minor amendments to the *Ontario Land Tribunal Act* allow the tribunal to more easily dismiss appeals and/or award costs.

Standing Committee also introduced an amendment that repeals a section of the *Planning Act* that prohibited an applicant from submitting a Zoning By-law Amendment for two years after a Zoning By-law was amended. This prevented someone from submitting an amendment after the Town had expended significant resources preparing and consulting on a new Zoning By-law. The Town does not support this amendment, and instead should continue to allow municipalities to determine which Zoning By-law Amendments can be further amended or varied within two years.

Staff support transferring Consent (land division) applications to the Town, and permissions for additional dwelling units policies.

***Conservation Authorities Act* and proposed regulation (ERO Nos. 019-6141, 019-2927, and 019-6160)**

Bill 23 implements significant changes to the *Conservation Authorities Act.* The Province has also released a consultation document on a proposed regulation under the *Conservation Authorities Act*. The amendments:

- Prevent Conservation Authorities from providing non-mandatory programs and services related to reviewing or commenting on a development proposals or applications, such as reviewing Environmental Impact Studies and restoration plans.
- Prevent Conservation Authorities from appealing development applications to the Ontario Land Tribunal for non-mandatory services.
- Identify that a permit issued by the Conservation Authority could no longer include conditions to mitigate matters related to 'pollution' or the 'conservation of lands'; and replacing the language with 'control of unstable soil or bedrock' instead.
- Prevent the Conservation Authority from regulating certain activities (requiring a permit) if approval has been granted under the *Planning Act* or other matters outlined in regulation. Details are proposed to be outlined in regulation and questions have been outlined in a draft consultation document.
- Amend the definition of a Headwater Drainage Feature (HDF) which will reduce the threshold for what is considered a HDF, thereby making it easier to remove.

Staff submitted comments in response to ERO Nos. 019-6141, 019-2927, and 019-6160 on November 23, 2022, which have been included as Attachment 3.

<u>Key Comments</u>

- The Town does not support the amendment that prevents Conservation Authorities from providing non-mandatory programs and services related to development application review. Conservation Authorities provide informative and cost-effective services related to environmental management, ecology, habitat restoration, species at risk, and water quality, watershed planning, among many other matters. This will require lower-tier municipalities to take on this function and will substantially increase development application costs. The ability for municipalities to enter into service level agreements should be implemented.
- Conservation Authorities are also effective at collecting monitoring and modelling data, species inventories and mapping at a regional and watershed scale that assist in the preparation of reports and studies required by both the public and private sectors. Conservation Authorities should continue to be permitted to provide this service.
- The Town does not support the amendment to the definition of Headwater Drainage Feature (HDF) as HDF's are integral to watershed health and play a critical role in flood control, source water conveyance, infiltration, water quality, and improved habitat quality.
- The Town recommends that the Province re-initiate the Conservation Authorities Working Group to bring together conservation experts, developers, urban planners, agricultural representatives, municipal representatives and provincial ministries. The goal of the working group would be to collaborate on enacting appropriate regulations associated with Bill 23 to address the housing crisis while maintaining the role of Conservation Authorities regarding development application review and environmental protection.

Watersheds are complex and interrelated systems that require coordinated review and management of both the hydrologic and natural heritage systems. Conservations Authorities provide informative and cost-effective services to municipalities and the communities that they

serve. It will be difficult to match their service levels and expertise and municipalities will be required to significantly increase application fees to hire staff to complete reviews. Without the support of Conservation Authorities, the quality and health of watersheds are likely to degrade significantly.

Ontario Wetland Evaluation System

To aid in identifying wetlands in Ontario that have value at a provincial scale, the Ministry of Natural Resources and Forestry (MNRF) has developed and administers the Ontario Wetland Evaluation System (OWES). The OWES recognizes the role that wetlands play in maintaining critical ecosystem functions, providing social benefits, moderating storm flows, improving water quality, and protecting rare species. The OWES is the only means of evaluating wetlands in Ontario to determine whether they are provincially significant. On October 25, 2022, ERO No. 019-6160 was posted to the Environmental Registry of Ontario requesting comments on proposed revisions to the OWES. The proposed revisions:

- Completely remove the MNRF as administrators of the OWES.
- Remove the need to consider information about the presence of endangered or threatened species.
- Propose that single wetland units that are part of previously evaluated wetland complex can be re-evaluated as an individual unit.

<u>Key Comments:</u>

- The Town of Ajax does not support any of the proposed revisions as they will lead to inconsistencies of OWES evaluation across the province, result in a drastic loss of critical wetland habitat, and will put existing and future homes at risk of climate change impacts like increased flooding.

According to the ERO bulletin, the proposed changes to the OWES are intended to further streamline development decisions by removing the requirement for MNRF to review and confirm OWES evaluation results. The proposed revisions will create inconsistencies and significantly delay development decisions as local municipalities lack the expertise and capacity to review and confirm OWES evaluations results.

Supporting Growth in York and Durham Act, 2022

Bill 23 also introduced the *Supporting Growth and Housing in York and Durham Regions Act, 2022*. This Act will require the expansion of the existing York Durham Sewage System (YDSS) to convey wastewater from York Region to the Duffin Creek Water Pollution Control Plant (Duffin Creek WPCP) in Pickering and the construction of a phosphorus reduction facility in York to remove phosphorus from drainage water that flows into Lake Simcoe.

The Town has continued to re-affirm support for the Lake Simcoe solution (as documented in the *Upper York Sewage Solution Environmental Assessment*) and continues to have concerns related to a Lake Ontario solution option for York Region effluent as detailed in Attachment 4. Should the proposed Lake Ontario solution for the York Durham Sewage System (YDSS) move forward, the Town recommends that York and Durham Regions update the Duffin Creek WPCP Phosphorus Reduction Action Plan Study (PRAP) to include new information and flow projections, that tertiary treatment be implemented at Duffin Creek WPCP, that any future Duffin Creek WPCP expansion be required to undergo a Schedule C Municipal Class Environmental Assessment pursuant to the *Environmental Assessment Act*, and that costs related to

supporting growth in Upper York (including studies and consultation) not be paid for by the residents of Durham Region.

Municipal Act Amendments

Bill 23 also introduced amendments to the *Municipal Act* which will allow the Minister to make regulations imposing limits and conditions on a municipality's ability to prohibit or regulate the demolition and conversion of residential rental properties. There have been no consultation opportunities posted on the ERO related to this amendment.

The Town's and Region's Official Plans have policy that require a Rental Housing Conversion Study if rental units are proposed to be removed. Regional policy requires a vacancy rate to be 3% or higher to be eligible for conversion. The use of a demolition control by-law to prevent demolition of rental units is a tool that staff have been exploring and will be recommending through the Housing Strategy. Historically, there has been an option for a developer to provide equivalent replacement rental units prior to authorizing demolition to ensure that the number of rental units in the Town remain constant or increases over time. In the absence of knowing what the regulations are, the Town does not support this amendment, as it is likely to prevent the Town from utilizing a demolition control by-law to prevent demolition of rental units. Restricting a municipality's ability to restrict the removal of rental dwelling units will have the opposite impact of the Province's stated goal of providing affordable housing in both the Town and across the Province.

Financial Implications:

Town staff have reviewed the proposed changes to Development Charges, Parkland Dedication, and Community Benefit Charges and have quantified the anticipated financial impact on Development Charges over a 10-year period to be a reduction of approximately $19.3M, equating to $1.9M per year or an annual tax levy increase of 2.5%. This does not include funding shortfalls related to other exclusions and discounts to Development Charges, Parkland Dedication and Community Benefits Charges, and is therefore anticipated to be higher.

Bill 23 will also result in additional administration costs related to implementing, monitoring, and enforcing affordable and/or attainable housing units. Additional staff may be required to process Consent (land division) applications and oversee the transition of the Region's Official Plan to the Town. Further, costs may also be incurred by the Town to reopen or adjust workplans for various studies or strategies such as the ongoing DC Background Study and Community Benefits Charge Strategy, the recently completed Parkland Dedication By-law, or the upcoming Official Plan Review. At this time, costs associated with these matters are unknown and will need to be further evaluated by staff.

Communication Issues:

The Province released 16 bulletins on the Environmental Registry of Ontario for consultation periods ranging from 30 to 66 days. Given the significant changes proposed within the legislation and the major financial and organizational impacts that are likely to result from the legislation, the Province needs to engage in robust and meaningful consultation with municipalities and conservation authorities across the Province prior to proceeding any further. For the second time in the past year, the Province has passed a significant piece of legislation that will have significant impacts on municipalities prior to the end of the consultation period, without meaningful engagement with municipalities.

Conclusion:

Now that Bill 23 has received Royal Assent, it significantly reduces Development Charges needed to construct growth-related infrastructure; slashes parkland dedication needed to support high density communities; complicates growth management and related infrastructure planning; prevents Conservation Authorities from protecting and improving watersheds; and reduces opportunities to provide and protect affordable housing units. While the Town is prepared to work with the Province, the development industry, Conservation Authorities and the Ajax community to deliver on the Province's ambitious housing goals, growth needs to be completed in a way that respects existing taxpayers, contributes to the delivery of complete and livable communities, preserves irreplaceable heritage resources, and protects the natural environment. The Province needs to consult with municipalities and reopen these legislative changes to find constructive ways to actually provide housing, including affordable housing, quickly.

Attachments:

ATT-1: Town of Ajax Comments on ERO bulletins related to Municipal Development-related Charges

ATT-2: Town of Ajax Comments on ERO bulletins related to the Planning Act Amendments and associated regulations

ATT-3: Town of Ajax Comments on ERO bulletins related to the Conservation Authorities Act and proposed regulation, and the Ontario Wetland Evaluation System

ATT-4 Town of Ajax Comments on the ERO bulletins related to the Supporting Growth in York and Durham Act, 2022

Prepared by:

Sean McCullough, MCIP, RPP – Supervisor, Policy Planning & Research

Submitted by:

Geoff Romanowski, MCIP, RPP, CPT – Director, Planning and Development Services

Approved by:

Shane Baker – Chief Administrative Officer

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TOWN OF AJAX
65 Harwood Avenue South
Ajax ON L1S 2H9
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November 23, 2022

Submitted online to Environmental Registry of Ontario and MFPB@ontario.ca

Re: Bill 23: Build More Homes Faster Act, 2022

ERO 019-6172 – *Proposed Planning Act and Development Charges Act Changes: Providing Greater Cost Certainty for Municipal Development-related Charges*

To whom it may concern:

ERO Number 019-6172 was posted onto the Environmental Registry of Ontario on October 25, 2022, requesting comments on proposed amendments to the *Planning Act and Development Charges Act, 1997*. Comments are to be submitted by November 24, 2022.

While the Town thanks the Province for consulting on the proposed amendments, the Province needs to engage in further and comprehensive dialogue with municipalities to understand the full financial impact associated with the proposed changes. If implemented, the amendments are likely to significantly delay the construction of growth-related infrastructure, which will impede the delivery of housing. The proposed amendments to the *Planning Act* will also impact the livability of new and transitioning communities.

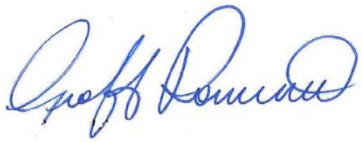
The amendments proposed through Bill 23 are contrary to the core principle of growth paying for growth. In an effort to rectify Ontario's housing crisis, the proposed changes will make long-term home ownership costs unaffordable by shifting the growth-related financial burden to taxpayers currently struggling with the high cost of inflation on food and utilities, funding an infrastructure deficit, and various climate change impacts.

The Town urges the Province to reconsider the proposed amendments, and engage in meaningful dialogue with municipalities to find additional methods for achieving the Provinces housing goals. The attached comments will be forwarded to a future Council meeting and a copy of a resolution of Council endorsing the comments will be provided at a later date.

Included as Attachment 1 with this letter are comments prepared by staff from the Town's Planning and Development Services Department and Finance Department. These comments highlight the significant financial impacts that are expected as a result of the proposed amendments.

Thank you again for providing the Town with the opportunity to provide comments and for your consideration of these comments. Should you have any questions please contact Sean McCullough, Supervisor, Planning Policy and Research at Sean.mccullough@ajax.ca or (905) 619-2529 ext. 3234 and he will endeavour to coordinate a response.

Regards,



Geoff Romanowski, MCIP, RPP, CPT
Director of Planning and Development Services
Planning and Development Services
Town of Ajax

ATT 1: Town of Ajax Comments on ERO 019-6172 Municipal Development-related Chagres

Copies:
Patrice Barnes, MPP, Ajax
Steve Clark, MPP, Minister of Municipal Affairs and Housing
Shane Baker, Chief Administrative Officer, Town of Ajax
Dianne Valentim, Director of Finance/Treasurer, Town of Ajax
Jason McWilliam, Manager of Legislative Services/ Acting Clerk
Stev Andis, Manager of Planning, Town of Ajax
Sean McCullough, Supervisor of Planning Policy and Research, Town of Ajax
Julie Mepham, Manager, Budgets and Accounting, Town of Ajax

ATT 1: Town of Ajax Comments on ERO 019-6172 Municipal Development-related Charges

ERO 019-6172 – Proposed Planning Act and Development Charges Act, 1997 changes: Providing Greater Cost Certainty for Municipal Development Related Charges	
Proposed Amendment	**Town of Ajax Comments**
Development Charges Act The following amendments are proposed to the Development Charges Act:	
1. Amendments propose to remove costs associated with studies from being eligible for inclusion in the calculation and collection of DCs. Examples of ineligible studies would include Development Charge Background Studies, Official Plan Reviews, and Master Plans. It is unclear at this time if Environmental Assessments would be eligible.	The Town **does not support** this amendment. Studies are completed prior to construction and/or acquisition of growth-related infrastructure to ensure the capital costs included in the quantum of the DC charge are fair and reasonable, allowing the construction of infrastructure in a timely and affordable manner. Based on the 2018 DC Background Study, this amendment would impact $2.1 million in Town studies over the next 10 years that would instead be funded by existing taxpayers and/or non-DC sources. The funding for these tools would render them cost-prohibitive to complete when considering the additional tax impact that will be borne by taxpayers once the Provincially required Asset Management funding strategy is put in place by July 1, 2025.
2. Amendments propose to remove costs associated with the purchase of land related to DC projects from being eligible for inclusion in the calculation and collection of DCs.	The Town **does not support** this amendment. Based on the 2018 DC Background Study this would impact $12.6 million in land acquisition costs over the next 10 years. Land costs must be included in the capital cost calculations, otherwise the current taxpayers will be responsible for land acquisition costs of growth-related infrastructure, or the projects will be significantly delayed or cancelled. The result would be contradictory to the objective of providing sufficient infrastructure to support growth.
3. The amendments propose to require that new DC rates be phased in over a 5-year period. Meaning that new rates would be discounted in year 1 (20% discount) with the discount gradually decreasing (year 2–15%, year 3–10%, year 4–5%) until the full rate is applied in year 5. The legislation does not distinguish whether these rate reductions only apply to residential or if they also apply to non-residential developments.	The Town **does not support** the arbitrarily phasing in of rates over a 5-year period. If the proposed rate reductions were to be applied historically to the 2018 DC rates and collections experienced by the Town from July 1, 2018 to June 2022, the Town would have lost $4.6 million in DC collections over the 4 year period (average $1.15M per year). The calculated rate is based on a formula and need for growth-related infrastructure and the phase in is an arbitrary reduction which would impact the Town's ability to collect the funds required to build infrastructure. The DC collection rate could potentially be less than what was being collected prior to a new by-law coming into effect, which will put additional pressure on the ability to fund infrastructure projects already planned for the foreseeable future. This will cause delays for existing plans and construction of infrastructure. Additionally, the Town

	does not support the application of these rates to the non-residential classes of development as it does not achieve the Province's goal of building more housing. It is not understood how municipalities would ensure that the affordable housing be in place for a 25-year period and it is unclear how the municipality would collect lost DC revenues if this housing type were to be converted to a use other than affordable housing before the 25-year anniversary date. The monitoring and enforcement of agreements registered on title will be an administrative burden on municipalities.
4. Amendments propose the introduction of a new definition for "Affordable Housing" An affordable residential unit, is housing that is 80% of the average market rent or average market price. To determine the rates, the Ministry would issue bulletins outlining the average rent or price. The amendments identify that affordable housing units, rental, and ownership, that are maintained for 25 years, and registered on title, would be exempt from paying DCs. Similar amendments have been made to the Planning Act that would exempt these units from paying Parkland Dedication and a Community Benefits Charge.	It is not understood how municipalities would ensure that the affordable housing be in place for a 25-year period and it is unclear how the municipality would collect lost DC revenues if this housing type were to be converted to a use other than affordable housing before the 25-year anniversary date. The monitoring and enforcement of agreements registered on title will be an administrative burden on municipalities.
5. Amendments propose the introduction of a new definition for "Attainable Housing". An 'attainable housing unit' is only defined as not being a rental unit or an affordable unit as defined above, that is developed as part of a prescribed class of development and meets prescribed criteria to be established through regulation. Attainable housing units would be exempt from DCs when first sold. The developer would be required to enter into an agreement with the municipality which may be registered on title. Similar amendments have been made to the *Planning Act* that would exempt these units from paying Parkland Dedication and a Community Benefits Charge.	The Town **does not support** the exemptions for an attainable housing unit as the criteria further defining this housing type have yet to be prescribed through regulation, and staff are unsure what an 'attainable housing unit' is. It is not understood how municipalities would ensure that the attainable housing be in place for the period stated in the agreement with the developer and it is unclear how the municipality would collect lost DC revenues if this housing type were to be converted to a use other than attainable housing. The monitoring and enforcement of agreements registered on title will be an administrative burden on municipalities.
6. Amendments would require that beginning in 2023, municipalities would need to spend or allocate 60% of	The Town **does not support** this amendment as it could limit the ability for the Town to fund large strategic road and bridge construction projects that may be planned for construction beyond a typical 10-year capital budget.

DC reserves associated with municipal highways (roads).	
7. Historical service level for DC eligible capital costs (except transit) are proposed to be extended from 10 to 15 years.	The Town **does not support** extending the timeframe for calculating the historical service level from 10 to 15 years, as the historical level of service would decrease the calculated cap, thereby further reducing the charge, and would not be reflective of the needs of the community.
8. The maximum interest rate applied to developments eligible for a Development Charge deferral is proposed to be limited to bank prime plus 1%.	While the Town understands the rationale to cap the interest rate, it will become a greater administrative burden to ensure the quarterly rate changes are properly documented and applied throughout our various processes. In addition, this will provide less predictability to developers as the rate will fluctuate more frequently than the Town's current semi-annual adjustment. Since the passage of Bill 108, the Town's has applied interest to site plans and zoning by-law amendments at a rate lower than the proposed maximum rate and maintained that rate consistent from site plan and zoning by-law amendment to building permit issuance, then an updated rate from building permit issuance through final instalment payment. The proposed amendment, along with the other proposed changes, will require the maximum rate to be applied to recover as much of the lost DC revenue as possible.
9. Amendments would extend the expiry of a DC by-law from 5 years to 10 years.	The Town **supports** this amendment as long as the DC phase-in is removed from the calculation of the rate. A 10-year DC by-law would provide stability for both the development community and the Town. This would, however not preclude the Town from advancing their DC background study and by-law should they strategically choose to do so prior to the 10 year expiry. The required phasing of DC rates over 5 years is a punitive measure to discourage municipalities from adopting updated bylaws more reflective of growth-related needs and current market construction costs. While a municipality may decide to take either of the following approaches, either decision could cost the existing taxpayer as 10 years is a rather short financial planning horizon with many uncertainties that need to be addressed: A. **Reviewing the merits of updating a DCBS before the 10 year mark** will result in additional staff time and/or consultant costs to determine the viability of this option. B. **Keeping the active background study until it expires** will likely result in a lost opportunity to collect updated Development charges.

<u>Parkland</u> The following amendments are proposed to *the Planning Act*:	
10. 'Locking' the amount of land or payment required for parkland dedication on the date that a site plan or zoning by-law amendment is submitted for two (2) years. In the absence of either of these applications, the date of building permit would continue to apply.	The Town **does not support** locking in the amount of land or payment required upon submission of an application. Determining the rate upon application submission and locking the amount for 2 years will reduce the land value in turn reducing the parkland dedication. In addition to the significant time gap, valuating the land at time of application will not consider the highest and best use until the Zoning By-law Amendment has been approved, further reducing the value. This amendment only penalizes municipalities and further reduces land and payments for parkland dedication. Creating a two year time frame only prolongs the time that an applicant has to construct. The Town's Parkland Dedication By-law accepts land appraisals for one year. The provision should be amended to lock in the rate for a maximum of one year from that date a formal land appraisal is submitted to the municipality.
11. The maximum alternative parkland dedication requirement is proposed to be halved from 1 hectare per 300 dwelling units to 1 hectare per 600 dwelling units where land is conveyed; and from 1 hectare per 500 dwelling units to 1 hectare per 1,000 dwelling units where cash-in-lieu is provided.	The Town **does not support** the proposal to slash the alternative parkland dedication requirement. Parkland is required to support complete communities and is especially needed in medium and high density developments that provide limited outdoor amenity space. The Town recently completed its parkland dedication by-law, and established a rate of 1 hectare per 615 dwelling units for high density development based on the Town's capital forecast.
12. In addition to halving the alternative requirement, the proposed changes would limit the alternative requirement to 10% of the land area or value for sites less than five (5) hectares; and 15% for sites greater than five (5) hectares. This change would also apply retroactively to any application where a building permit has not been issued prior to subsection 12(11) Schedule 9 of Bill 23 coming into force.	The Town **does not support** the proposal to implement a maximum land area or value of 10-15%. Limiting parkland based on land area does not apply a consistent rate as density increases. Areas with increased density are precisely the neighbourhoods requiring parkland the most. Further, the Town **does not support** this legislative change applying retroactively as some development where land would be required have been ongoing for months and years.
13. Proposed changes would require municipalities to pass a parks plan prior to passing a parkland dedication by-law, instead of prior to adopting Official Plan policies.	The Town is not opposed to this proposal, however, parks plans also assist in the preparation of Official Plans by identifying strategic or underserved neighbourhoods requiring parkland. Staff have concerns that timing may not align with the updating of Official Plan policy and Parkland Dedication By-laws, and Parks Plans may be required to be updated more frequently, having a financial impact on the municipality.

14. The proposed changes create a process for an owner of land to identify encumbered land to be conveyed to the municipality, in accordance with prescribed criteria established by the Province, to fulfill their parkland dedication requirements in whole or part. The identified land may include land encumbered with below grade infrastructure, utilities or easements. If the municipality agrees, an agreement may be registered on title. If the municipality refuses, the municipality must issue a notice of refusal, and the owner may appeal the decision to the Ontario Land Tribunal. The Tribunal would determine if the land meets prescribed criteria and the amount contributed towards the required parkland dedication requirement.	The Town **does not support** the proposal to have the Province establish criteria to require municipalities to accept encumbered land for parkland, nor does it support a the Ontario Land Tribunal making those decisions. Having landowners and the Province decide how parkland is provided will not enable the Town to meet the diverse recreational needs of the community. Additionally, the Town will have the maintenance and legal responsibility, and it should be up to the Town to decide what parkland it accepts. As the Town identified in comments submitted in April 2019 in response to Bill 109, Planning for complete communities and transit-oriented communities will require strategic planning to identify the best locations for parkland or other community facilities to support future residents. Parks are dynamic spaces that can accommodate a variety of recreational needs and buildings for various recreational purposes. In many cases, buildings or structures cannot be constructed on easements; if parkland only includes encumbered land it will limit what the parkland can be used for, and what can be built on those lands. Additionally, parkland in built-up area are increasingly being used for dual purposes to support other infrastructure needs such as underground stormwater management facilities. Requiring encumbered land to be conveyed to municipalities for parkland purposes and counting it towards parkland contribution will result in communities with disjointed parkland areas that do not align with planning visions for an area, impede opportunity to provide a full range of recreational services, and reduce a municipality's ability to fulfill other obligations such as stormwater management. All the parkland proposals combined, to affix the rate at a reduced valuation, halve the maximum alternative requirement, applying a maximum percentage of 10-15%, and potentially require municipalities to accept encumbered land or strata parks will have consequential and devastating impacts on parkland within communities across Ontario, especially in high density communities. The Town **strongly urges** the Province to reconsider the proposed changes. Finally, the Town asks that the Province review the roll out of these legislative changes and truly understand the financial impact that it is having on municipalities.
15. The proposed changes would limit the amount of parkland dedication that 'affordable housing units' and 'attainable dwelling units' would contribute to 5% of the land, on a proportionate basis.	The Town **supports** reduced parkland dedication for 'affordable dwelling units', but the Town **does not support** reduced parkland dedication for 'attainable dwelling units'. The Province has not identified what 'attainable dwelling units' are, only what they are not. The Province needs to better define what an 'attainable dwelling unit' is, and what the prescribed class and/or criteria is, and release the definition and criteria for meaningful consultation in order to understand the magnitude of the potential financial impact.

16. Non-profit housing development would be exempt from contributing to parkland dedication. 17. Exemption of additional dwelling units (accessory and detached accessory dwelling units) from contributing to parkland dedication. 18. Amendments require municipalities to spend or allocate 60% of the parkland reserve balance at the end of each year. Note: Corresponding changes listed above were made to both sections 42 and 51.1 of the Planning Act.	The Town **supports** the exemption for non-profit housing from providing parkland dedication. The Town has **no concern**s with an exemption of additional dwelling units from providing parkland dedication as this is common practice. The Town **does not support** this amendment. Small and medium sized municipalities are limited in the amount of parkland dedication that is actually received each year. Parkland reserve accounts operate similar to a savings account and require municipalities to build up reserves in order to acquire parkland. This amendment will not incent municipalities and will only impede the acquisition of parkland. The Province recently required municipalities to pass a new parkland dedication by-law by September 18, 2022. The Town spent approximately $45,000 to update the by-law, plus costs to process related appeals. The amendments proposed to the Planning will require the Town to update its by-law months after the last update. Poor coordination of legislative changes is unnecessarily costing municipalities significant financial resources.
<u>Community Benefits Charge</u> 19. Changes are proposed to the Community Benefits Charge that would permit municipalities to only collect a charge that is proportionate to the new building floor area compared to the total floor area on a site (including existing floor area). 20. Changes are also proposed to exempt the applicable CBC for building containing 'affordable', 'attainable', and Inclusionary Zoning housing units.	The Town **supports** this change as it is considered reasonable and provides needed direction. The Town is currently in the process of preparing a Community Benefit Charge Strategy, and this was a topic identified to be addressed in the by-law. The Town **does not support** the discounting of 'attainable' housing units from a Community Benefits Charge as the Province has not identified the type of prescribed housing that this would apply to.
<u>General Comment:</u> The amendments proposed through Bill 23 are contrary to the core principle of growth paying for growth. In an effort to rectify Ontario's housing crisis, the proposed changes will make long-term home ownership costs unaffordable by shifting the growth-related financial burden to taxpayers currently struggling with the high cost of inflation on food and utilities, funding an infrastructure deficit, and various climate change impacts.	

The proposed measures would limit infrastructure investments needed in the Town and would discourage development. Much of the growth-driven expenditures will be pushed onto existing taxpayers, who already actively voice their concerns over the tax increases required to maintain existing services and infrastructure they rely on each day. As the Town shifts to intensification, the cost of expanding roads, storm sewers, fire, recreation, and library services is higher due to the complexity of construction and higher land costs. The shortfall in growth funding will either fall on the tax base or be required from the provincial and federal governments. Otherwise, significant delays are to be expected for growth-related infrastructure due to budget constraints. The known impact to the Town would be an approximate $1.9M annually. This equates to an annual tax levy increase of 2.5%. This figure does not include anticipated funding loss of the exclusions for attainable/affordable housing, the extension of historical service level from 10 year to 15 years, the discount on purpose-built rentals, and reduced parkland dedication. The Province would need to provide significant and ongoing funding for capital infrastructure projects required to facilitate growth in order to meet the housing goals.

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November 23, 2022

Submitted online to Environmental Registry of Ontario and PlanningConsultation@ontario.ca

Re: Bill 23: Build More Homes Faster Act, 2022

ERO 019-6163 – *Proposed Planning Act and City of Toronto Act Changes (Schedule 9 and 1 of Bill 23 – the proposed More Homes Built Faster Act, 2022)*

ERO 019-6173 - *Proposed Amendments to O.Reg. 232/18: Inclusionary Zoning*

ERO 019-6197 – Proposed Changes to O.Reg. 299/19: Additional Residential Units

To whom it may concern:

ERO Bulletin Numbers 019-631, 019-6173 and 019-6197 were posted onto the Environmental Registry of Ontario on October 25, 2022, for comment. ERO 019-61 proposes to amend the *Planning Act* and has requested that comments be submitted by November 24, 2022. ERO-019-6173 proposes to make amendments to *O.Reg. 232/18: Inclusionary Zoning* and has requested comments by December 9, 2022. Finally, ERO 019-6197 proposed to make amendments to *O.Reg. 299/19: Additional Dwelling Units* and has requested comments by December 9, 2022.

While the Town thanks the Province for consulting on the proposed amendments, significantly more engagement with municipalities is needed to fully understand the impacts associated with the proposed changes. Included as Attachment 1 with this letter are comments prepared by staff from the Town's Planning and Development Services Department. These comments highlight various matters that the Province needs to consider prior to enacting the amendments. The attached comments will be forwarded to a future Council meeting and a copy of a resolution of Council endorsing the comments will be provided at a later date.

Thank you again for providing the Town with the opportunity to provide comments and for your consideration of these comments. Should you have any questions please contact Sean McCullough, Supervisor, Planning Policy and Research at Sean.mccullough@ajax.ca or (905) 619-2529 ext. 3234 and he will endeavour to coordinate a response.

ATT 1: Town of Ajax Comments on ERO 019-6163, 019-6173, and 019-6197 Planning Act amendments and associated regulations

Regards.

Geoff Romanowski, MCIP, RPP, CPT
Director of Planning and Development Services
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ATT 1: Town of Ajax Comments on ERO 019-6163, 019-6173, and 019-6197 Planning Act amendments and associated regulations

ERO 019-6163 – Proposed Planning Act and City of Toronto Act Changes	
Proposed Amendment	**Town of Ajax Comments**
Upper-tier Municipality Planning Authority 1. Introduction of "Upper-tier Municipality without Planning Authority" which includes all Upper-tier municipalities in the GTA, including the Region of Durham, and several outside the GTA such as the County of Simcoe and Region of Waterloo. As a result, this change would download a number of planning processes to the lower tier municipality; and upload some responsibilities to the Province, including: The upper-tier Official Plan would be assigned to the lower tier municipalities, who would be responsible to update their Official Plans to include matters of Provincial interest, such as delineating and planning Protected Major Transit Station Areas and determining growth forecasts. The Province (through the Ministry of Municipal Affairs and Housing) would be responsible for approving Official Plans and Amendments. The Minister could also exempt certain amendments from their approval, similar to exemptions currently provided to the Town by the Region.	Official Plan Approval The Town has concerns with approval authority of Official Plans being transferred to the Province. Without significant resources being allocated to MMAH to hire more staff, the Town questions if this process will in fact be faster. For example, Regional Official Plan Amendment No. 186 (ROPA), which delineates and introduces policy related to Major Transit Station Areas was adopted by the Region in December 2021. As of the date of preparation of these comments, ROPA 186 has not been approved by the Province. The Town has concerns that if the approval of all lower tier Official Plans and amendments are transferred to the Province, that delays will be compounded. Municipalities are required to approve Official Plan and Zoning By-law Amendments within 120 days, otherwise they are required staged refunds to an applicant. The Province has the same responsibility to expeditiously approve Official Plans and amendments and therefore are urged to meet legislative timelines outlined in the *Planning Act* should the responsibility be transferred to the Province. If this amendment proceeds, the Town recommends the following: • That the Province substantially increase Provincial staffing to expeditiously approve Official Plans and amendments; • That the Province commit to providing a decision on Official Plans and amendments within 120 days, in accordance with section 17 (40) of the *Planning Act*; • That sections 17(40.1) to (40.1.3) inclusive, which enable the Minister to suspend the timeline to provide a decision on an Official Plan, be deleted; and • Engage in meaningful consultation with lower tier municipalities to determine which Official Plans and amendments are to be exempt from approval by the Minister. Growth Allocation Growth allocation and forecasting is relied upon during the preparation of various municipal plans (Official Plans, Parks and Recreation Plans etc.), development charge background studies, and most importantly, are used to strategically plan for

	servicing (sanitary, water) and transportation infrastructure. Having accurate forecasts are also needed to establish development charges required to pay for infrastructure and plan capital budgets. In the absence of a coordinated approach to infrastructure planning and potentially conflicting growth forecasts, municipalities risk increased costs and delay. Currently, the Growth Plan distributes population and employment forecast to Upper-tier municipalities who have been working to allocate to lower tier municipalities through their Municipal Comprehensive Review. The Region of Durham initiated the MCR in 2018 and has been delayed numerous times due to changing Provincial policy and direction. Substantial resources have been expended completing the review, and if transferred to the lower tier municipalities, additional resources would be required to hire consultants to complete the work. The Town recommends that the Province permit Upper-tier municipalities to complete the Municipal Comprehensive Review to allocate growth to lower tier municipalities prior to transferring the Upper-tier Official Plan to avoid further delay and conflict. For future growth management exercises, the Province would need to implement a systematic method for determining and allocating growth to lower tier municipalities. Using linear projections is not sufficient for forecasting growth. The Province would also need to provide significant resources to area municipalities to undertake intensification, greenfield and employment lands analysis to ensure that growth forecasts can be achieved. Additionally, if municipalities are unable to collect and pay for Official Plan Reviews using Development Charges, reviews will be significantly delayed and/or the tax payer will be required to fund the review. Additional comments in relation to the Municipal Housing Targets are identified in ERO Posting No. 019-6171 are identified later in these comments.
<u>Subdivision and Consent Applications</u> 2. Lower-tier municipalities would be responsible for processing consent (land division) applications, which is currently managed by the Region.	The Town **supports** the transfer of consent applications (land division) to the lower tier municipalities. The Town has a Committee of Adjustment whose role can be expanded to consider consent applications. This is preferred, as there can be issues with related land division and minor variance applications being considered by separate committees. The Town currently has delegated authority from the Region to approve subdivision and condominium applications.

<u>Additional Dwelling Units</u> 3. Restrictions would be introduced to ensure that Official Plans and Zoning By-laws do not contain policy or provisions that would prohibit the use of two (2) or three (3) units on a property containing a detached, semi-detached or rowhouse (townhouse). Three (3) units would be permitted in the dwelling, or two (2) in the dwelling and a third in an detached accessory building or structure. Additionally, the changes would prohibit municipalities from requiring more than one parking space per unit and from requiring a minimum floor area per unit. Amendments to Ontario Regulation 299/19: Additional Residential Units (O.Reg. 299/19) are also proposed to allow "as-of-right" permissions to immediately permit up to 3 units on a property in accordance with the amendments identified above.	The Town **supports, in principle**, this amendment as the Town has issued over 700 building permits for accessory dwelling units since 2006 with the number of permits increasing exponentially each year. The Town is in the process of amending the Zoning By-law to permit accessory dwelling units in accessory detached buildings. It should be noted that some rowhouses (townhouses) in the centre of a block will be unable to accommodate a unit in the rear yard as access must be provided to a municipal right-of-way.
<u>Major Transit Station Areas (MTSA)</u> 4. The amendments would allow lower tier municipalities to delineate and include policies for areas around Major Transit Station Areas (e.g. Ajax GO Station) in their Official Plans. The changes would also require lower tier municipalities to update their Zoning By-laws within one (1) after passing of Official Plan policies for related to MTSA's. Historically, Zoning By-law Amendments that implement PMTSA uses, densities and related policies have been shielded from appeals. The proposed changes would allow appeals of zoning by-laws that implement these policies within PMTSA's if a zoning by-law is not passed within one year of the passing of the policies.	Staff **support, in principle**, this amendment. The Town would have been required to implement this change in the next Official Plan Review, following approval of ROPA 186. Additionally, the Town currently has policies in the Ajax Official Plan that support minimum densities and jobs in the area surrounding the Ajax GO Station, and have worked closely with the Region on delineating the expanded Protected Major Transit Station Area (PMTSA). Staff request that the Province make a decision on ROPA 186. Staff **do not support** the introduction of appeals on a Zoning By-law Amendment that implements MTSA Official Plan policies after one year. While the Town will strive to meet the deadline, the scale of changes proposed through Bill 23, as well as Bill 109, will have significant impacts on municipal budgets and staffing. To ensure that by-laws are not unduly delayed by appeal, prohibition on MTSA Zoning By-law Amendments must remain indefinitely.

	If the Region's Official Plan is transferred to lower-tier municipalities, the Town **does not support** the one year timeline for implementation of an applicable Zoning By-law, if it starts at the time of approval of a Regional Official Plan Amendment to implement policy. While the Town does not support the one-year timeline, if implemented it must begin upon approval of the lower-tier Official Plan policy. The Region's Official Plan lacks sufficient details required to guide zoning implementation and lower-tier municipalities need time to complete secondary planning exercises for areas surrounding MTSA's and align Zoning By-laws with those secondary plans.
<u>Site Plan Control</u> 5. The definition of 'development' in section 41 of the Planning Act (Site Plan Control) is proposed to be amended to not include the construction of a building containing 10 dwelling units or less. As a result, developments proposing 10 units or less would not be subject to site plan control.	The Town **does not support** the proposal to exempt buildings with 10 units or less from Site Plan Control. Buildings with 10 units should continue to proceed through site plan control, at the discretion of the municipality, as technical matters such as safe site access, waste collection, parking area design, stormwater management controls, grading, and site servicing, all need to be considered in a comprehensive manner. At a minimum, municipalities should continue to be permitted to approve technical matters as outlined above.
6. Section 41 (4) 2. (d) of the Act, which provides the Town with the ability to approve the exterior design of a building, is proposed to be deleted. This section allows the Town to review and comment on the character, scale, appearance and design features of a building, including sustainable design elements. Exterior design, except matters relating to exterior access of a building containing affordable units, would also be added to the list of elements excluded from Site Plan Control.	The Town d**oes not support** the removal of permissions to approve the appearance of the exterior design of a building, also referred to as architectural control. Architectural design remains one of the most important design consideration of Site Plan Control. The Town, and architectural control consultant, have worked with hundreds of architects, designers and applicants, to identify inconsistencies in drawings and recommend alternate and budget friendly materials to create visual interest, durability and variation. Architectural design, including the scaling and massing, is also required to create safe, livable and pedestrian friendly communities. Matters such as Crime Prevention Through Environmental Design (CPTED) are routinely considered to position buildings and doors to maximize activity, and increasing glazing to maximize surveillance, of the adjacent streets to enhance safety. Massing and scale is also considered to create comfortable and attractive streetscapes that promote economic and social activity. Surrounding neighbourhood attributes are also considered to maintain viewscapes, improve health by mitigating impacts from wind and maximizing sunlight. Matters such as bird friendly windows also improvement the natural environment and could no longer be required. Architectural control is needed that the proposed revisions must be repealed. The Town **does not support** the removal of sustainable design elements from the site plan process. On September 16, 2019, the Ajax Council declared a Climate

7. The appearance of elements, facilities and works, which may include landscape design, on both the land or adjoining highway (municipal right-of-way) are also excluded from site plan control, except to the extent that the appearance impacts related to health, safety, accessibility or the protection of the adjoining lands.	Emergency, and continue to take steps to proactively mitigate and adapt to the impacts of climate change. This include creating resilient communities. On April 19, 2022, Ajax Council adopted the Ajax Green Standard. The standard helps to improve energy performance of buildings, reduce Green House Gas emissions, and help sites adapt to climate change. The proposed changes would eliminate the Town's ability to apply the Ajax Green Standard to site plan applications and impede the Town from creating climate adaptive communities. The Town **does not support** the addition of this broad category to the list of exclusions from site plan control. First, the municipal right-of-way is owned by the municipality who is responsible for its long term maintenance. Constructing new buildings and the coordination of trees, utilities, access, temporary construction and grading within the right-of-way requires immense coordination and any potential limitations will only further delay approvals. Secondly, landscape design not only contributes to the visual appearance of the surrounding community, but it also helps to mitigate impacts of climate change, by reducing the urban heat island or encouraging the planting of climate resilient plants. Section 41 (4) 2. (d) of the *Planning Act*, which permits municipalities to approve the exterior design of buildings, including their character, scale, appearance, design features, and sustainable design, must remain as a matter to be approved by municipalities through Site Plan Control. Similarly, the appearance of elements, facilities and works on the land and adjoining highway must not be added as an exclusion.
<u>Elimination of third-party appeals</u> 8. The proposal would eliminate third party appeals (e.g. neighbours) for all Planning matters including OPA's, ZBA's, consents and Minor Variance applications). Only an applicant, the Minister, a Specified Person (e.g. OPG, Hydro One, natural gas or pipeline operator, railway company, telecommunication provider etc) or public body (including municipalities) would be permitted to appeal.	While the Town understands the concern surrounding appeals and the impact on delaying the delivery of housing; the Town **does not support** the elimination of third-party appeals. Instead, the Province should investigate more cost-effective dispute resolution options, such as mediation or options with more localized representation. Panels could be created with representation from various municipalities to hear and adjudicate appeals.
<u>Elimination of Subdivision Public Meeting</u> 9. The amendments would eliminate the requirement for a public meeting for Plans of Subdivisions.	It is common that a Plan of Subdivision will also require a Zoning By-law Amendment application, staff question if the elimination of the public meeting for a plan of subdivision will actually save time. Currently, the Town would process both a Zoning

	By-law Amendment Application and a Plan of Subdivision together, and forward one report to the same public meeting. Public meetings are important tools to understand proposed plans on adjacent properties. Plans of subdivision require significant coordination with adjacent properties to align roads, school and park blocks, and other remnant part blocks. While it is common for adjacent property owners to meet and discuss proposed plans, this is not always the case.
ERO 019-6173 - O.Reg 232/18: Inclusionary Zoning	
10. Amendments to the Inclusionary Zoning regulation (O.Reg 232/18) would establish an upper limit of 5 % on the number of units or gross floor area to be set aside as affordable. A maximum period of 25 years and would establish an approach to determine an affordable price and/or rent at 80% of the average resale price and/or rent.	The Town **does not support** the implementation of a maximum percent of 5% on the number inclusionary zoning units or gross floor area). If the goal of the Province is to provide affordable housing units, then the maximum percentage of units should be increased to ensure that affordable units are located in transit supportive areas. Further, permissions to apply Inclusionary Zoning should be expended to other Strategic Growth Areas to advance the Provinces goal to deliver affordable housing options. The Town does not have any concerns with establishing a maximum time period of 25 years that the units remain affordable. The Town does not have any concerns with the Province identifying the average resale value and rent, provided that it is identified individually for each lower tier municipality. Further, some municipalities may require multiple average rates to be established depending on their individual characteristics and geography. If the Province plans to implement a maximum percentage of units, establish an affordability rate and time period, then the need for municipalities to complete a Housing Assessment Report should be eliminated. The requirement for a Housing Assessment Report creates an unnecessary and costly burden on municipalities to justify the requirements established by the Province.
ERO 019-6197 – Proposed Changes to Ontario Regulation 299/19: Additional Residential Units	
11. Proposed amendments would allow up to three (3) units “as-of-right” on a property, without the need for a zoning by-law amendment and would supersede local Official Plans and Zoning By-laws.	As identified earlier, the Town does not have any concerns with this proposal. However, servicing constraints may emerge in neighbourhoods with large uptake in these permissions and will be required to be closely monitored by the Region. While parking is proposed to be limited, it still may emerge as an issue on smaller properties.

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November 23, 2022

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Submitted online to Environmental Registry of Ontario and mnrwaterpolicy@ontario.ca

Re: Bill 23: Build More Homes Faster Act, 2022

ERO 019-6141 – Legislative and regulatory proposals affecting conservation authorities to support the Housing Supply Action Plan 3.0

ERO 019-2927 - Proposed Updates to the regulation of development for the protection of people and property from natural hazards in Ontario

ERO 019-6160 - *Revisions to Ontario's Wetland Evaluation System (OWES)*

To whom it may concern:

ERO Number 019-6141 was posted onto the Environmental Registry of Ontario on October 25, 2022, requesting comments on proposed amendments to the *Conservation Authorities Act*. Comments are to be submitted by November 24, 2022. Related bulletins were also posted including ERO 019-6160 which requests comments on the Ontario Wetland Evaluation System (OWES) by November 24, 2022, ERO 019-2927 requesting comments on related regulations by December 30, 2022; and ERO 019-2927 requesting comments on regulations related to the Conservation Authorities Act by December 30, 2022.

While the Town thanks the Province for consulting on the proposed amendments, the Province needs to engage in further and comprehensive dialogue with municipalities and Conservation Authorities to understand the full impact associated with the proposed changes. Conservation Authorities provide valuable and cost-effective technical expertise. Watersheds are complex and interrelated systems that require coordinated review and management of both the hydrologic and natural heritage systems. If municipalities cannot partner with Conservation Authorities to deliver these services, it is expected that the natural environment will be degraded, and development application fees will increase significantly.

The Town recommends that the Province re-initiate the Conservation Authorities Working Group to bring together conservation experts, developers, urban planners, agricultural representatives, municipal representatives and provincial ministries. The goal of the working group would be to collaborate on enacting appropriate regulations associated with Bill 23 to address the housing crisis while maintaining the role of Conservation Authorities regarding development application review and environmental protection.

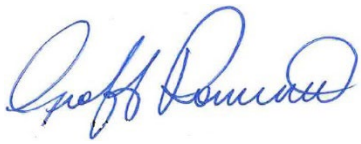
Included as Attachment 1 with this letter are additional comments prepared by staff from the Town's Planning and Development Services Department. The attached comments will be forwarded to a future Council meeting and a copy of a resolution of Council endorsing the comments will be provided at a later date.

The Town urges the Province to reconsider the proposed amendments, and engage in meaningful dialogue with municipalities and Conservation Authorities to find additional methods for achieving the Provinces housing goals.

Thank you again for providing the Town with the opportunity to provide comments and for your consideration of these comments. Should you have any questions please contact Sean McCullough, Supervisor, Planning Policy and Research at Sean.mccullough@ajax.ca or (905) 619-2529 ext. 3234 and he will endeavour to coordinate a response.

ATT 1: Town of Ajax Comments on ERO 019-6141, 019-2927, and 019-6160 Conservation Authorities Act and related regulation, and the Ontario Wetland Evaluation System

Regards,



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Julie Mepham, Manager, Budgets and Accounting, Town of Ajax
Toronto and Region Conservation Authority
Central Lake Ontario Conservation Authority

ATT 1: Town of Ajax Comments on ERO 019-6141, 019-2927, and 019-6160 Conservation Authorities Act and related regulation, and the Ontario Wetland Evaluation System

ERO 019-6141 – Legislative and regulatory proposals affecting conservation authorities to support the Housing Supply Action Plan 3.0	
Proposed Change	**Town of Ajax Comments**
1. Restrictions on non-mandatory services: The proposed amendments identify that a Conservation Authority would not be permitted to provide a program or service to municipalities related to reviewing or commenting on a proposal, application or other prescribed matters, including the *Planning Act* and *Environmental Assessment Act*.	The Town **does not support** the proposal to prevent Conservation Authority staff from reviewing and commenting on development applications. Conservation Authorities provide informative and cost-effective services related to flood management, environmental management and ecology, habitat restoration, geotechnical and slope stability, geomorphology, species at risk, overall watershed management, and related policy expertise. Watersheds are complex and interrelated systems that require coordinated review and management of both the hydrologic and natural heritage systems. If municipalities cannot partner with Conservation Authorities to deliver these services, the Town would be required to hire additional staff and acquire resources to complete technical reviews which will substantially increase the cost of development review as the Town operates on a cost recovery basis. Additionally, Conservation Authorities are effective at collecting monitoring and modelling data, species inventories and mapping at a watershed and Regional scale that assist in the preparation of reports and studies required by both the public and private sectors. Municipalities would not be well positioned to replicate this valuable data resource.
2. Conservation Authority permit could no longer include conditions to mitigate matters related to ‘pollution’ or the ‘conservation of lands’. The conditions are proposed to be replaced with ‘control of unstable soil or bedrock’.	The Town **does not support** this amendment. While the Town agrees that the ‘control of unstable soil or bedrock’ is an important matter to be included, the health of watersheds require consideration of matters related to ‘pollution’ and the ‘conservation of lands’. Conservation Authorities and municipalities across the Province work closely to protect and manage conservation lands for the betterment of watersheds and the communities where they are located.
3. Amendments to the *Planning Act* would restrict a Conservation Authorities participation in Ontario Land Tribunal Appeals for non-mandatory services.	The Town **does not support** this amendment. As outlined earlier, Conservation Authorities provide a valuable and cost-effective service related to a number of technical matters, and their participation in Planning

	Act appeals is important to support improvements to watersheds and their natural heritage system.
ERO 019-2927 - Proposed Regulation under the Conservation Authorities Act	
4. Proposed amendments to the Conservation Authority Regulations propose to change the definition of watercourse from "an identifiable depression in which water regularly or continuously flows" to "a defined channel having a bed and banks or sides."	The Town **does not support** this amendment as it appears to remove Headwater Drainage Features from being regulated as watercourses. Headwater Drainage Features (HDF) are integral to watershed health and play critical roles in flood control, water source conveyance, infiltration, water quality, and improve habitat quality. This change would allow development to more easily remove HDFs from the landscape, increasing runoff, reducing infiltration and continuous water conveyance, deteriorating water quality and habitat.
5. Amendments propose to enact regulations to exempt certain development that is authorized under a *Planning Act* approval from requiring a permit, subject to terms and conditions that would be specified in the regulations. Several questions related to the development of conditions to be established in regulation have also been included: • In which municipalities should the exemption apply? How should this be determined? • Which *Planning Act* authorizations should be required for the exemption to apply? • Should a municipality be subject to any requirements or conditions where this type of exemption is in place? • Are there any regulated activities to which this exemption shouldn't apply?	The Town **does not support** this amendment. As outlines above, Conservation Authorities provide a vital role in reviewing, commenting and protecting people and property from flooding across watersheds. In the absence of their authority to review and issue permits, there is greater risk of putting people and property at risk, and cross-jurisdictional issues that negatively impact adjacent or downstream properties. Further, adjacent landowners would not have right to appeal land use decisions and instead would be required to pursue actions through the courts, instead of the Ontario Land Tribunal. The Town recommends that the Province re-initiate the Conservation Authorities Working Group to bring together conservation experts, developers, urban planners, agricultural representatives, municipal representatives and provincial ministries. The goal of the working group would be to collaborate on enacting appropriate regulations associated with Bill 23 to address the housing crisis while maintaining the role of Conservation Authorities regarding development application review and environmental protection.

ERO 019-6160 – Proposed Updates to the Ontario Wetland Evaluation System	
The following amendments are proposed to the Ontario Wetland Evaluation System (OWES), which is a manual that has been successfully evaluating the significance of wetlands since 1983, based on four categories: biological, social, hydrological and special features.	
6. Revisions remove the Ministry of Natural Resources and Forestry (MNRF) as the administrators for the Ontario Wetland Evaluation System (OWES). This means they would no longer be required to provide data, information, mapping, review, and/or approval of OWES evaluation reports and mapping revisions.	The Town **does not support** this amendment. The Town has concerns that MNRF would no longer review and approve OWES reports as they have nearly 4 decades of experience administrating the OWES. Review and approval of OWES evaluations needs to be consistent across the Province and should not go to municipalities for approval. Most, if not all, Ontario municipalities lack the expertise and technical knowledge to review OWES evaluations. Wetlands and wetland complexes cross municipal boundaries which will create inefficiencies and confusion on municipal responsibilities related to OWES.
7. Amendments remove all oversight of OWES by the Province and instead states that "*evaluators should rely on their observation, data collection and research and use their professional judgement in applying OWES*". In tandem with this addition, text stating that MNR must review and approve those evaluations has been removed.	The Town **does not support** this change. This means that a consultant for a developer can evaluate and weight their scoring however they see fit using "professional judgement". This will lead to significant inconsistencies with implementing the OWES across the province.
8. Amendments would remove the need to consider information about the presence of rare species and hydrological functions that may have a lack of data during and OWES evaluation. Additionally, entire sections have been removed regarding reproductive habitat; migration, feeding, or hibernation habitat for endangered or threatened species being part of the OWES.	The Town **does not support** these revisions as they will result in a significant amount of current provincially significant wetlands losing their status upon re-evaluation because the evaluation can no longer consider how the wetland supports, or could potentially support, endangered or threatened species.

9. Amendments add text stating that single wetland units that are part of previously evaluated wetland complexes can be re-evaluated as an individual unit. There are several sections of text removed that discussed the importance of wetland complexes.	The Town **does not support** this proposed change and has concerns about the amount of wetland units that would be re-evaluated as being "not provincially significant". Since approximately 56% of historic wetlands in Ontario have been lost, all levels of government need to prioritize the conservation and restoration of remaining wetlands in Ontario to build resilience towards the expected impacts of climate change and to mitigate the biodiversity crisis. Wetland complexes are often not contiguous and instead linked through complex groundwater interactions and provide habitat/wildlife connectivity both locally and regionally.
10. Amendments delete text that states that an OWES can be used by: *"Municipalities to determine whether a wetland is to be protected pursuant to the PPS, CAs as an aid in implementing regulations under the CA Act, CAs for use in watershed planning or study to provide advice to municipalities, MNR to manage and conserve fish, wildlife, land, and other resources".*	The Town **does not support** this revision. An OWES evaluation should be utilized by Conservation Authorities to implement regulations and to complement watershed planning to provide advice to municipalities. It should also be provided to municipalities to determine whether a wetland should be protected pursuant to the PPS.
11. Amendments delete text that states, "*where there are wetland features on a site that have not been evaluated or that have not been recently evaluated, municipalities, county governments, CAs, landowners, or others should not assume that the wetland is not significant."*	The Town **does not support** the deletion as the significance of a wetland should be assumed until shown otherwise through a formal OWES evaluation. This follows the precautionary principle.
12. Amendments add that a tilled site would no longer be considered a wetland.	The Town **does not support** this change as it will lead to the further loss of wetlands across the Province.
13. Amendments remove a section related to Locally Important Wetlands, which states that although a wetland may not be evaluated as provincially significant through OWES, a	The Town **does not support** this revision. If the goal of the legislation is to provide more decision authority to local municipalities, then municipalities should be able to decide to protect a locally significant wetland.

municipality could decide to protect a local wetland.	

Town of Ajax By the Lake

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November 23, 2022

Attn: Blair Rohaly
Environmental Assessment and Permissions Division
Ministry of Environment, Conservation and Parks
135 St. Clair Avenue West

Submitted via email to: blair.rohaly@ontario.ca

Re: ERO Number: 019-6192 – Supporting Growth and Housing in York and Durham Regions Act, 2022

Dear Blair Rohaly;

This letter is in response to ERO Posting Number 019-6192 which was posted on October 25, 2022 to solicit public comment on the *Supporting Growth and Housing in York and Durham Regions Act, 2022*. If passed, this Act would require the expansion of the existing York Durham Sewage System (YDSS) to convey wastewater from York Region to the Duffin Creek Water Pollution Control Plant (Duffin Creek WPCP) and the construction of a phosphorus reduction facility to remove phosphorus from drainage water that flows into Lake Simcoe. The comment period is only 30 days and closes on November 24, 2022. The Town of Ajax would like to thank the province for providing this opportunity for public comment.

As you are aware, Durham Regional Council and York Regional Council both re-affirmed their support for the Lake Simcoe solution as documented in the Upper York Sewage Solutions (UYSS) Environmental Assessment (EA) in December 2020 and January 2021, respectively. At that time, the Town of Ajax continued to be a strong supporter of the preferred Lake Simcoe solution. As described in the UYSS EA, a potential southern Lake Ontario alternative servicing solution was screened out during the comparison of the benefits and challenges of potential alternative servicing solutions. As such, no environmental impact study, preliminary design, or rigorous cost analysis had been initiated for a potential Lake Ontario solution.

In response to a July 17, 2020 letter from Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks (MECP) to Chairman Wayne Emmerson, Chairman and CEO of The Regional Municipality of York, Mayor Collier, on behalf of Ajax Council, sent a formal letter to Hon. Jeff Yurek, MECP, dated January 11, 2021, advising of the Town's concerns and opposition to a Lake Ontario option for York Region effluent. The Town continues to have concerns related to a Lake Ontario option for York Region effluent as detailed in that letter (Attachment 1).

On June 3, 2021, ERO Posting Number 019-3802 was posted to solicit public comment on the *York Region Wastewater Act, 2021*. The Town submitted comments and concerns to MECP in response to ERO 0119-3802 on June 28, 2021.

In October 2021, and as identified in the *York Region Wastewater Act,* 2021, the province established the York Region Wastewater Advisory Panel (the Panel) to analyze viable wastewater servicing options utilizing up to date information. The Panel hosted 38 separate meetings with stakeholders across York and Durham Regions. The Town would like to thank the Panel for the opportunity to participate on some of those stakeholder engagement meetings. In

the *Report of the York Region Wastewater Advisory Panel* the Panel determined that "Option C: Connection of the UYSS to the YDSS via the Yonge Street trunk sewer" would best satisfy the need for additional sewage servicing based on the criteria established by the Panel. The Town of Ajax has the following comments related to the Panel's advice:

- The Panel's advice to implement Option C is subject to the satisfactory resolution of both *"hydraulic modelling of the YDSS to confirm that the ultimate flow of 80 MLD can be accommodated within the existing and expanded infrastructure"* and *"confirmation that the existing Intrabasin Transfer Agreement will be sufficient to support the servicing strategy to 2051 and beyond"*.

  Recommendation: The Town of Ajax requests that, should Option C move forward, the province inform all stakeholders engaged by the Panel to confirm when these two conditions are satisfactorily resolved.

- The Panel claims that Option C satisfies Criteria 3 by stating that greenhouse gas (GHG) production would be approximately 50% of that in Option A or B. Although this may be true based on the predicted volume of treated wastewater, this claim is incorrect given that any YDSS alternative will support low-density, sprawl development within York and Durham Region that will significantly increase GHG emissions compared to that of intensification and the development of complete communities within existing urban boundaries.
- The Town of Ajax agrees with the Panel's recommendations that the MECP proceed with the development, design, and construction of the Holland Marsh Polder project to reduce phosphorus in Lake Simcoe.
- The Town of Ajax agrees with the Panel's recommendations provided to the MECP regarding Rights Holders and First Nations engagement and consultation.

Currently, the first 40 MLD expansion of the Duffin Creek WPCP required to implement Option C is included in the rated capacity of the plant. However, the proposed legislation would exempt the YDSS (and the Holland Marsh Polder) from the *Environmental Assessment Act*, which is required for the expansion of the Duffin Creek WPCP beyond its current rated capacity of 630 MLD. The Town of Ajax does not support this exemption and does not believe that the proposed requirement that York, Durham, and other proponent municipalities prepare environmental impact reports would satisfactorily analyze the possible impact of further expansion of the Duffin Creek WPCP to Lake Ontario and the nearshore environment.

> **Recommendation:** That the proposed exemptions in Bill 23, Schedule 10, Part IV, Section 13 be deleted so that any future expansion to the Duffin Creek WPCP be required to undergo a Schedule C Municipal Class Environmental Assessment pursuant to the *Environmental Assessment Act.*
>
> **Recommendation:** That the province confirm that any additional costs related to supporting growth in Upper York through the implementation of Option C, including studies and consultation, not be paid for by the residents of Durham Region.

The Town of Ajax remains concerned that the *Supporting Growth and Housing in York and Durham Regions Act, 2022* does not require effluent at the Duffin Creek WPCP to undergo a tertiary treatment process before being released into Lake Ontario. As the Town of Ajax has regularly documented over the past decade, the lack of tertiary treatment is already negatively impacting water quality within the nearshore environment, and the issue remains a top concern for the Town. The *Duffin Creek WPCP Phosphorus Reduction Action Plan Study* (PRAP) states that *"adjustments to the operational strategies, equipment, training, and resources will be provided as raw sewage flows and loads increase."* The PRAP also states that "*based on the*

official flow projections for the Duffin Creek WPCP…at an AADF of 630MLD, the Duffin Creek WPCP would not be able to meet 190kg/d on an annual average basis" without tertiary treatment. Given these statements in the MOECC-approved PRAP, the Town of Ajax believes that York and Durham Regions need to update the PRAP to include the new flow projections that would result from the proposed legislation.

> **Recommendation:** The Town of Ajax requests that York and Durham Regions update the PRAP to include new information and flow projections that would result from implementation of Option C.

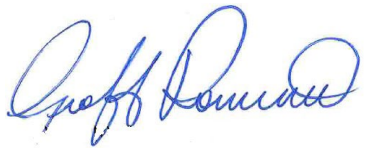
In the *Report of the York Region Wastewater Advisory Panel* the Panel completed a cost analysis that identified that the Water Reclamation Centre (WRC) options (Options A and B) has an estimated cost of approximately $1.4 to $1.665 billion. The Panel's determination that Option C would best satisfy the need for additional sewage servicing was based, in part, on the 50% cost savings associated with capital and life cycle costs compared to the WRC options. These cost savings translate to approximately $539 to $804 million.

> **Recommendation:** The Town of Ajax requests that a portion of the approximately 50% cost savings of pursuing Option C be utilized to implement tertiary treatment and innovative treatment technologies at the Duffin Creek WPCP.

Please accept this letter and attachment as the Town's comments responding to ERO 19-6192. Thank you again and for your consideration of these comments. Should you have any questions please contact Cameron Richardson, Supervisor of Environmental Sustainability & Climate Change at Cameron.Richardson@ajax.ca.

ATT 1: Mayor Collier Letter to Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks January 11, 2021 – Re: Upper York Sewage Solutions Project

Regards,



Geoff Romanowski, MCIP, RPP, CPT
Director of Planning and Development Services
Town of Ajax

Copies:
Hon. Doug Ford, Premier of Ontario
Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks
Hon. Rod Philips, MPP for Ajax
Shane Baker, Chief Administrative Officer, Town of Ajax
Alexander Harris, Manager of Legislative Services/ Deputy Clerk
Stev Andis, Manager of Planning, Town of Ajax
John Mackenzie, Toronto and Region Conservation Authority
Chris Darling, Central Lake Ontario Conservation Authority
Durham Region and area municipal Clerks
Environmental Defence
The Greenbelt Foundation

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Hon. Jeff Yurek
Minister of the Environment, Conservation and Parks
via email

January 11, 2021

Re: Upper York Sewage Solutions Project

Dear Minister Yurek,

Since 2004, it has been known that rapid growth in upper York Region (Aurora, Newmarket, and East Gwillimbury) would soon require significant sewage treatment capacity expansion, and discussions about the need for an Upper York Sewage Solutions (UYSS) project have been ongoing since that time.

As you know, in 2014 the UYSS Environmental Assessment (EA) identified a new water pollution control plant on Lake Simcoe as the preferred solution to handle this increased need. The Region of York supports this decision (and indications are that they remain supportive from the staff report that will be presented to York Region's Committee of the Whole meeting on January 14).

A recent report by Region of York states that the UYSS EA process has cost upwards of $100M over the past decade, and the project timeline expresses a need for completion (in-service date) of 2026, yet no final decision has been made by the Ministry of the Environment, Conservation and Parks (MOECP).

Through the Region of Durham, the Town of Ajax has been made aware of the letter you sent to Chair Emmerson (July 17, 2020), which discusses re-evaluation of alternative options to deal with the increased sewage capacity needs, including a southern trunk sewer option to twin pipes from York Region – through the protected Oak Ridges Moraine – for treatment at the Duffin Creek Water Pollution Control Plant (DCWPCP) in Pickering.

A potential southern Lake Ontario alternative servicing solution was screened out during the comparison of the benefits and challenges of potential alternative servicing solutions during the UYSS Environmental Assessment process. As such, no preliminary design or rigorous cost analysis has been initiated to date.

In addition, the Minister's Order issued by your office in 2019 did not require effluent at the DCWPCP to go through a tertiary treatment process before being released into Lake Ontario. As the Town of Ajax has documented regularly over the past decade, this lack of tertiary treatment is already

negatively impacting water quality on our nearshore, and the issue remains a top concern for the Town.

On December 14, 2020, Ajax Council passed the following motion:

1. Ajax Council affirm our support for the Lake Simcoe Water Reclamation Centre Alternative, as identified in the technical EA, over any discharge to Lake Ontario option for York Region effluent;

2. Ajax Council strongly oppose the Lake Ontario option for York Region effluent;

3. Ajax Council direct Mayor Collier to send a formal letter to Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks […] to advise them of our concerns with a southern route option that will lead to further effluent discharge to the Lake Ontario nearshore;

4. Ajax Council request Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks to regularly consult with the Region of Durham and impacted municipalities, including the Town of Ajax and City of Pickering;

5. Ajax Council request that the Chippewas of Georgina Island (and any impacted Durham Region Indigenous Peoples, as appropriate) continue to be consulted as full partners in the process, and that their concerns be respected and considered in all decision-making; and

6. This resolution be shared with Hon. Jeff Yurek, Minister of the Environment, Conservation and Parks, Rod Phillips, MPP for Ajax, Durham Region Council; Durham Region MPPs.

I believe our Clerks department has already delivered the full motion to your office. Thank you for your consideration of our requests outlined in the resolutions above. I am willing to make myself available for a discussion on this matter at your convenience.

Sincerely,

Shaun Collier
Mayor & CEO - Town of Ajax

c.

Rod Phillips, MPP for Ajax
Chair John Henry, Region of Durham
Ajax Council